

POLITY & GOVERNANCE

Class - 01

A BRIEF OVERVIEW OF THE EXAM, CLASSES, AND SUBJECT: (10:25 AM)

- Why Study Indian Constitution?
- 10-15 questions are asked directly from this section in the Prelims examination.
- GS Paper II – 100 - 125 marks on average.
- **Sources:**
- Social and Political Life – NCERT Class VIII.
- Democratic Politics – I NCERT Class IX.
- Democratic Politics – II NCERT Class X.
- India Constitution at Work NCERT Class XI.
- Political Theory NCERT Class XI.
- Bare Act: Indian Constitution.
- Indian Polity by M. Laxmikanth/ D.D Basu.
- VISION IAS reading material and class handouts.
- Also, get the Previous Year's Questions (PYQs) for both Prelims and Mains
- Moreover, the Syllabus of the examination.
- **Some Do's and Don'ts:** (11:28 AM)
- Start with a clean slate/start without fear.
- Revise regularly.
- Ask when in doubt but be patient.
- Practice MCQs and answer writing.
- Self-study is the key.

INTRODUCTION TO CONSTITUTION: (11:46 AM)

- **Concept of State:**
- In simple words, the State is a political entity created to govern territory and its people.
- We may also say that it is an independent political entity occupying a defined territory, the members of whom are united together to resist external force and preserve internal order.
- In modern democracies, the State has been divided into 3 organs:
- 1. Legislature - Organ of the State that is responsible for making laws.
- 2. Executive - Organ of the State concerned with the execution of the laws.
- 3. Judiciary - It interprets the laws and decides the disputes related to the law.

- **Need and the concept of Constitution:** (12:11 PM)
- There exists an inherent danger of the misuse of the powers by the State against its citizens.
- Therefore, it is important to limit the powers of the State with the help of a set of rules according to which the state and the citizens should function.
- This basic law apart from defining the power and the limitations on the powers of the State should also define the rights of the citizens and the relationship between the State and the citizens.
- This rule book for governing a territory is referred to as the constitution.
- Apart from being the fundamental law, it also provides the basic philosophy of that nation.

TOPICS FOR THE NEXT CLASS: CONTINUATION OF CONSTITUTION, LAW, STATE, ETC.

CLASS - 2

A BRIEF OVERVIEW OF THE CLASS: (9:06 AM)

FUNCTIONS OF THE CONSTITUTION:

- It provides us with an organizational framework of the State ie it tells us who would make the laws and who would execute them.
- It tells us about the rights and the limitations of the rights of the citizens.
- It tells us about the basic philosophy of the nation.
- It tells us about the mode of choosing the members of different organs of the State.
- It defines the relationship between different administrative units of the State.

REASONS FOR THE SUCCESS OF A CONSTITUTION: (9:52 AM)

- 1. It should be written by those who have credibility, are respected, and also represents different sections of society.
- 2. It should consist of something for everyone especially the marginalized sections of society; for example, Schedule V and VI, also Articles 29 and 30.
- 3. It should be followed and respected and everyone should be governed according to the constitution without any discrimination based on status, etc.
- 4. To be successful, it should be rigid yet flexible. To be a successful constitution, it should be able to adapt to the requirements of the time.

- But at the same time should not be open to complete change to protect it from any adverse changes.
- 5. It should have constitutionalism.

CONSTITUTIONALISM: (10:23 AM)

- It is a concept according to which the powers of the state should be limited in nature.
- These limitations should be imposed by the constitution itself.
- In other words, constitutionalism protects the constitution and the citizens from arbitrary and recessive actions of the state.
- For example, according to Article 13, the state cannot make a law that is against the provision of fundamental rights in the constitution.
- Similarly, in Keshavanada Bharti Case, the Supreme Court held that the Parliament does not possess unlimited powers to amend the constitution.
- Also, any amendment should not disturb the basic values of the constitution.
- **Significance/Importance of Constitutionalism:** (10:36 AM)
- It prevents the state from becoming despotic in nature.
- It keeps a check on the arbitrary actions of the state.
- It protects the liberties of the citizens from excessive actions of the state.
- To protect the basic values and principles of a democratic society.
- To protect the diverse culture and traditions of the society.

CONSTITUTIONALISM WITHOUT A WRITTEN CONSTITUTION: (11:14 AM)

- It is possible to have Constitutionalism without having a written constitution as in the case of the United Kingdom
- Constitutionalism depends on several factors:
- 1. The history of institutions
- 2. Societal values and attitudes toward those institutions
- 3. Philosophy of the society
- 4. Provision of the constitution

MAKING OF THE INDIAN CONSTITUTION: (11:52 AM)

- The Constitution was written by the Constituent Assembly of India consisting of 299 members who were elected indirectly by the members of Provincial Assemblies and a few others who represented the princely states
- The constitution advisor to the constituent assembly was given the responsibility of writing the first draft of the constitution to make the work more structured, the constituent assembly was divided into various committees that were given the task of preparing reports on different matters assigned to them

- The drafting committee chaired by Dr. Ambedkar scrutinized the draft prepared by Sir BN Rau and the other committees and presented its own draft for consideration by the constituent assembly.
- The assembly debated the draft constitution and various amendments were suggested by members which were fiercely debated on the floor of the house.
- Some of these amendments were adopted and several others were dropped.
- The constitution was ready for adoption on 26th November 1949 and came into full force on 26th January 1950.

TOPICS FOR THE NEXT CLASS: CONTINUATION OF OBJECTIVE RESOLUTION, AND SALIENT FEATURES OF THE INDIAN CONSTITUTION.

Class 3

INTRODUCTION (9:05 AM)

- Importance of the objectives of the Constitution.

OBJECTIVES RESOLUTION (9:11 AM)

- These are supposed to be the guidelines for drafting the constitution in India.
- Delineates fine principles to be followed to chalk out the details of the Gol.
- Similar to the summary of the Constitution of India.
- The Constituent Assembly began its work by adopting the Objectives Resolution that stated the lofty ideas and the goals of the Indian constitution.
- These ideas guided the Constituent Assembly of India in writing the constitution and making course corrections whenever it deviated from its original goals.
- This Objective Resolution ultimately went on to **become the Preamble to the Indian Constitution.**

SALIENT FEATURES OF THE INDIAN CONSTITUTION (9:41 AM)

(1) It is a modern and borrowed constitution

- Indian Constitution is a modern constitution in the sense that it carries modern ideas and values unknown to society in Medieval times.
- For example, Indian Constitution emphasizes heavily on values such as equality and liberty.

- Not only that, several provisions of the constitution are borrowed and adapted from other constitutions of the world.

Adoptions from different parts of the world (9:54 AM)

State	Features inspired
Britain	Parliamentary system (Election of MPs, Election of speaker, Rules and Procedure, Rule of Law, single citizenship, offices of C&AG, Attorney General, etc.)
America	Fundamental Rights, Written constitution, having a preamble attached to the Constitution, the concept of having a President, impeachment of the President, Constitutional supremacy, Judicial Review, etc.
Canada	Division of powers between the Union and the states, the position of Governor.
South Africa	The procedure for amendment of the constitution.
Soviet Union	Socialist principles and values
Japan	Concept of Procedure established by the law

Germany	Emergency Provisions
Ireland	Directive Principles of State Policy
France	The concept of liberty, equality, and fraternity

- The above-borrowed provisions have led to criticisms that the Constitution of India is a slavish imitation of the West.
- There is no doubt that the constitution makers picked up several provisions from other constitutions of the world, yet, one can not deny that it was not possible to write a constitution from scratch given the date and the time of its inception.
- Therefore, constitution makers learned from the experience of the other constitutions and made adjustments according to the Indian needs.
- In fact, several provisions are unique to the constitution of India and can not be found in the other constitutions of the world.

Unique provisions (10:26 AM)

- Article 17: Abolition of untouchability
- Articles 29 & 30: Cultural and educational rights for the minorities
- Article 136: Special Leave Petition- powers of the Supreme Court
- Article 262: Mechanism for the resolution of Inter-State River Water Disputes
- Article 25-28: Indian concept of secularism
- Schedule V and Schedule VI for special administrative machinery for the Tribal dominated areas

Question: It is often criticized that the Indian constitution is a blind copy of the other constitutions of the world. How far do you agree with this view? Justify your stand with the help of objective arguments. (10 Marks/150 Words)

(2) Longthiest Constitution of the world (10:47 AM)

- **Indian constitution is the lengthiest constitution of the world as it includes:**
- (a) Provisions for both the States and the Union.
- (b) It has provisions to accommodate the different sections of society, for example, special provisions for SCs, STs, etc.

- (c) Details related to administration have been provided in the constitution itself.
- (d) It is based on the GoI Act 1935 which itself was a bulky document.
- (e) It was written by the lawyers.

(3) Guaranteed Fundamental Rights (FRs) (11:15 AM)

- The Indian Constitution under Part III provides guaranteed FRs where the guarantor is the Supreme Court of India.
- It means that in the case of violation of Fundamental Rights, one can approach the Supreme Court of India directly for the enforcement of these rights.

(4) Written Constitution (11:27 AM)

- A written constitution is one, where all the provisions of the constitution are written in one place in the form of a book.
- A specially elected or appointed body is given the task of writing the constitution and the institution of the state is established according to the constitution.
- Such countries follow the concept of Constitutional Supremacy where all the institutions have to function according to the provisions of the constitution.
- Britain on the other hand, has an unwritten constitution.
- It means that there is no separate book where all the constitutional provisions are codified.
- In fact, in Britain, all the laws made by the Parliament are considered to be a part of the constitution.
- It means that in Britain, the parliament came into existence first, and the constitution was written by the parliament.

(5) Parliamentary form of Government (11:43 AM)

- Parliamentary form- A common set of members between the House of People and the Council of States.
- Executive compulsorily comes from Legislature.
- Ministers can come from either of the houses.
- In the Presidential system, on the other hand, the ministers may or may not be from the senate. There is forced diversity in the Parliamentary form of government.
- India chose the parliamentary system instead of the Presidential because of the responsibility that comes with the former instead of the stability that comes from the latter.

- India chose the parliamentary form of government in which the members of the executive are compulsory members of the legislature i.e. both the executive and the legislature are fused into each other.
- The party or the coalition of the parties should enjoy a majority in the directly elected House and since the government owes its existence to the support enjoyed by the Lok Sabha, it may be removed from power by the withdrawal of support by the Lok Sabha.
- In the Parliamentary system, the head of the State has nominal powers, and the real powers are vested in the Council of Ministers headed by the PM.

Presidential system (12:16 PM)

- In the Presidential system, the parliament and the President get elected separately and the president can appoint anybody as a minister but s/he should not be an MP.
- The real powers of the executive are given to the President who is both the Head of the State as well as the real head of the executive.

Question: Why did India choose a parliamentary form of government over a presidential form? (10 Marks/150 Words)

TOPIC FOR THE NEXT CLASS: CONTINUATION OF FEATURES OF THE CONSTITUTION

Class 4

INTRODUCTION (9:11 AM)

- Overview of the previous class.
- Discussion on the question given in the last class.

SALIENT FEATURES OF THE INDIAN CONSTITUTION

5. Parliamentary form of Government (continued from previous class)

Why India chose the Parliamentary form of democracy? (9:18 AM)

- **(a) Familiarity**
- The familiarity developed with the parliamentary system during the British rule in India.

- **(b) Responsibility as compared to stability**
- In the Presidential system, the President is vested with excessive powers and is not dependent on the support of the House of Representatives for remaining in power.
- This creates a ground for the abuse of powers.
- The Parliamentary system on the other hand offers more responsibility at the cost of stability.
- Therefore, it was more desirable to choose this system in a nascent nation such as India.
- **(c) Diverse nature of the society**
- It helps in accommodating the diverse nature of society in the executive which may not be possible in a Presidential system.
- **(d) Conflict between Legislature and Executive**
- In the Parliamentary system, the legislature and the executive are fused into each other and therefore, the chances of conflict between the two leading to a deadlock are minimal.

Merits of Presidential System (9:29 AM)

- **(a) Separation of Powers**
- In this system, the separation of powers between the Legislature and the Executive is much stricter in nature.
- As a result, the interference of the executive in the legislative domain is minimal.
- **(b) Competency of ministers**
- In this system, the President can choose ministers in the executive from a large talent pool.
- **(c) Swift decision making**
- It is swifter as the President enjoys clear-cut powers.
- **(d) Stability**
- The Presidential system provides more stability as the President does not need to appease the legislature.
- **(e) Primary focus**
- In this system, the legislature's primary focus is on enacting the laws rather than devising ways to criticize the executive.

Question: What were the reasons for India to choose the Parliamentary system over the Presidential system? What are some of the lessons that the Presidential system in the USA can teach Indian democracy? (150 Words/ 10 Marks)

6. Independent and Integrated Judiciary (9:55 AM)

- Independent Judiciary means the Judiciary that is free from the influence of the executive and the legislature.
- Judicial Independence is very important as it is the guarantor of Fundamental Rights, and is supposed to ensure that the organs of the State function according to the limits of the Constitution and it is supposed to decide federal disputes.
- Additionally, we have adopted an integrated system of Judiciary where separate courts do not exist for entertaining cases related to Federal and State laws.
- In India, the entire Judicial system is integrated from the top to the bottom where all the decisions of the higher courts are binding on the lower courts.

7. Federal setup of Government (10:24 AM)

- India has adopted a federal setup of government, where the powers of the state should be divided at two levels, not as per the ordinary laws but as per the constitution itself.
- **For example**, the powers have been distributed in legislative matters between the Union and the States as per **Schedule VII of the Constitution**.

8. Constitution as a tool for social welfare and a social revolution (10:27 AM)

- Indian constitution envisages India as a welfare state which would be concerned with the welfare of its citizens.
- **For example**, DPSPs cast a responsibility on the state to take care of citizens on numerous matters including health, education, livelihood, nutrition, etc.
- Not only that, the constitution is perceived as a tool to bring about a social revolution in India and to establish a more just and equitable society.

FEDERALISM (10:52 AM)

- The USA's model of Federalism is a gold standard.
- Federalism is a political system in which the powers of the state are divided at two or more levels.
- Usually, in a Federal Polity, there exists two levels of government, one at the center, and the other one at the state level.

Essential Features of Federalism (10:57 AM)

(1) Distribution of powers between the Union and the State

- Distribution of powers (legislative & executive) which is according to the Constitution and not as per the ordinary law of the land.
- This distribution of powers in legislative matters is mentioned in **Article 246 and Schedule VII of the Constitution**.

(2) Written Constitution

- We have a written constitution in India.

(3) Rigidity of the Constitution

- Any amendment to the constitution that affects the powers of the states requires approval from the state legislature along with approval from the Parliament.

(4) Independent Judiciary

- Federal disputes emerging between the Union and the states should be decided in an impartial manner by the Judiciary.
- Therefore, the independence of the Judiciary is an important factor in the functioning of a Federal setup.

(5) India a Quasi-Federal set up (11:28 AM)

- **Professor KC Wheare gave the following arguments for Indian being a Quasi-Federal setup:**
- Appointment to important posts
- Emergency provisions
- Financial powers that are tilted in the favor of the Union
- Distribution of legislative powers
- Parliament's powers to alter the boundaries of the states without much involvement of the states.

Why did India adopt a Federal system with a Unitary bias? (11:40 AM)

- **Political Reasons:**
- At the time of writing the Constitution, several secessionist forces were prevalent in India, and the only way to maintain the unity and integrity of the country was to have a strong center.
- **Economic Reasons:**
- Constitution makers believed that only Union-led institutions have the capability to drive the desired economic growth in the country.
- **Social Reasons:**
- Indian leaders were skeptical about the capabilities of the states to focus on issues such as gender equity, women's empowerment, and the upliftment of the marginalized sections of society.

Question: Several Constitutional experts have termed the Indian Constitution as a 'Quasi Federal' setup at the best. In this context, analyze whether India can be labeled as a Federal polity.

Reasons for adopting Federal set-up (12:03 PM)

- Constitution to a large extent is **based on the Gol Act of 1935** which itself was federal in nature.
- **India possesses a rich diversity** of languages, religions, cultures, ethnicity, etc. which could not have been accommodated in a Unitary form of government.
- Federalism brings government and governance closer to the people and ensures deeper participation of citizens in governance.
- The agenda for development at the time of independence require efforts to be made at both national and regional levels. And for this purpose Federalism was a more suitable system.

TOPIC FOR THE NEXT CLASS: PREAMBLE TO THE INDIAN CONSTITUTION

Class 5

INTRODUCTION (9:05 AM)

- Overview of the previous class and objective of today's class.

PREAMBLE TO THE INDIAN CONSTITUTION (9:06 AM)

- The Preamble of the Constitution is a text attached to the Constitution at the beginning to give an idea to the leaders about the provisions of the Constitution.
- The Preamble to the Indian Constitution was based on the **Objectives Resolution tabled in 1946** which guided the Constituent Assembly in the framing of the Constitution.
- The Preamble was the last part to be written but attached at the beginning of the document.

Significance of the Preamble to the Constitution of India (9:14 AM)

- It tells us about the **source of power or authority** for writing the Constitution.
- It tells about the **nature** of the Indian state.
- It tells us about the **objectives** of the Indian Constitution.
- It provides a **summary** of the Constitution.
- It tells us about the **philosophy** behind the Constitution.

- It contains the **enacting clause** that brings the Constitution into force.

Terms in the Indian Preamble (9:36 AM)

(1) We the people of India (9:38 AM)

- It signifies that the Indian Constitution has been written by Indian citizens and they are free to choose their destiny and hold the ultimate source of power for writing the Constitution.
- Read along with the last sentence, it signifies that the Constitution has not been imposed by an external authority and is a gift from the Indian people to themselves.

(2) Sovereignty (9:55 AM)

- It refers to being free from the control of any external authority.
- It means that the Indian State has powers to legislate and implement policies as long as it confirms the constitution.
- It also means that India is free to take those foreign policy decisions that are considered to be in its best interests but at the same time in today's era of globalization, no country can claim to be truly sovereign.
- **For example**, the economic sanctions imposed by the International community, WTO regulations, and loans given by IMF and World Bank have compromised the concept of sovereignty.

(3) Democratic Republic (10:09 AM)

- India adopted a republican form of democracy where the term '**Republic**' **denotes that** the Head of the Indian State would be elected and not a monarch.
- India also adopted a democratic model of government where the elected representatives of the citizens take decisions on their behalf.
- In other words, it means the rule of the people- where the people's wishes determine the government's policies.
- Indian Constitution makers by providing voting rights to all the citizens above a certain age brought democracy to life in India.
- Not only that the provisions in the Indian Constitution that emphasize social and economic equality highlight the philosophy of Indian democracy.
- As Patel said, "**Political democracy can not survive without social and economic democracy.**"
- Despite the above arguments, there are certain threats to democracy in India which include the role of money and muscle power in the elections, the lack of internal party democracy, and the compromised nature of media and the press.

(4) Socialist (11:43 AM)

- **Socialism (11:17 AM)**
- **Socialism means the state's control over resources.**
- **Post-war, it was the USSR that was the fastest-growing economy in the world.**
- **It was added to the Constitution by the 42nd Constitutional Amendment Act.**
- **Supreme Court says India is a socialist state but the meaning of the term has changed.**
- **It means that India is a welfare state- MGNREGA, PDS, NFSA, etc.**

- In its conventional context, Socialism refers to an economic system where most of the large industries are controlled by the state and only a small part of the economic system is under private ownership.
- After independence, India went by the conventional definition of Socialism and adopted a socialist pattern of the economy which was dismantled after the 1991 economic reforms.
- And as a result, the role of the private sector increased considerably.
- Therefore, the term socialist is not applicable to the Indian state in its original context today.
- Rather, it refers to a State that should take measures to promote the welfare of its citizens and prevent the concentration of economic resources in the hands of a few.
- **For example**, various provisions of the Constitution reflect the socialist nature of the Indian state: Article 31 C, Article 43, etc.
- In a nutshell, one can say that today's socialism is a tool to address the inequalities present in a deeply unequal society such as India.
- The Constituent Assembly deliberately kept the word '**Socialist**' out of the **Preamble** as it did not want matters related to economic policies of the state to be laid down in the Constitution but to be decided by the people themselves according to the time & circumstances.

(5) Secular (11:54 AM)

Secularism Meaning (11:55 AM)

- **It is a Western term.**

- Secularism as a concept means strict separation between Religion and State.
- The idea was to prevent the dominance of church in the society.
- Most of our leaders did not want the inclusion of this concept in our constitution because it would mean the state would not be able to interfere in religious practices.
- It would mean hindrance in eliminating social inequality in India, which exists because of Religion.
- Therefore, we did not choose to include the word in our constitution.

TOPIC FOR THE NEXT CLASS: CONTINUATION OF THE PREAMBLE

Class 6

INTRODUCTION (9:17 AM)

- Discussion of the question given in the class.

PREAMBLE OF INDIA- CONTINUATION OF TERMS USED IN THE INDIAN PREAMBLE

(5) Secularism (9:27 AM)

- The concept of secularism originated in the West in order to keep a strict separation between the Church and the State.
- In other words, the state can not interfere in matters of religion and vice-versa.
- But this concept is **not applicable to India** as the Indian constitution was perceived as a tool for introducing social reforms which would not be possible without interference in matters of religion.
- **The Indian concept of secularism** is different from that of the West as Indian society has always been a multi-religious one in comparison to Western society which has largely practiced one faith.
- In India, individuals are free to choose their faith but at the same time, special protections have been provided to minorities.
- Indian secularism is not an end in itself but a means to achieve the peaceful co-existence of different communities.
- The Indian state has been given the responsibility of preventing inter-religious and intra-religious domination.

- Therefore, one may say that **Indian secularism is a positive concept driven by the philosophy of 'Sarvadharmā Sambhava'** which ensures equal respect for all religions & sects.

French Concept of Secularism (9:40 AM)

- French concept is an extreme form of Western secularism.
- 80% of the people in France are atheists.
- They believe religion suppresses individual liberty.
- France follows the strictest form of secularism highlighted in the '**Policy of Laïcité.**'
- It was an attempt to protect the State and individuals from excessive interference from the Church.
- As per this policy, public officials are strictly prohibited from showing their religious values and beliefs in public spaces to prevent undue influence of religion in the State.
- **According to this policy**, even private individuals are prohibited and discouraged from exhibiting religious values and symbols in public places.
- In 2004, a law was enacted that prohibited school-going children from wearing any overt signs or clothes that would show their religious affiliations.
- It was criticized on the grounds that this concept of secularism was meant for a homogenous society and is not relevant for a multi-religious one.
- It is also perceived to be a threat to an individual's Right to Freedom and may result in the isolation of religious minorities aggravating their concerns and promoting radicalization.
- **Therefore, the French can learn a lot from India by nurturing the religious freedom of different communities rather than strictly practicing secularism in its traditional form.**

OBJECTIVES OF THE INDIAN CONSTITUTION (10:22 AM)

(1) Justice- Social, Economic, and Political

- The term Justice in the Indian Constitution focuses on addressing the inequalities prevalent in Indian society for time immemorial.
- The Constitution makers deliberately put Justice as the first objective in the preamble as without its attainment, achieving the other objectives would be impossible.

Social Justice (10:39 AM)

- It means the absence of a socially privileged class in society and no discrimination against any citizen on the basis of caste, religion, sex, etc.
- Various provisions in the Indian Constitution aim at securing social justice.
- **For example**, Article 17 (Abolition of Untouchability), Article 18 (Abolition of Titles), Article 23 (Right against exploitation), Article 24 (Prohibition of employment of children in factories), etc.

Economic Justice (10:41 AM)

- It refers to no discrimination between two people on the basis of income or wealth.
- Not only that it also involves the concept of equal distribution of wealth which is economic equality and the end of monopolistic control over the means of production and distribution.
- **For example**, Article 39 (B) and Article 39 (C) cast a duty on the Indian state to minimize the inequalities in income and to distribute the resources of the community to serve the common interests.

Political Justice (10:47 AM)

- It means equal and fair opportunities for the people to participate in political processes.
- It stands for granting equal political rights to all people without any discrimination on the basis of caste, color, religion, etc.
- **For example**, Article 326 extends the voting rights to all citizens on the basis of adult franchise.

(2) Liberty (10:50 AM)

Liberty vs. Freedom

- Freedom is the absence of restraints.
 - Liberty is freedom with restraints.
-
- Liberty means freedom along with restraints so that everyone's liberty can be protected.
 - The restraints should not be arbitrary in nature.
 - Therefore, liberty means the absence of arbitrary restraints.
 - The term liberty is used in the Indian Constitution with both positive and negative connotations.

- **Firstly**, it signifies an absence of any arbitrary restraints on an individual's freedom.
- **Secondly**, it signifies the creation of such conditions that provide essential ingredients necessary for the fullest development of any individual's personality.
- The Constitution promises **liberty of thought and expression** which is the cornerstone of any democracy.
- **For example**, Article 19 (1) (a)
- It also guarantees Liberty of Faith, Belief, and Worship which allows individuals to choose their beliefs and practice them according to their wishes.
- **For example**, Articles 25 & 26

(3) Equality of status and opportunity (11:20 AM)

- Another important objective of the Indian Constitution is to ensure equality.
- **Equality has been mentioned in terms of two variables:**
- **(a) Equality of status**
- This is the natural equality of all persons as equal and free citizens of India.
- **(b) Equality of opportunity**
- It means that people should not only be treated equally but should also be given a level playing field to improve their status.
- **For example, Articles 14 & 15** talk about **Equality of Status**, and **Article 15 (3)** is an example of Equality of Opportunity that provides the powers to the State to make special provisions for the advancement of downtrodden sections such as women and children.

(4) Fraternity (11:26 AM)

- It means '**oneness and the spirit of brotherhood.**'
- According to the Constitution, Indian citizens should try and coexist peacefully.
- There is no explicit provision in the Indian constitution that highlights this aspect.
- But, it is present in the spirit of the Indian Constitution.
- **According to Dr. Ambedkar**, without fraternity, equality, and liberty would be useless as they would always require an external constable to enforce the order.

(5) Dignity of an individual (11:37 AM)

- It was a supreme value during our freedom struggle as the entire movement was aimed at ending the second-grade treatment given by the British to the Indians.
- **For example**, Provisions such as Articles 17 & 23 focus on ensuring the dignity of an individual.

(6) Unity and Integrity of the nation (11:40 AM)

- To ensure adherence to all the above values maintaining the unity & integrity of the nation is important because an individual exists due to the nation and vice-versa.

PREAMBLE: PART OF THE INDIAN CONSTITUTION OR NOT?

- **Amenability of the Preamble (11:43 AM)**
- Article 368: Provisions for an amendment to the Indian Constitution.
- The question is: Is the preamble a part of the Constitution or not?
- If it is a part, whether Preamble can be amended according to the procedure mentioned in Article 368?
- In **Berubari Union Case (1960)**, SC said Preamble is not a part of the Constitution => Article 368 does not apply to the Preamble.
- In 1973, **Keshavananda Bharti Case** (the largest constitutional bench to date), SC overturned its earlier opinion and ruled that Preamble is a part of the Constitution of India and can be amended under Article 368.
- However, such an amendment should not change the basic philosophy of the Constitution.
- It also said that Preamble is not legally enforceable.
- However, its legal value lies in being able to help reading of the Indian Constitution in case of ambiguity.
- It also helps the courts in determining whether a law is constitutional or not.

- The Supreme Court in the **Berubari Union Case** held that the Preamble is not a part of the Constitution and therefore, is not subject to amendment according to Article 368.
- This opinion was overturned in the **Keshavananda Bharti case**, where the court stated that since the Preamble was adopted like any other provision of the Constitution it should also be considered a part of the Constitution and therefore, may be amended like any other provision according to Article 368.
- The Court also stated that the Preamble is not legally enforceable on its own.
- But, it may be of considerable utility in understanding the meaning of ambiguous provisions in the Constitution or to decide the Constitutional validity of a law.
- Since it is the key to the minds of the makers of the Constitution, one may unlock the true spirit behind the provisions of the Constitution by analyzing the Preamble.

TOPIC FOR THE NEXT CLASS: CONTINUATION OF PREAMBLE

Class 7

INTRODUCTION TO INDIAN CONSTITUTION (9:09 PM)

- In **Indian Constitution**, there are **395 articles**.
- It consists of **clauses** and **subclauses**.
- There are **22 parts** which are divided into chapters and chapters are divided into articles.
- **Part I-Union and its Territory**-Articles 1-4.
- **Part II- Citizenship**- Articles 5-11.
- **Part III-Fundamental Rights** -Articles 12-35.
- **Part IV-Directive Principles of State Policy**- Articles 36-51 -Non-enforceable.
- **Part V-Union**-
 - Chapter I-Union executive -Articles 52-78.
 - Chapter II-Union Legislature-Articles 79-122.
 - Chapter III- Ordinance Making power-Articles 123.
 - Chapter IV-Union Judiciary-Articles 124-147.
 - Chapter V-Comptroller Auditor of India-Articles 148-151.
- **Part- VI -State.**
- **Part VIII-Union Territories.**
- **Part IX -Panchayats**-
 - Part IXA -Municipalities.
 - Part IXB- Co-operative societies.
- **Schedules of the Indian constitution (10:05 AM)**
- The constitution makers originally included 8 schedules in the Indian constitutions.
- They carry additional information related to the provisions in the main body of the constitution.
- This schedule serves **two objectives**-
 - To reduce the bulk of the main body of the constitution and to provide flexibility to the parliament as some of the provisions can be amended by the Parliament with a simple majority.

SCHEDULES OF THE INDIAN CONSTITUTION	PURPOSE
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First Schedule	Name of States and Union Territories.
Second Schedule	Allowances, privileges, and emoluments.
Third Schedule	Oath and affirmation.
Fourth Schedule	Allocation of seats for States and Union Territories in the Rajya Sabha.
Fifth Schedule	Relation to the administration and control of scheduled areas and scheduled tribes.
Sixth Schedule	Relation to the administration of tribal areas in the states of Assam, Meghalaya, Tripura, and Mizoram.
Seventh Schedule	This schedule deals with the three legislative lists: Union, State, and Concurrent.
Eight Schedule	22 official languages recognized by Indian Constitutions.
Ninth Schedule	State acts and regulations deal with land reforms and the abolition of the Zamindari system. It also deals with the acts and regulations of the Parliament dealing with other matters.

Tenth Schedule	Anti-Defectin law.
Eleventh Schedule	Functions can be performed by Panchayats.
Twelfth Schedule	Functions can be performed by Municipalities.

DIFFERENT MAJORITIES (10:37 AM)

- **Simple majority-**
- This means the majority of the members present and voting must support or vote in favour.
- This is also known as functional or working majority.
- This majority is required for a number of purposes including for passing ordinary bills, for declaring a financial emergency. For passing no confidence, confidence motion, the election of the speaker and deputy speaker.
- **Example-**
- Total strengths- 100, vacancy 5 (Death, resignation, disqualification), Effective strength 95, Present 90, Voted 80, Majority required is 41.
- **Effective majority**
- It refers to the majority of the then members of the house, to obtain the then membership we need to subtract the vacancies from the total membership of the house.
- $\text{Effective strength} = \text{Total strength} - \text{vacancies (Death, resignation, removal, etc.)}$
- This majority is required to remove the speaker and deputy speaker of Lok Sabha, removal of the Vice president in Rajya Sabha, and removal of deputy chairman in Rajya Sabha.
- **Example-**
- Total strength is 100 vacancy is 10 due to death resignation and disqualification, Effective strength is 90, and Effective majority is 46.
- **Absolute majority-**
- It refers to the majority of the total membership of the house.
- In the normal business of parliament or state legislature, it is not used.
- It is required after the general election for the formation of the government at the centre and states.

- **Special majority-**
- It requires a majority of the total membership of the house and a majority of not less than 2/3rd of members present and voting.
- Apart from constitutional amendments, it is utilized for the **following purposes-**
- Removal of Judges of Supreme Court and High Courts.
- Removal of the Chief Election Commissioner and CAG.
- Approval of national emergency
- Legislation by the state legislature for abolition and creation of legislative council in the state.
- Example-
- Total strength 100, Absolute majority 51.
- Total strength 100, Vacancy 5, Effective strength 95, Present 90, Voted 90.
- The majority required to amend the constitution shall be the absolute majority (static 51) and 2/3rd of the members present and voting that is 60.
- Both conditions should be fulfilled and a higher number shall be taken into account.
- **Procedure for the Amendment of the Constitution-**
- An amendment to the Indian constitution can be initiated by the introduction of a constitution amendment bill in either house of parliament.
- Such a bill must be approved by a special majority in each of the houses.
- It must be presented to the President for his approval who shall give his approval and thereafter the constitution shall stand amended according to the provisions of the bill.

THE TOPIC OF THE NEXT CLASS- IS THE CONTINUATION OF DIFFERENT MAJORITIES.

Class 8

INTRODUCTION (9:08 AM)

- Overview of the previous class.

AMENDMENT PROCESS OF THE CONSTITUTION (CONTINUED FROM THE PREVIOUS CLASS) (9:10 AM)

Provisions requiring ratification by the State Legislature (9:21 AM)

- The provisions which affect the federal structure of India:

- (1) Distribution of Legislative powers between the Centre and the states.
- (2) Distribution of Executive powers between the Centre and the states.
- (3) Financial arrangements between Union and the states.
- (4) Provisions related to the Supreme Court & High Court of India.
- (5) Provisions related to elections of the President of India.
- (6) Provisions related to GST or GST Council.
- (7) Seats in Rajya Sabha for the states
- (8) Change in the text of Article 368 itself.

Article 368 (2) (9:36 AM)

- **Article 54 (Election of President), Article 55, Article 73 (Executive powers of the Central Government), Article 162 or Article 241 (High Courts of UTs), Article 279 (A) or**
- **Chapter IV of Part V (Supreme Courts), Chapter V of Part VI (High Courts), Chapter I of Part XI (Legislative Relations), or**
- **Any of the Lists in the Seventh Schedule (Distribution of the Legislative powers), or**
- **the representation of States in Parliament, or**
- **the provisions of this article**
- **All the above articles match with what we classified above.**

Examples of how this provision comes into the picture (9:55 AM)

- **(1) Panchayat functions or Local Governance is a state subject.**
- **73rd Constitutional Amendment Act is an example of the application of 368 (2).**
- **(2) In Rajendra N Shah judgment, SC said that some of the provisions of the 97th Constitutional Amendment Act are unconstitutional. Because of procedural flaws, this act was declared void by the Honourable SC.**

PART I OF THE INDIAN CONSTITUTION: THE UNION & ITS TERRITORY (10:05 AM)

- It contains 4 Articles: Articles 1 to Article 4.

Article 1 (10:18 AM)

- Article 1 of the Indian Constitution has **3 clauses**.

Article 1(1)

- It provides the name by which India should be called.
- According to it, we may use the terms **India or Bharat**.
- Further, this provision also highlights the relationship between the Union and the States.
- The Constitution makers deliberately used the term '**Union**' in contrast to the term Federation which has been used in the USA.
- A '**Federation**' implies an agreement between the States leading to the formation of a Federation in which the states are free to move away from the arrangement.
- But, in India's context, the Union came into existence first, and then the States.
- As per **Dr. Ambedkar**, using the word 'Federation' would not have been conducive to the integrity of the nation as some states may have tried to move away considering the secessionist tendencies that were prevalent at the time of independence.

Article 1(2) (10:40 AM)

- It says that the States and their territories shall be as such mentioned in **Schedule I** of the Indian Constitution.
- It provides us with details on the States and the territories of the states that have been mentioned in Schedule I.

Article 1(3) (10:43 AM)

- Article 1(3) defines the term '**Territory of India**' which also includes acquired territories since India is a sovereign State.

Article 2 (11:17 AM)

- **Article 2** provides the procedure for admitting a state that exists outside the Indian Union (Eg: a Princely state) or for establishing a state from a territory that exists outside the territory of India.
- For this purpose, Parliament may pass a law and even lay down certain conditions.

- Parliament may by law form a new state by separation of territory from the state or by uniting two or more states.

Article 3 (11:40 AM)

- Article 3 provides the procedure for the reorganization of states within India.
- According to this article, Parliament should pass a law to alter the names, or the boundaries, to merge two states, or to divide into two states, etc.
- For example, in 2014, the AP Reorganization Act was passed by the Parliament under Article 3.

Special Procedure under Article 3 (12:03 PM)

- A bill for the above purposes shall be sent to the State Legislature concerned by the President to seek their opinion on the Bill, within a specified time period.
- After obtaining the views of the State, the President must recommend the Bill for introduction in either house of the Parliament.
- In this case, the views of the State Legislature do not have a binding effect on the Parliament.
- If the legislatures do not provide their views within the specified period, the Parliament is free to proceed in the manner it may deem correct.
- One may therefore say that obtaining the views of the State is a mere formality.
- In the case of UTs, there is no need to send the Bill to the UTs for obtaining their views.
- Once the Parliament passes the law and it receives the assent of the President, it shall be brought into force and the provisions of the Bill shall become effective.

Article 4 (12:08 PM)

- A law under Article 2 or Article 3 shall not be deemed as a Constitutional Amendment Act under Article 368 of the Constitution even though it may amend some of the provisions of the Constitution including Schedule I and IV.
- It, therefore, implies that the law would require a **simple majority** in the Parliament so that the Union has enough flexibility to reorganize the map of India.

Question: Why is the initial recommendation of the President required? (Homework)

TOPIC FOR THE NEXT CLASS: STATE REORGANIZATION

INTRODUCTION (9:05 AM)

- Overview of the previous class.

REORGANIZATION OF STATES (9:06 AM)

Categorization at the time of Independence

- **4 categories of states at the time of independence:**
- Part A: British Provinces
- Part B: Former Princely states
- Part C: Former Princely States + Chief Commissioner's Provinces
- Part D: Andaman & Nicobar islands

Committees formed for the Reorganization of States:

(1) SK Dhar Committee (1948)

- Cannot be a purely linguistic basis.
- Rather focus on geographical contiguity, financial self-reliance, Administrative viability, and Potential for development.

(2) JVP Committee

- To study the recommendations of the Dhar Commission Findings of the commission
- Rejected linguistic basis
- Security, Unity, and prosperity as criteria for reorganization

(3) Fazl Ali Commission

- Also known as the 1st State Reorganization Commission
- Criteria used by Fazl Ali Commission: Administrative criteria, economic efficiency, cultural homogeneity, and unity & integrity of India.
- Led to State Reorganization Act, 1956 (Article 3)

Demands in other regions (10:21 AM)

- A lot of communities demand separate statehood even now- Tulu Community (Coastal Karnataka), Kodawa community (in Coorg), Kongunadu (in TN), Vidarbha (North-East Maharashtra), Marusthal in Rajasthan, etc.

Reorganization of States in India (10:32 AM)

- At the time of independence, the states were categorized on the basis of historical, and political considerations.
- Within several quarters there existed a demand for the creation of states on the basis of language.
- It was driven primarily due to the reason that starting from the 1920s the provincial committees of Congress were organized on the basis of language.
- But, by the time of independence, the political leadership of the country had become reluctant to the linguistic organization of states.
- The government appointed **SK Dhar Commission** to examine this issue in detail.
- The commission rejected the idea and emphasized administrative convenience as a primary factor.
- The **internal committee of Congress (JVP Committee)**, examined the same question and reiterated the position of the Dhar Commission.

Fazl Ali Commission (10:38 AM)

- A popular agitation in South India demanded the creation of a separate Telugu-speaking state out of Madras.
- The events unfolded in such a manner that the government was forced to accept this demand.
- It opened up Pandora's box for the government and similar demands started to emerge from the rest of the country.
- The government appointed the **Fazl Ali Commission** to lay down the basic principles to determine the future of states in India.
- It provided a detailed set of recommendations resulting in action by the Parliament.

Parliament's Response (10:42 AM)

- The Parliament passed the 7th Constitutional Amendment Act, 1956 to do away with the categorization of states under Part VII.
- Subsequently, the State Reorganization Act, of 1956 was enacted according to Article 3 resulting in the formation of 14 states in total.

Linguistic Reorganization after 1956 (9:44 AM)

(1) Nagaland: 1957

- Naga Hill Tuensang Area was carved out of Assam UT

(2) Bombay

- Gujarat & Maharashtra were carved out of Bombay.

(3) Goa

- 1961: Goa joined the Indian Union

(4) Puducherry

- 1962: Pondicherry became a part of India

(5) Nagaland

- 1963: Nagaland was given a statehood
- Article 371 (A)- Special status to Nagaland

(6) Punjab, Haryana, Chandigarh

- 1966: Punjab, Haryana, HP, and UT Chandigarh were created
- Idea was over a period of time Chandigarh would be given to Punjab.
- 1971: Himachal was upgraded to a full-fledged state.

(7) North-East Reorganization

- 1971: Mizoram (earlier a part of Assam), Meghalaya, Tripura, and Manipur all started facing an insurgency.
- 1972: NEFA, Meghalaya, Mizoram as a UT
- 1972: Tripura & Manipur were given statehood

(8) Sikkim

- 1975: Sikkim joined India after a plebiscite. Chogyal kingdom was abolished.

(9) Rest of the Northeast

- 1987: Mizoram, Meghalaya, Arunachal Pradesh (NEFA) state was created.
- Mizo National Front dropped insurgency to join the democratic election process.

(10) Goa

- 1987: Goa state was formed
- 1987: UT of Daman & Diu was also formed.

(11) Delhi

- 1991: Delhi was deemed NCT and given a legislative assembly, with the power jointly shared by the Central Government.

(12) Uttaranchal, Jharkhand, and Chattisgarh

- Long-standing regional demands were heeded and,
- 2000: Uttaranchal was created out of UP, Jharkhand out of Bihar, and Chattisgarh out of MP.

(13) Telangana

- 2014: Telangana was created out of AP.
- Andhra Pradesh Reorganization Act, 2014.
- Hyderabad common capital for 10 years.

(14) J&K and Leh & Ladakh

- Jammu & Kashmir was divided into two UTs.
- 2019: J & K with a Legislative assembly
- 2019: Ladakh without a Legislative Assembly

(15) Dadra & Nagara Haweli and Daman & Diu

- The two UTs were merged into one in 2020.

Why was linguistic reorganization opposed? (10:45 AM)

- (1) Secessionist tendencies at the time of independence
- (2) Formation of Linguistic states may have strengthened regionalism, compromising national unity.
- (3) It may have led to many more such demands.
- (4) By the formation of linguistic states, minority languages become more vulnerable.
- (5) Due consideration must be given to administrative and economic factors.

Has the linguistic reorganization paid off? (11:01 AM)

- (1) It has helped in preventing internal conflicts as in the case of East Pakistan and Sri Lanka.
- (2) It has helped in maintaining India's cultural diversity.
- (3) The administration has been more efficient as a result of homogeneity.
- (4) The government could achieve mass literacy at a rapid rate due to the homogeneity of language.

Reasons for the demand for smaller states (11:23 AM)

- (1) Uneven economic development
- For Example, Vidarbha
- (2) Assertion of cultural or ethnic identity
- For Example, Gorkhaland
- (3) Popular mobilization due to political reasons
- (4) Government's negligence of certain regions

Arguments in favor of smaller states (11:26 AM)

- It would help in the decentralization of power and bring government closer to the people
- Greater accountability of the government to the citizens
- Would help in resolving issues related to the identity crisis for some of the ethnic groups
- Would help in the efficient utilization of resources
- Many years have passed since the fear of the balkanization of India which prevented the creation of smaller states.

Arguments against smaller states (11:31 AM)

- It would increase the number of disputes between the states Inter-State water disputes, boundary disputes, etc.
- Creation of newer states is a resource-consuming process and may lead to unnecessary expenditure on the creation of new infrastructure and administrative machinery.
- It may promote the feeling of regionalism and create bitterness between communities.

PART III: FUNDAMENTAL RIGHTS (11:35 AM)

- Rights, recognized by society are individual claims and protected by law.

Rights may be categorized into different categories depending upon the sources:

(1) Natural Rights

- These rights are given to us by nature, by the virtue of being human.
- They may or may not be protected by law.
- **For example**, the Right to eat, sleep, speak, etc.

(2) Statutory Rights

- These are those rights that are provided by the law and are given the protection of the law.
- Since they are given by the law, they can be taken away by the law.

(3) Fundamental Rights

- These are those rights that find protection under Part III of the Constitution.
- **They enjoy two special protections:**
- (a) The State can not make a law against these rights.
- (b) In case of their violation, one can approach the apex court directly for their enforcement.

TOPIC FOR THE NEXT CLASS: CONTINUATION OF PART III

Class 10

INTRODUCTION (9:11 AM)

- Overview of the previous class- What are rights?

Difference between FRs and Constitutional Rights (9:16 AM)

- Rights mentioned under part III of the Constitution are Fundamental Rights.
- All other rights in the Constitution are Constitutional Rights. For example, Article 300 A (Right to Property)

Statutory Rights (9:19 AM)

- Rights that are given by ordinary law of the land.
- For example, Rights under MGNREGA, NFSA, etc.

FUNDAMENTAL RIGHTS (9:25 AM)

- Right to Equality (Article 14-18)
- Right to Freedom (Article 19-22)
- Right against Exploitation (Article 23-24)
- Right to Religion (Article 25-28)
- Cultural & Educational Rights (Article 29-30)
- Right to Constitutional Remedies (Article 32)
- Article 31 (Right to Property) has been repealed.

Characteristics of the Fundamental Rights (9:28 AM)

- **(1) They are negative in character.**
- They limit the powers of the State. For Example, Article 16 (3)
- **(2) They are legally enforceable.**
- Supreme Court can be directly approached for their enforcement.
- **(3) They are not absolute in nature.**
- It means the State can impose restrictions on the exercise of the FRs.
- The powers of the state to impose restrictions on FRs are itself limited.
- **(4) Availability**
- Most of the FRs are available to both citizens and aliens.
- However, some of these are only available to citizens.
- For Example, Articles 15, 16, 19, 29, 30.
- **(5) Available against State only**
- Certain FRs are available against the State only.
- For Example, Article 15 (1) and 16 (2).
- Whereas, certain other FRs are available against individuals and the State.
- For example, Articles 17 & 23

Article 12 (9:47 AM)

- It provides us with the definition of the State under Part III of the Indian Constitution.
- **The state includes the following:**
- (1) Parliament of India and Legislature of states.
- (2) Union government and the Government of states
- (3) All local authorities within the territory of India or under the control of the territory of the states
- Local authorities have been defined under the **General Clauses Act of 1895**.
- According to this Act, **a local authority** would be any such authority that is functional locally and exercises government-like functions.
- **For example**, Municipalities will be local authorities. Others can be District Boards, Cantonment Boards, etc.

- (4) Other authorities within the territory of India
- The Supreme Court of India through its various judgments has expanded upon the meaning of the unclear terms provided in Article 12.
- In some of its initial judgments, the court held that only an authority exercising sovereign and government-like functions would be designated as 'other authorities.'
- **For example**, in the **University of Madras vs. Shantabai (1954)**, the SC held that the University of Madras is not a State within the meaning of Article 12 and the limitations imposed by Article 15 (1) are not applicable to the university.
- In **Mohan Lal vs. Rajasthan Electricity Board Case (1967)**, the SC held that the term '**other authorities**' under **Article 12** should include all the authorities created by the Constitution and other statutes which are empowered by the law.
- The court overruled its judgment in the **University of Madras vs. Shantabai (1954) case** and stated that an authority need not be engaged in governmental or sovereign functions to be termed as State.
- As a result, several bodies such as LIC, ONGC, RBI, and DU, could be termed as the State under Article 12.
- In **RD Shetty vs. Airport Authority of India, and in Ajay Hasia vs. Khalid Mujeeb** the court further expanded the definition of the term 'State' under Article 12.
- In this case, the court came up with the '**Test of Instrumentality**' to determine whether a particular authority is a State or not.

Test of Instrumentality (10:26 AM)

- **Principles:**
- (1) Whether the entire share capital of an entity is held by the State or not.
- (2) If the financial assistance given by the State meets the majority expenditure of that entity.
- (3) If the State enjoys deep and pervasive control over the entity.
- (4) If an entity enjoys a state-conferred monopoly.
- (5) If the functions performed by an entity are like public functions closely related to the functioning of the Government.

Whether Judiciary is State or not? (10:37 AM)

- The Judiciary may be classified as State or not, depending upon the functions it performs.
- **The Judiciary performs two types of functions:**
- **(1) Judicial Functions**
- According to it, the judiciary may pronounce judgments, orders, rulings, etc.

- When it performs judicial functions, it shall not be termed as State.
- **(2) Administrative Functions**
- Apart from Judicial functions, the judiciary exercises various administrative functions as well which include functions such as making rules to regulate its functioning and hiring staff for managing its administration.
- When the judiciary exercises such functions it may be termed as State.

Article 13 (11:14 AM)

- No law can be made or allowed to operate against the provision of Fundamental Rights.
- The former talks about the post-constitutional laws while the latter about the pre-constitutional laws.
- Article 13 is a special protection provided to the Fundamental Rights under the Constitution.
- It provides powers to the courts to declare a post-constitutional law or a pre-constitutional law as unconstitutional if it is found to be violative of the provisions of the Fundamental Rights.
- Therefore, in India, no law that is against the provisions of Fundamental Rights can be allowed to operate.

The Doctrine of Severability (11:35 AM)

- According to this doctrine, if a particular provision of law, offends the FRs, and if the provision is severable or separable from the rest of the law then only the offending provision would be declared unconstitutional and void.
- **This would be contingent on the following conditions:**
- (a) Whether the valid and the invalid parts can be separated from each other.
- (b) Whether the invalid part is so important that the rest of the law would lose its meaning without that part.
- (c) Whether the legislature had the intention to sever the rest of the law from the unconstitutional provisions.

Article 13 (2) (11:42 AM)

- The State shall not make any law which takes away or abridges the rights conferred by this Part and any law made in contravention of this clause shall, to the extent of the contravention, be void.
- The meaning of the term '**to the extent of the contravention**' is that not the entire law but only a part of it, i.e. inconsistent with the Fundamental Rights should be declared unconstitutional.

Article 13 (3) (11:49 AM)

- Article 13 (3) (a) provides the meaning of the term 'law.'
- Article 13 (3) (b) provides the meaning of the term 'laws in force.'

Meaning of the terms 'laws in force and 'law' under Article 13 (12:04 PM)

- **The definition of 'laws in force'** as applies to Article 13(1) is provided in 13(3)(b).
- According to this, 'laws in force' refer to those laws which are enacted by a competent authority or legislature in the territory of India before the commencement of the constitution and continue to remain in force.
- **The definition of the term 'law'** provided in Article 13(3)(a) applies to Article 13(2).
- According to it, a law made by the legislature, as well as delegated or subordinate legislation including schemes and programs made by the executive.
- Essentially, it implies that even executive actions can be scrutinized by the judiciary on the grounds of violating Fundamental Rights.

Subordinate or Delegated legislation (12:09 PM)

- In modern times, the process of administration has become extremely complex, and as a result, the legislature is not able to provide all the details in a law made by it.
- Therefore, this task is left upon the executive to make detailed provisions that go by different names such as by-laws, rules, notifications, regulations, etc.

TOPIC FOR THE NEXT CLASS: CONTINUATION OF FUNDAMENTAL RIGHTS

Class 11

INTRODUCTION (9:14 AM)

- Discussion on answer writing.
- Overview of the previous class.

FUNDAMENTAL RIGHTS (CONTINUED FROM THE PREVIOUS CLASS)

First Amendment and Land Reforms (9:21 AM)

- British in India had introduced the **Zamindari system**.
- A zamindar would act as a land revenue-collecting middleman between the British and the farmer.
- **After independence, the people in India wanted to do three things:**
- (a) Abolition of Zamindari
- (b) Land ceiling laws
- (c) Security of tenure, and rights for peasants.
- State legislature would need to pass the laws to achieve the desired objectives.
- Bihar was the first to pass such a law. They passed the **Bihar Land Reform Act of 1950**.
- But, it was contended by the Zamindars, that these laws were against the Fundamental Rights - **Article 14 (Right to Equality), Article 19 (1) (f) (Right to property), and Article 31 (No person shall be deprived of their land except according to the law.)**
- The court said that they agree, and therefore, Bihar High Court declared the law (Land Reform Act) null and void.
- This led to the Parliament looking for introducing exceptions to the Fundamental Rights, because land reforms were a necessary requirement.
- This led to the amendment of the **First Constitutional Amendment Act which added two Articles and one Schedule to the Indian Constitution**.
- **Article 31 A:** No law made for achieving certain purposes can be declared unconstitutional on the grounds of **violating Articles 14, 19, and 31** shall be declared void.
- In a nutshell, it can be said to be an exception to Articles 14, 19, and 31.
- **Article 31 B:** Provides an exception **to all the FRs**. If there is a law that has been declared unconstitutional on the grounds of violating Fundamental Rights and if that is placed in Schedule IX, it shall be valid again.
- **Schedule IX:** Any law placed in Schedule IX shall be immune from Judicial Review under Article 13 for violating Fundamental Rights.
- The First Law placed under Schedule IX was, therefore, Bihar Land Reform Act.
- However, the **First Constitutional Amendment Act of 1951** was again challenged by the Zamindars in SC on the ground of abridging the Fundamental Rights under Part III.
- Therefore, it should be declared as void under Article 13 because CAA is also a law according to Article 13 (under **Shankari Prasad vs. UOI**).
- This was contested by the Govt by stating that CAA is not a law under Article 13. They enjoy a special status which means that they are not subject to Judicial Review.

Shankari Prasad Case, 1951 (10:16 AM)

- The SC said that the Parliament of India has the power to make two kinds of laws:
- (a) Constitutional Amendment Act (under Article 368 which is nothing but the exercise of constituent powers by the Parliament)
- (b) Ordinary laws (which are made by the Parliament under its ordinary legislative powers)
- The court observed that a law made under Article 368 shall not be subject to the provisions under Article 13. **Essentially, Article 368 shall prevail over Article 13.**
- It can also be said that Parliament shall prevail over Judiciary.

Sajjan Singh vs. State of Rajasthan, 1965 (10:25 AM)

- The question of Article 368 being a law came up under question again.
- A 5-judge bench (as in Shankari Prasad Case) was again formed.
- The bench, this time as well said, CAA is not a law. (3:2)
- The two dissenting judges were Justice Hidayatullah (who also worked as an Acting President once) and Justice Mudholkar.
- **Justice Hidayatullah opined** that the constitution of India was formed by very learned lawyers, and it is not possible that they wanted FRs to be amended so easily. There is no point in the constitution without FRs. They are the soul of the Constitution. He said that they can not be amenable, because if Constitutional forefathers would have wanted, they would have made them Amendable.
- Also, this way (by allowing parliament to amend the entire constitution of India), India would be equating Parliament to a Constituent assembly. But, we have adopted the concept of Constitutional supremacy and not Parliamentary supremacy.
- **Justice Mudholkar opined** that the Constitution of India including the FRs should be able to be amended by the Parliament, but certain FRs are very important, and they should not be changed. Basically, the **spirit of the Constitution or the Basic Principles of the Indian Constitution should not be allowed to change.**

Golaknath Case, 1967 (10:43 AM)

- Golaknath's judgment was based on Justice Hidayatullah's opinion in Sajjan Singh Case.
- The same issue is brought in front of the court- Is CAA subject to Article 13 or not?
- SC of India forms its largest bench to date (1967) ie. 11.

- The court gave a 6:5 judgment, where the court **overturned the judgment in Shankari Prasad and Sajjan Singh Case.**
- **The SC of India says that Constitutional Amendment Act is a law for the purpose of Article 13 and FRs are unamendable.**
- They said that FRs are unamendable and sacrosanct in nature.
- Essentially, it says that a CAA can not violate the FRs.
- However, now questions on the legality of Land Reforms came up.
- Court here relied on the judgment of the USA to introduce the '**Doctrine of Prospective Overruling.**'
- It means that the judgment in Golaknath would not be applied retrospectively, but, from today onwards (prospectively) FRs can not be amended and violated.
- It invalidated the legality of Article 31 A and Article 31 B.
- In other words, Article 13 was to prevail over Article 368.
- Judiciary was to overrule the Government.
- The Parliament, however, brought 24th and 25th Amendment acts to overturn the judgment in the **Golaknath case.**

24th Constitutional Amendment Act 1971 (11:29 AM)

- It added two provisions to the Indian Constitution- **Article 13(4) and Article 368(3).**
- Article 13(4): A law made under Article 368 shall not be subject to the provisions of this Article.
- Article 368 (3): A law made under this article shall be subject to the provisions of Article 13.
- Both are essentially the same.

25th Constitutional Amendment Act 1971 (11:35 AM)

- Added Article 31 C.
- It said that no law made to give effect to the provisions of Article 39 (b) and Article 39 (c) shall be challenged in any court on the grounds of violating Articles 14, 19, and 31.
- This completely nullified the judgment in the Golaknath case.

Keshavnanda Bharti Case 1973 (11:45 AM)

- Keshavnanda Bharti Judgment (24-4-1973) was based on Justice Mudholkar's opinion in Sajjan Singh Case.
- In this case, the 24th and 25th Constitutional Amendment Acts were challenged on the grounds of violating the FRs.
- This case saw the largest ever 13-judge bench of the Supreme Court.

- In this case, SC agreed that the 24th CAA is right and therefore, FRs can be amended. The judgment in Golaknath is wrong.
- The Constitution of India is an organic document and shall be amended according to the needs of the time.
- However, as a result of any such amendment the basic philosophy or soul of the constitution should never be changed (Justice HR Khanna was the man behind this). This was accepted by a 7:6 majority in the Supreme Court.
- This led to the formation of '**The Doctrine of Basic Structure.**'

The Doctrine of Basic Structure (11:59 AM)

- Certain values are included in the Basic Structure of the Constitution and these can not be amended.
- **Basic values (which can be added from time to time)**
- (i) Parliamentary Democracy
- (ii) Idea of equality
- (iii) Principle of Federalism
- (iv) Principle of being a Republic
- (v) Principle of Secularism
- The court also said that Article 13 can not be applied to Article 368, which means FRs are amendable.
- But, they should not breach the Doctrine of Basic Structure.
- The Constitutional validity of any CAA shall be judged on the grounds of the Basic Structure of the Constitution.
- It basically puts a limit on the powers of the parliament to amend the Constitution.

As an impulse to this judgment, the Gol superseded 3 seniormost judges to make A.N. Ray the Chief Justice of India.

The Doctrine of Implied Limitations (12:12 PM)

- Given by **Professor Conard**
- No constitution can be subject to a complete change as there are implied limitations on the powers of the Parliament to amend.

Criticisms of Doctrine of BS (12:16 PM)

- More powers to unelected judiciary.

TOPIC FOR THE NEXT CLASS: MINERVA MILLS CASE

Class 12

A BRIEF OVERVIEW OF THE PREVIOUS CLASS - (09:09 AM)

Discuss the adjectives that are attached to the word "republic" in the preamble to India's constitution. (150 words/10 marks) - (09:10 AM)

- **Approach -**
- **Introduction -**
 - The emphasis should be on how India has adopted a republican system as compared to the British system of having a monarch.
 - In India, the head of the state is elected.
 - Then mention - Let us know the meaning of each of these terms attached to the word republic.
- **Body -**
 - 1) Sovereign -
 - Mention the word sovereign. How do we see sovereignty in the context of India?
 - For example - If we don't want to align with any bloc we went for non-alignment.
 - But in the present circumstance, no nation is completely sovereign.
 - Mention the challenges to sovereignty.
 - 2) Socialist -
 - The word- state shall try to ensure the distribution of wealth.
 - Mention the socialist schemes of the government of India.
 - 3) Secular-
 - It means separation of state from religion.
 - But in India's context, it is different.
 - Mention the threats to secularism.
 - 4) Democratic-
 - How does democracy apply to the context of India?
 - Challenges to democracy.
 - Democracy - 73rd and 74th, as we have deepened the democracy at the grassroots level in India.
- **Conclusion-**
 - As we can see above the values that describe the Indian Republic, there also exist certain challenges to these values.

DOCTRINE OF BASIC STRUCTURE - (09:48 AM)

- The doctrine of Basic structure - (refer to the handout for the meaning of the basic structure).
- Even though the laws made under Article -368 are not subject to Article -13, there are implied limitations on the powers of parliament to amend the entire constitution.
- Any amendment to the Constitution should not have the effect of changing the basic principles of the Constitution.
- Justice Sikri stated that the constitution is similar to religion and as the peripheral values of any religion keep changing but the core values remain the same, the core values of the Indian constitution cannot be changed either.
- The court stated that it cannot give an exhaustive list of all the values that form a part of the basic structure of the Constitution and they would be expanded by the court on a case-to-case basis.
- **Some of these principles are as follows -**
 - 1) Federalism.
 - 2) Parliamentary democracy.
 - 3) Independence of the judiciary and judicial review.
 - 4) Secularism.
 - 5) Separation of powers.
 - 6) Free and fair elections.
 - 7) Principle of equality.
- A Constitutional Amendment Act under 368 could not be subject to scrutiny under Article -13 but can be examined on the grounds of the Doctrine of Basic Structure.

ARGUMENTS IN FAVOUR OF DOCTRINE OF BASIC STRUCTURE- (10:01 AM)

- 1) It limits the power of the state and helps in preserving the basic identity of the Constitution.
- 2) It is often termed a case that saved India's democracy as the changes introduced by the 39th Constitutional Amendment Act was draconian and would have reduced India virtually into a dictatorship.
- 3) It ensures that a popularly elected parliament does not exercise powers arbitrarily and whimsically.
- 4) The doctrine has been applied by the court in very limited cases and therefore the arguments against its misuse are unfounded.
- 5) Several other countries of the world have subsequently adopted this principle as a part of their constitutional schemes giving it global legitimacy.
- For example- Malaysia, Singapore, and Bangladesh.

ARGUMENTS AGAINST THE DOCTRINE OF BASIC STRUCTURE - (10:08 AM)

- 1) It has no constitutional basis and is purely an innovation of the supreme court.
- 2) It is considered to be violative of the Principles of separation of Powers, as it amounts to the judiciary writing a provision in the Indian Constitution.
- 3) It leads to the judges overshadowing the democratic mandate provided to the parliament.
- 4) It is very vague and subjective and ends up introducing uncertainty in the law-making process.

42ND CONSTITUTIONAL AMENDMENT ACT - (10:14 AM)

- It introduced Articles -368 (4) and 368 (5) to overturn the judgment in the Keshavananda Bharti case.
- These two provisions gave unlimited powers to the parliament to amend the Indian constitution and stated that no amendment can be challenged in any court on any grounds.

MINERVA MILLS CASE - (10:16 AM)

- In this case, the court struck down the validity of the above two provisions as they violated the power of judicial review which was considered to be a part of the basic structure, not only that in the Keshavananda Bharti case itself, the court had stated that the parliament cannot claim to have unlimited powers to amend the constitution.

SCHEDULE -9 OF THE INDIAN CONSTITUTION - (10:40 PM)

- It was introduced in 1951.
- Schedule -9 largely consists of land reforms.
- There are 284 laws in Schedule -9 at present, these laws have provided protection.
- Many of these laws have no relationship with land reforms.
- For example- Tamil Nadu reservation provisions.
- The original objective of Schedule -9 was social legislation not reservation, or the essential commodities Act.
- So, isn't Schedule -9 violative of judicial review given to the courts in India?
- Courts have no power to see what is written in Schedule- 9.
- So Schedule -9 is taking away the power of judicial review from the courts.
- So, in the 2007 judgment of SC of India - IR Coelho VS state of Tamil Nadu, no judicial review even if a law is violative of fundamental rights.
- After 1973, If a law is mentioned in Schedule -9, it shall be subject to judicial review of the courts on the grounds of violating the basic structure of the Constitution.

- As the doctrine of basic structure cannot be applied retrospectively.
- Articles- 14, 19, and 21 forms a part of the basic structure of the constitution of India, and therefore any law placed in schedule -9, after the 24th of April 1973 shall be subject to judicial review on the grounds of violating Articles- 14, 19, and 21.
- The court further stated that no blanket immunity would be provided to laws placed under schedule-9, after the 24th of April 1973.
- The court also clarified that Article-14, 19, and 21 forms a part of the basic structure of the constitution, and the court can review the law under schedule -9 on the grounds of violating the above fundamental rights and in the general basic structure of the constitution.

ARTICLE - 14 (11:40 AM)

- Article -14 is a negatively worded article that restricts the state from doing certain things.
- It is available to both citizens as well as to non-citizens.
- It includes the concept of equal protection of the laws and equality before the law.
- **a) Equality before the law-**
- It is a British concept according to which no one is above the law and in front of the law everyone shall be equal.
- There shall be no special privileges in the favor of any individual.
- The problem with equality before the law is that it treats two people placed in different circumstances in an equal manner resulting in inequality.
- **b) Equal protection of the laws -**
- It is an American concept according to which equals should be treated equally and unequals unequally.
- All persons in similar circumstances should be treated in the same manner.
- According to it, special privileges may be given to those who are placed in a disadvantageous position.
- For example- The reservation position for women under 15(3) and for the SCs STs under 16(4).
- **Implicit meaning under Article-14 -**
- The supreme court in **EP ROYAPPA VS STATE OF TAMIL NADU** held that equality and arbitrariness are sworn enemies.
- Any action of the state which is arbitrary even to the slightest degree is violative of Article -14.
- The judiciary in this case has also held that principles of natural justice are implicit in Article-14.
- **Principles of natural justice -** (it is a subset/part of the concept of equality).
- a) No one can be a judge in their case.

- b) Every person who is a party in a case has a right to a fair hearing.

EXCEPTIONS TO ARTICLE-14 (12:07 PM)

- As per Article 361 (1) The president and the governor are not answerable in any court for the exercise of their official powers and duties.
- 2) No criminal proceeding can be initiated or continued during their term of office.
- 3) No process for arrest or imprisonment can be made during their term of office.
- 4) No civil proceeding or sued claiming relief can be initiated against the president or the governor during their term of office for even a personal act done before or after entering the office without giving two months' notice.
- 5) Diplomatic immunity is provided to foreign diplomats, counselor representatives, and officials of international organizations.
- 6) Under Article-105 and 194, no act of an MP or a legislature in the performance of their duties in the house can be called into question in any court.

THE TOPIC TO BE DISCUSSED IN THE NEXT CLASS WILL BE THE CONTINUATION OF ARTICLE - 14, ARTICLE-15, AND ARTICLE-16 AND THE RESERVATION IN INDIA.

Class 13

A BRIEF OVERVIEW OF THE LAST CLASS: (01:07:00 PM)

- Article 14- Equality before the law & equal protection of laws.

POSITIVE DISCRIMINATION: (01:11:00 PM)

- Equal protection of laws means the State can make positive discriminations for certain classes of individuals based on objective criteria.
- The State can not make any arbitrary decisions and they can be challenged in the court of law on the grounds of violation of the Right to Equality.
- The state needs to follow certain conditions:
 1. The State needs to identify those who shall get the benefits of these positive discriminations- Classification.
 2. The purpose of classification must have a rational nexus or logical relationship with the intelligent differentia.
- Identification has to be done on the basis of objective criteria - It is called 'Intelligible differentia.'

- One example of an irrational nexus would be that of a higher entertainment tax on the basis of the language of the movie.

ARTICLE 15: (01:29:00 PM)

- Originally this Article had only 3 clauses.
- Article (1):
- The State shall not discriminate against any citizen on grounds only of religion, race, caste, sex, place of birth, or any of them.
- So discrimination can be allowed on other grounds like age, residence, education, income, etc., and their combination of these with the above grounds like discrimination based on sex and age combined can be allowed.
- This meaning can be derived from the use of the term "Only of" mentioned in this Article.
- This Article is available only to the citizens of India and one can claim this Right only against the State.
- Therefore, if an individual discriminates against a citizen on the above grounds, no remedy shall be available under this Article.
- Article (2):
- It is considerably different from 15(1) as it prohibits discrimination against any citizen both by the State and other individuals.
- According to this provision, no citizen shall be denied access to any public place or utility on the basis of grounds mentioned in 15(2).
- To be qualified as a public place two conditions need to be satisfied:
- a. It should be maintained fully or partially out of state funds, or
- b. It should be dedicated to the use of the public in general.
- Article (3):
- It is an exception to Article 15.
- It provided powers to the State to make special provisions for the advancement of women and children.
- It is an example of the equal protection of the laws considering the marginalized position of these two in society.
- For example, reservations have been provided for women as a part of the 73rd and 74th Constitutional Amendments Act.
- Similarly, provisions have also been made for the children under the Juvenile Justice Act for different treatment in case of committing a crime.

ARTICLE 16: (02:18:00 PM)

- It prohibits discrimination in matters of public employment.
- Article 16(1):

- It is a specific stance on the Right to equality.
- According to it, all citizens should be provided equal opportunity in matters of public employment.
- Article 16(2):
- No citizen shall, on grounds only of religion, race, caste, sex, descent, place of birth, residence, or any of them, be ineligible for, or discriminated against in respect of, any employment or office under the State.
- Two additional grounds of descent and residence have been added when compared to Article 15(2).
- Article 16(3):
- It is an exception to Article 16 and allows the parliament to make a law to impose some requirements(based on residence) for a category of jobs in a particular state or a UT.
- The States do not have the power to make such laws.
- Article 16(5):
- It is another exception to Article 16 which allows a law to prescribe religion as a ground for holding any office in connection with the affairs of any religious institution.

ARTICLE 16(4) & RESERVATIONS: (03:00:00 PM)

- Article 16(4):
- According to this, the State may make special provisions for reservations of appointments or posts in government jobs in favor of backward classes of citizens who are inadequately represented in the service of the State.
- Evolution of Reservation In India:
- The communal order of 1921 by the Madras government provided reservations in the state on the basis of religion and caste.
- This communal order was challenged in court in the Champakam Dorairajan vs State of Madras 1951 case.
- The petitioner contended that the order violated the provisions under Articles 14, 15, and 29.
- The State on the other hand argued that the communal order is constitutionally valid as it gives effect to DPSPs under Article 46.
- However, the court held otherwise and declared the order to be unconstitutional and void.
- It further stated that the State can not violate Fundamental Rights in the name of implementing the DPSPs.
- 1st CAA, 1951:
- In response to the above order, the Parliament amended the Constitution and added Article 15(4).

- It allows the State to make special provisions in favor of the socially and educationally backward classes of citizens for their advancement and for the SCs and the STs even though such provisions may be in contradiction to Articles 15 and 29.
- As a result, this provision gave constitutional validity to the communal order of the Madras government and several states followed Madras and introduced similar provisions for the reservations for Socially and educationally backward classes.
- Later Mandal Commission recommended 27% reservations for the OBCs and gave criteria to identify the backward classes.
- *Indra Sawhney v Union Of India & Ors* the Supreme Court set a maximum limit of reservation at 50%.

TOPICS FOR THE NEXT CLASS: Continuation of Reservations and related judgments.

Class 14

RESERVATION IN INDIAN CONSTITUTION (09:10 AM)

- **Article 15(4):** It provides for the reservation of socially and educationally backward classes of citizens or for the Scheduled Castes and the Scheduled Tribes.
- **Article 16(4):** It provides for the reservation of appointments or posts in favor of any backward class of citizens who in the opinion of the state are not adequately represented in the services under the State.
- Inadequate representation does not mean proportional representation.

MANDAL COMMISSION (09:35 AM)

- The government of India appointed the **VP Mandal Commission** to analyze the status of SEBCs and to provide recommendations for their upliftment.
- The commission used caste as a basic identifier to find out whether a caste can be categorized as socially and educationally backward or not.
- The commission noted that OBCs accounted for **52 percent** of the population of India and should therefore be provided **27 percent reservation** in government jobs.
- The figure of 27 percent was determined in order to avoid violating the 50 percent rule set by the court in **MR Balaji vs State of Mysore**.

- The VP Singh government issued an executive order in 1990 to extend reservations to the OBCs in central government jobs.
- This would be in addition to the **22.5 percent** reserved for the **SCs and STs**.
- Widespread protests broke out throughout the country and the executive order was widely opposed.
- A subsequent order was passed by the next government to categorize OBCs as Advanced and Backward.
- They extended the reservations to the tune of 10 percent for the economically backward classes not belonging to SC, ST, or OBC categories.
- These two orders were challenged in the Supreme Court in **Indra Sawhney vs Union of India**.
- The 9-judge bench of the court pronounced an elaborate verdict that form the basis for the reservations in India in the future.

INDRA SAWHNEY vs. UNION OF INDIA (09:50 AM)

- **Q.** Whether reservations are violative of the principle of equality and therefore the basic structure of the constitution?
- The court held that the **reservations provided** are **constitutionally valid** and not violative of the principle of equality.
- In fact, It stated that reservations are giving effect to the principle of equal protection of laws.
- **Q.** Is an executive order alone enough to extend reservations or does it require the law of the legislature?
- The court stated that Article 16(4) contains within it all that is required for extending the reservations in government jobs and such an extension does not require the law of the parliament.
- **Q.** Are reservations anti-merit in nature?
- The court stated that reservations are **not anti-merit** in nature as merit itself is a subjective concept rather they promote inclusivity in society.
- The court stated that it may happen that some people belonging to the reserved category may get a season on the basis of their own merit without needing the benefits of reservations.
- In that case, they will not be counted against the quota reserved for backward classes rather they would be treated as Open Category Candidates.
- **Q.** Can the 50 percent limit provided in the earlier cases be breached?
- The court stated that the **50 percent rule would be sacrosanct** and could only be violated in certain extraordinary situations to provide for backward communities in far-flung or remote areas.
- The Supreme Court in Leela Prasad Rao vs. State of AP held that government can breach the 50 percent rule to some extent but extreme caution was to be

exercised in such cases and a special case had to be made out by the government to justify the quota cap.

- **Q.** Are the caste-based reservation violative of Article 16(2)?
- The court held that Mandal Commission has identified backward classes on the basis of detailed criteria for social, educational, and economic indicators.
- Therefore it would be wrong to say that reservations have been provided on the basis of caste alone.
- **Q.** Can the reservation be provided in the case of promotions as well?
- The court held that reservation should not be allowed in promotions.
- The court states that if reservations are allowed in promotions the reserved candidates would feel they need not compete with others but only gaming themselves.
- As a result of this, they may not feel any need to work and excel as they would think their promotion is assured.
- It may create a sense of frustration in the general category. The court proverbially stated that 'crutches cannot be provided throughout one's career'.
- **Q.** Can the vacancies in the present year on the reserved category be carry forwarded to the next year?
- The court stated that carry forward is allowed but the overall limit of fifty percent should not be breached.
- **Q.** Can the reservation be provided on the basis of economic criteria alone?
- The court held that **reservation cannot be provided on the economic criteria** alone and therefore 10 percent of reservations for EBCs are invalid.
- **Q.** How should inclusion under the OBC community be decided?
- The court stated that the decision with respect to this matter should be taken by an **independent statutory commission** which will be formed under a law of the parliament.
- So that it can take decisions independent of the party in power.
- **Q.** Are there any exceptions to the reservation policy?
- The court stated that the decision with respect to this matter would include certain positions where merit alone should be the criteria for appointment.
- E.g. In the **armed forces**, or for Nuclear Scientists at BARC there should be no reservation.
- The court in **Preeti Srivastava vs. State of MP** held that reservation can not be designed in a manner that undermines the public interests or the general good of all.
- Therefore at the post-graduate level reservation should only be permissible to a certain extent.
- **Q.** Should the reservation be provided equally to members of the reserved community?

- The court introduced the concept of a creamy layer and held that reservation to OBC was only provided to those who pass the means test.
- As per the court, the creamy layer refers to all those sections of the OBC community who are socially, educationally, and economically advanced as compared to the rest of the members of that community.
- They constitute advanced sections of the community and end up appropriating all the benefits without allowing the benefits to reach truly backward sections.
- The court, therefore, asked the government to fix the norms of property and income to determine the creamy layer.
- In 1994, DoPT issued a circular laying down the guidelines for the identification of creamy layers.

PARLIAMENT'S RESPONSE (11:48 AM)

- The **77th CAA 1995** inserted 16(4A) that allows the state to extend reservation in promotion for the SCs and STs.
- **81st CAA** inserted article 16(4B) and overruled the Indra Sawhney Judgement.
- It allowed the government to consider backlog vacancies, and carry forward to subsequent years as a separate class of vacancies for calculating the 50 percent rule.
- **82nd CAA** added a proviso to Article 355 which was in response to the court's judgment in Vinod Kumar vs. Union of India (1996).
- This provision allows the government to relax the qualifying marks or lower the standards of evaluation for SCs and STs in matters of promotion.
- **85th CAA** added the term **consequential seniority** to Article 16(4A).
- It means that the Catch-up rule given by the court in Veerpal Singh Chauhan Case was overruled.

The topic for Next Class: M. Nagaraj Case and Reservation in Educational Institutions

Class 15

RESERVATIONS IN PROMOTIONS (1:13:35 PM)

- **M Nagaraja vs UOI case, 2018:**
- The constitutional validity of the 77th, 81st, 82nd, and 85th CAA were challenged.

- The court upheld the validity of all the 3 amendments and stated that reservations in promotions are not a matter of right but the Constitution has only provided an enabling provision for the same.
- And decisions on these matters need to be taken by the state.
- **The court further stated that providing reservations for SCs and STs must satisfy the following conditions:**
 - 1) Quantifiable data should be provided to justify the inadequacy of representation at different levels of government.
 - 2) Quantifiable data should be provided to prove the backwardness of SCs and STs.
- **Jarnail Singh vs Laxminarayana Narain, 2018:**
 - The court held that the judgment on the M Nagaraj case was faulty and stated that there is no need to collect quantifiable data to prove the backwardness of SCs and STs.
 - The court also stated that the concept of the creamy layer should be extended to SCs and STs as well and the state should consider the introduction of such changes in this policy.

RESERVATIONS IN EDUCATIONAL INSTITUTIONS (1:49:14 PM)

- The central and state governments continue to provide reservations to SC and STs in educational institutions according to Article 15(4).
- Not only that, but certain state governments provided reservations to OBCs in state-run educational institutions under Article 15 (4).
- The 93rd CAA, 2005 added article 15(5) to the constitution.
- The state can make a law to provide reservations in matters of admission in educational institutions in favor of SCs, STs, and OBCs.
- Such institutions may also include private educational institutions whether aided or unaided by the state.
- Also, such reservations would not extend to minority educational institutions set up under Article 30(1).
- This provision is an exception to Article 15 and Article 19(1)(G).
- The parliament subsequently passed CEI (Reservation) Act, 2005.
- It extended reservations in educational institutions run by the center to the tune of 27 percent for the OBCs apart from reservations for SCs and STs.
- Several state legislatures also passed laws in this respect.
- In the Ashok Thakur Vs UOI case, the court upheld the validity of the 93rd CAA as well as the CEI Act.
- It also observed that the issue of reservations in private educational institutions has not been raised in this case and the court shall decide upon its constitutionality in an appropriate case later.

- **EWS reservations:**
- The state can make provisions in EIs whether aided or unaided or private for EWS categories up to 10 percent and will belong to classes other than SEBCs.
- Article 16(6) provides reservations in government jobs and Article 15(6) provides reservations in Educational institutions.
- **Janhit Abhiyan vs UOI case, 2022:**
- **Petitioners challenged the constitutional validity of the 103rd CAA on the following grounds:**
 - 1) It violates the basic structure of the Constitution as reservations were provided for socially backward classes.
 - 2) It violates the Supreme Court judgment in MR Balaji and Indira Sawhney case which caps the reservations at 50 percent.
 - The court had also stated that economic criteria can't be the sole reason for determining backwardness.
 - 3) EWS reservation interfere with the FR under 19(1)(G) for private educational institutions.
- **Judgment of the court:**
 - The majority of judges held that poverty is an adequate marker of deprivation.
 - The court held that EWS is a separate and distinct category and is not barred from reservations under the constitution.
 - EWS is not violative of the basic structure and there cannot be a competition of claims for affirmative action based on disadvantages.
 - Reservations cannot be denied to EWS because they don't suffer from other disadvantages.
 - On the issue of breaching the 50 percent limit, the court held that the 50 percent ceiling is for backward classes and EWS is a distinct category in itself-- hence no violation.
 - Reservations in private institutions are not violative of the basic structure and this view is in concurrence with the earlier opinion provided in Pramati educational institutions case.
- **Observations made by Minority judges:**
 - The minority mentioned that laws that give benefits only on economic criteria don't violate the Right to equality on their own but reservations can only be about community and not individuals.
 - Exclusion of SEBCs from the EWS category is unconstitutional as it denies them a chance of mobility from a reserved quota based on historic discrimination to a reservation based on economic deprivation.
 - 50 percent breach limit, the minority stated that breach of this limit could eat up the rule of equality.

- The judges mentioned that the aim of the constituent assembly was to provide reservations only for a temporary period and that too within certain limits, otherwise, it would lead to reverse discrimination.

ARTICLE 17 (2:47:38 PM)

- States that untouchability is abolished and its practice in any form is forbidden.
- If any disability is imposed on an individual according to the practice of untouchability, such an act shall be deemed as an offense and shall be punished according to law.
- In the Devarajiah vs Padmana case, the court held that the word "untouchability" has been mentioned "which means that one cannot take the literal of the term rather it refers to an age-old practice carried out in India where a disability is imposed on an individual by the virtue of taking birth in a particular community.
- According to this practice, some persons have considered untouchables, and their physical touch is considered polluting.
- In the Sabarimala case, the court held that the practice of not allowing women of menstruating age inside the sanctum sanctorum of the temple is also a form of untouchability as it imposes a disability on the notion of pollution and purity.
- Article 17 provides powers to declare the exercise the untouchability as an offense and to provide the punishment for the same.
- In Safaikaramchari Andolan vs UOI court issued several directions for uplifting the status of manual scavengers and eventually in 2013 a law was passed by the parliament to abolish the practice of manual scavenging which is closely related to untouchability.
- Under Art 35(a)(ii) the Parliament alone has the power to make laws and provide punishment for the offenses mentioned in part 3.
- Hence, the parliament passed the abolition of the untouchability act in 1955 which was later amended in 1976 to be renamed The Protection of civil rights act.

ARTICLE 18 (3:36:52 PM)

- Article 18 abolishes the practice of awarding hereditary titles in India to an individual.
- Titles are nothing but suffixes or prefixes attached to one's name with the objective of giving special status to certain individuals.
- The state shall not award any titles except military and academic distinctions.
- As per this provision, Indian citizens are also prohibited from accepting any titles from a foreign state.

- Further, it also prohibits citizens as well as non-citizens holding an office of profit or office of trust under the Indian state from accepting any emoluments, awards, or recognition from any foreign state without the consent of the President of India.
- Even foreigners holding an office of profit under the Indian state are prohibited from accepting any title from a foreign state without the consent of the President of India.
- In SC in Balaji Raghavan Vs UOI stated that National awards like Bharat Ratna and Padma awards do not amount to titles under Article 18.
- They should not be used as suffixes and prefixes and the defaulter may be asked to forfeit their award.
- The court also laid down certain guidelines for the selection of awardees so that the abuse of these awards can be checked.
- It was held that there are no limitations on the maximum number of awards presently being given by the government which has reduced the value of these awards and objective criteria must be evolved to restore the glory of these awards.
- The courts justified the constitutionality of these awards on the basis of Art 51 (J) which imposes a duty on all the citizens to strive towards excellence.

The topic for the next class: Article 19.

Class 16

ARTICLE 19 (1:08 PM)

- **Article 19(1)(a)** provides the **right to freedom of speech and expression** to all the citizens of India
- The court has given an expansive meaning to this article through its various judgments
- For example, the court has stated that freedom of speech and expression is **not limited to words spoken and written** but also includes signs, symbols, gestures, etc.
- It also includes expression through various art forms such as music, drama, painting, etc.
- The court has stated that it also includes freedom of the press in **Sakal paper vs Union of India, Ben Colben vs Union of India, Indian Express vs Union of India**

- In **Navin Jindal vs Union of India**, the court held that it includes the right to hoist the national flag.
- In **Bijoe Emmanuel vs State of Kerala or Jehovah's Witness case**, 1986 the court stated that the right to remain silent is also a part of this provision.
- In **Association for Democratic Reforms vs Union of India**, it stated that the right to vote is also a part of this provision.
- In **People's Union for Civil Society vs Union of India**, the court stated that Article 19(1) includes the right of a citizen to vote for NOTA (None Of The Above) in the elections.
- In **Shreya Singhal vs Union of India**, the court declared Section 66A of the IT Act as unconstitutional and stated that the right to freedom of speech and expression extends to the modern means of communication as well, including the internet
- This section made it a **punishable offence** for any person to send grossly offensive or menacing information or communication via a computer resource or a communication device
- The court stated that **Section 66A** imposes excessive and unreasonable restrictions on Article 19(1)(a) and does not have anything in common with the grounds mentioned in **Article 19(2)** as a result it is unconstitutional or void.
- The court under this expanded meaning has stated that all the implicit rights under article 19(1)(a) can be restricted only on the grounds of 19(2).

IMPORTANCE OF FREEDOM OF SPEECH AND EXPRESSION IN A DEMOCRACY (1:47 PM)

- It is the very basis of democracy as democracy is all about the **expression of opinions of the citizens**.
- It allows the citizens to question the actions of the state and therefore establish **accountability** for those in power.
- It plays a crucial role in providing **feedback to the government** about its policies so that they can be improved continuously.
- It **prevents** the state from becoming **autocratic** in nature.
- An Individual can reach his **true potential** only when he has the right to freedom of speech and expression (FOSE).
- The **universal declaration of human rights** has recognised it as one of the most important rights enjoyed by human beings.

RESTRICTIONS ON ARTICLE 19(1)(a) (2:05 PM)

- As per **Article 19 (2)**, the state may impose restrictions on 19(1)(a) if the following conditions are satisfied :

- Such a restriction is **imposed by the law** made by the legislature.
- Such restrictions **must be reasonable** in nature
- Such restrictions **can only be imposed on the basis of the grounds mentioned in 19(2).**

EVOLUTION OF ARTICLE 19(2) (2:17 PM)

- In **Ramesh Thapar versus the State of Madras**, the court held that **public order cannot be a ground for imposing restrictions** on freedom of speech and expression (**FOSE**).
- The petitioner desired to expand the circulation of his publication in Madras.
- But an order from the government prohibited him from doing so on the grounds of threat to public order.
- The petitioner contested that his fundamental right under Article 19(1) had been arbitrarily restricted since public order was not mentioned as a ground to restrict the FOSE under Article 19(2).
- The state on the other hand argued that restriction could be justified as the security of the state was mentioned as ground under Article 19(2).
- The court ruled in favour of the petitioner and stated that small instances that affect public order cannot be equated with affecting the security of the state.
- As a result of this judgement, the various high court struck down several laws that had restricted FOSE on the grounds of public order and incitement to an offence.
- In response, the **parliament enacted** the first constitutional amendment act and **added** the grounds of **public order, incitement to an offence and friendly relations with foreign states.**
- It also added the term **reasonable restrictions** so that restrictions imposed by the state are not excessive in nature.
- Whether particular restrictions are reasonable or not would be decided by the courts.
- The 16th constitutional amendment act, of 1963 added the grounds of sovereignty and integrity of India.

TEST OF REASONABILITY (3:17 PM)

- The court has stated that the reasonability of restrictions must be judged on the **following grounds**:
- The restrictions imposed must **not be arbitrary** in nature and must be imposed on the basis of a law.
- The restriction **must be imposed to achieve a legitimate goal** of the state.
- The restrictions imposed or measures taken must be **proportional to the objective** sought to be fulfilled by the law.
- In other words, the encroachments on the rights of the citizens must not be excessive in nature.
- The above test allows the court to review the decisions made by the executive under the law and to judge the constitutionality of a law.

GROUND FOR THE RESTRICTING FOSE UNDER ARTICLE 19(2) (3:37 PM)

- The constitution does not provide the meaning of the term contempt and has left it to be decided by the parliament of India.
- The objective of contempt power is to insulate the institution of the judiciary from unfair criticism and to prevent the legitimacy of the judiciary from getting eroded.
- As per the act of 1971, contempt may be defined in the following **two ways**:
- **a. Criminal contempt:**
- It is an act that **tries to scandalise** the court or **lowers the authority** of the court or interferes with judicial proceedings or the administration of justice.
- Criminal content is punishable with imprisonment or a fine or both
- **b. Civil contempt:**
- It refers to wilful **disobedience of a decree** or an order of the court or denial of an undertaking provided to the court.
- According to the act, a **few defences** have been provided wrt contempt of court:
- 1. **Fair** criticism of a judicial order.
- 2. **Innocent publication** and distribution of matters related to proceedings of the court.
- 3. If the court is convinced that the **expression was truthful and in the public interest**.
- At times, the judiciary has been too sensitive wrt its criticism and has ended up misusing these powers.

ISSUES AGAINST THE USE OF CONTEMPT POWERS (3:47 PM)

- The judiciary has often been accused of **misusing this power** to protect the reputation of individual judges.
- Manier times judiciary does not use this power against the executive or legislature but the same standards are not applied to the common man.

- In a democracy, people often criticise the legislature and the executive and therefore it is beyond explanation why they should not have the right to criticise the judiciary.
- This law originated in colonial times, to **prevent the judicial system from being discredited** and justification no longer held in a 21st-century democracy where the authority is not commanded but built upon public acceptance.
- The use of contempt power by the court is also criticised on the ground of violating the principles of natural justice.
- The institutional powers of the courts are far too robust to be affected by irresponsible comments made by individuals.
- This power has been used in a restrictive manner by the courts in other democratic countries and the Indians may also learn from the same.
- **For example**, in the UK the court has refrained from using these powers.
- The **definitions** provided in the Contempt of courts act are **too vague and subjective** and are prone to misuse.
- **The argument in favour of retaining the contempt power of the courts :**
- 1. The absence of contempt power may lead to **chaos and anarchy** due to the non-implementation of judicial verdicts.
- 2. A mere possibility of misuse of laws **does not** mean that the **law should be done away with**.
- 3. Judiciary keeps a **check** over the **executive** and the **legislature** and without this power, they may become uncontrollable.
- 4. Some individuals are **habitual offenders** of disreputing the courts and therefore strict provisions are required under the law to set the right example.

THE TOPIC FOR THE NEXT CLASS: DEFAMATION.

Class 17

INTRODUCTION (9:10 AM)

- Overview of the previous class.

ARTICLE 19 (Continued from the previous class) (9:12 AM)

Grounds of restriction under Article 19 (2)

Defamation

- Lowering someone's opinion.
- False statement -> with the intention of harming one's reputation.
- For an act to be an act of defamation, it must be carried out in public.
- Personal insults are not a part of defamation.
- Remedies:
- (a) Compensation depending upon damage caused by defamation. The compensation would depend on the stature or reputation of the person in the society- Civil Defamation.
- (b) Defamation can be criminal as well if it impacts the psyche of the victim. In such a case a criminal charge can be made on the accused. (Section 499 of IPC)
- However, the problem with criminal defamation is that it creates a 'chilling effect' on the speaker.
- A lot of countries have removed criminal defamation from their law books because of the subjectivity related to it.

DEFAMATION (9:31 AM)

- Freedom of Speech & Expression under **Article 19 (1) (a)** may be restricted on the grounds of defamation.
- In India, the law allows an individual to file a civil defamation suit as well as a **criminal defamation case under Section 499 of the Indian Penal Code.**
- It is the provisions related to criminal defamation that has been a matter of debate and discussion.

Arguments in favor of decriminalizing criminal defamation

- As per many analysts, criminal defamation provisions end up imposing unreasonable restrictions on the freedom of speech and expression of an individual.
- Several people believe that criminal defamation provisions are misused by the State and powerful individuals to curb legitimate criticism.
- Descent is an essential feature of any democracy and this provision provides legitimate grounds to curb the same.
- It goes against the global trend of decriminalizing defamation.

- In 2011, the ICCPR called upon all the member states to abolish criminal defamation as it intimidates the citizens and scares them from exposing the wrongdoings by the powerful.

Arguments in favor of criminal defamation (9:39 AM)

Subramaniam Swamy vs. UOI, 2016

- In this case, a two-judge bench of the SC upheld the constitutional validity of defamation provisions.
- The court found that the term was clear and unambiguous and clear.
- It also recognized the importance of the Right to Freedom of Speech and Expression in a democracy but pointed out it is subject to reasonable restrictions.
- The court stated that **Section 499** does not amount to excessive restrictions and stated that society is a collection of individuals and that what affects an individual affects the society as a whole.
- **Therefore, it is valid to treat defamation as a criminal offense.**
- The court noted that reputation which is equivalent to dignity is protected under Article 21 and the Right to FoSEE can not be so much room that the dignity of an individual is threatened.
- The court emphasized the importance of the concepts of Constitutional Fraternity and the Fundamental Duty under which every citizen is expected to respect the dignity of the other.
- **Therefore, Criminal defamation is not against the idea of Freedom of Speech and Expression.**
- It also stated that this law has been a part of the Indian law books for more than 70 years and it has neither diluted India's vibrant democracy nor abridged our free speech.
- **Therefore, concerns related to its misuse are unfounded.**
- Rather the executive and the lower judiciary must be sensitized to prevent the misuse of this law.
- The court also noted that monetary compensation is not enough at times to cure the harm done to a person's reputation and only a criminal provision can do justice in such situations.

SEDITION (9:55 AM)

Sedition:

- Section 124 A of IPC.

- It was introduced in IPC in 1870 to curb dissent against British rule in India.
- Whoever by words, either spoken or written, or by signs, or by visible representation, or otherwise, brings or attempts to bring into hatred or contempt towards the Government of India shall be charged under Sedition.
- Gandhi ji said, " Sedition is the prince among unjust laws brought by British in India."
- Britain has itself decriminalized sedition.

Sedition (10:13 AM)

- In **Kedarnath vs. the State of Bihar**, the court upheld the constitutional validity of the Sedition Law but narrowed down its meaning to only such acts that cause disorder and affect the sovereignty and integrity of India.
- The court stated that only if an act affects the public order, security of the state, and sovereignty and integrity of India should it be deemed as an act of sedition.
- In **Sanskar Marathe vs. the State of Maharashtra**, the court held that strong criticism of the government does not amount to sedition.
- It held that FoSE can not be encroached on in the name of Sedition if there is no incitement to violence.

OTHER GROUNDS OF RESTRICTION UNDER ARTICLE 19 (2) (10:21 AM) **(Continued from previous class)**

(1) Defamation: Done earlier

(2) Contempt of Court: Done earlier

(3) Security of State (10:25 AM)

- FoSE should not be expressed in such a manner that it threatens the foundation of or tends to overthrow the State.
- There is no doubt that FoSE is important in a democracy that without securing the State even the protection of FoSE would become impossible.
- This term should be interpreted as narrowly as possible.

(4) Public Order (10:28 AM)

- Maintenance of Public order is of utmost importance and FoSE must not be exercised in such a manner that it affects general peace and tranquility in the society.

- **For example, Section 295 (a) and Section 153 (a)** of the IPC punish those acts where a deliberate attempt is made to outrage the religious feelings of a class or section or promote enmity between different groups based on religion, caste, etc.

Question: What do you understand by the concept of "freedom of speech and expression"? Does it cover hate speech also? Why do films in India stand on a slightly different plane from other forms of expression? Discuss. (10:32 AM) (UPSC)

- Introduce by defining FoSE and briefly highlighting its importance. [Natural Right, constitution if only providing protection, Article 19 (1)(a)]
- Forms of Speech & Expression.
- Define hate speech (promoting hatred, outraging someone's personality, public disorder, etc. Use examples)
- Grounds of restriction of FoSE (not absolute). Hate speech => Impacts public order, the sovereignty of the State, and incitement to violence. Therefore, it is not a part of FoSE. (Article 295 A, 153 A of IPC).
- How films in India are different from other forms of FoSE? (pre-censorship in films- CBFC in India)
- Why? - The kind of impact audio-visuals make on the psyche of individuals can not be made by any other media; can reach wider masses-literate as well as non-literate. KA Abbas case, SC upheld the constitutional validity of pre-censorship.
- However, ban culture is unfortunate- tolerance and creative freedom are the essences of democracy.

(5) Friendly relations with foreign states (10:57 AM)

- The idea behind the inclusion of this ground is that the vicious agenda against a foreign State having friendly relations with India may cause embarrassment to the country and affect India's relationships with such a State.
- Therefore, indulging in such an exercise may be restricted according to Article 19 (2).

(6) Sovereignty and integrity of India (11:12 AM)

- FoSE can not be used to affect India's Sovereignty and integrity as it is of utmost importance.
- Certain laws have been enacted to restrict the FoSE on this ground.
- For Example, under the UAPA 1967, the GoI may impose restrictions on activities that are a threat to India's sovereignty and integrity.

(7) Incitement to offense (11:14 AM)

- FoSE should not be used to incite an offense.
- Therefore, hatching a criminal conspiracy and abetting a crime have also been made criminal offenses under Indian law.

(8) Decency or Morality (11:17 AM)

- The standards of decency and morality have changed now.
- Earlier it used to be the '**Hicklin Test.**'
- It was a Victorian-era test on decency that based the decency of content on the basis of the weakest mind consuming that content.
- Now, a '**Contemporary Standards Test**' is used which says that decency or morality should be judged based on the prevalent morals and values of the society.
- In this context, simply, nudity, or sex, or sexual violence, etc. can not be called to be indecent or obscene. It should be looked into with a context and not in isolation.

- The ideas about decency or morality vary from one place to another and from time to time depending upon standards of morality prevailing in contemporary society.
- Whether a particular content is within the limit of FoSE or not should not be judged on a static idea of decency.
- To test the reasonability of restrictions imposed by law on FoSE, one must see the context or background in which such content was made.
- The SC in **Bobby International Case (Bandit Queen Case)**, held that scenes depicting nudity must not be seen in isolation, rather the message conveyed through the portrayal is of utmost importance.
- In **Aveek Sarkar's Case**, the Court held that if the idea behind a particular depiction is to convey a meaningful message to society then such an expression should not be considered as obscene.
- **Section 292 of the IPC** which criminalizes the act of publishing obscene books or obscene content has been greatly restricted in its application.

OTT Platforms and regulations (11:45 AM)

- OTT Platforms have great penetration and reach and due to the increased demand they have eclipsed cable television.

- At present, there is no law except the rules made by the government under the IT Act on such platforms.
- These platforms are easily accessible to children and young citizens who may not be mature enough to consume such content.
- **In Divya Gontia vs. UoI**, the court attempted to regulate the control over contents displayed in web series displayed on such platforms.
- It was held that certain shows contained nude, vulgar, and obscene scenes which were similar to pornography but due to lack of law there was no restriction on the same.
- As a result, the court demanded regulation on such content from the Ministry of Information and Broadcasting.
- Subsequently, the government issued the IT Rules 2021 which have imposed certain restrictions on such inappropriate content.
- The OTT platforms are supposed to use their own discretion to display the content online.
- It is also mandatory for them to provide a parental lock.
- Not only that, it is the duty of every OTT platform to ensure that it is not used for promoting any pornography, obscenity, or unlawful content.
- OTT Platforms need to be careful displaying such content which may be against a particular religion, caste, or political group, or which clearly depicts nudity and immoral content.
- Therefore, the evolution of these rules and guidelines is a step in the right direction.

Article 19 (1) (b) (12:03 PM)

- It provides citizens with the Right to Assemble Peacefully and without arms.
- It is a very important right in a democracy as the '**Right to Protest**' emerges from this provision.
- It gives an opportunity to the citizens to gather together and express their opinions collectively.
- It is not an absolute right and can be restricted on the grounds of the Sovereignty and Integrity of India, and Public Order.
- The SC in **Babu Lal Marathe vs. the State of Maharashtra**, upheld the Constitutional validity of Section 144 of CrPC which allows the authorities to restrict a gathering of 5 or more people in certain circumstances.
- In **Bharat Kumar vs. UoI**, the court declared that the bandhs organized by political parties as unconstitutional. Since they affect the Right to Freedom of movement or the Right to occupation for other individuals, they are illegal.

- In another important case, the court has held that citizens can carry out peaceful processions but resorting to violence, obstructing roads, and throwing stones can not be justified under this article.
- The court has held that **The Right to strike is not a Fundamental Right and it owes its origin to a law made by the legislature.** Therefore, it is an ordinary legal right.

TOPIC FOR THE NEXT CLASS: CONTINUATION OF ARTICLE 19 (1), ARTICLE 20, & ARTICLE 22.

Class 18

A BRIEF REVISION OF THE PREVIOUS CLASS (9:07 AM):

ARTICLE 19(1)(c) (9:10 AM):

- It provides the citizens the right to form **Associations, Unions, or Cooperative societies.**
- This right is significant because of the following reasons:
- It allows the citizens to collectively express their views and opinions to the state and therefore, get a better bargaining position vis a vis the state.
- It provides a platform for the citizens to discuss issues that are of common interest to them.
- It allows the citizens to form political associations and take an active part in democracy.
- Like other rights, it is **not an absolute right** and may be restricted by the state on the grounds of **sovereignty and integrity of India, public order, and morality.**
- Eg: Under **UAPA 1967**, the govt has banned certain organizations on the grounds of threatening the **sovereignty and integrity** of India.

ARTICLE 19 (1) (d), 19 (1) (e) (9:23 AM):

- They provide the **right to Indian citizens to move freely** throughout the territory of India as well as the **right to reside** throughout the territory of India.
- Both of these rights are significant due to the following reasons:
- They promote the **unity and integrity** of India by treating it as one unit.
- They **promote cultural exchange** and play an important role in exposing the citizens to the **composite culture** of India.

- They help in promoting India as a **common market** and facilitating trade throughout the country.
- Both of these rights can be restricted on the grounds of **public interest** and the protection of the interest of **scheduled tribes**.
- Eg: **Inner line permit** restrictions to enter into certain protected areas have been imposed on the grounds of the protection of scheduled tribes.
- Similarly, during **Covid 19**, restrictions were imposed on the movement of people according to **NDMA 2005** and **the Epidemic Diseases Act 1897** which could be justified on the grounds of public interest.
- (**Note**: Sentinelese tribe- Protected tribe)

ARTICLE 19 (1) (g) (9:43 AM):

- It provides the **right to practice any profession** or to carry on any **Occupation, Trade, or Business**.
- Its significance lies in the fact that it does away with allowing certain occupations to be taken up by certain individuals on the basis of birth.
- It is significant as it promotes the spirit of entrepreneurship among the citizens and allows an individual to reach his/her truest potential.
- It is **not an absolute right** and can be restricted on the grounds of general public interest.
- This right has often come in conflict with **Art 47** and **48** of the Constitution.
- Further, this right can be restricted if the state makes a law prescribing technical/professional qualifications necessary for practicing a particular profession, occupation, etc.
- For example, a person may practice as a doctor only if he/she possesses a certificate from the **Medical Council of India**, similarly under the **Advocates Act**, a person can argue in court only if he/she possesses a certificate from the **Bar Council** to do so.
- Also, the state can make always exclude the citizens from a particular trade or business or industry whether completely or partially so that such an activity can be carried out only by the state or a corporation owned or controlled by the state.

DOCTRINE OF ECLIPSE (10:49 AM)

- In **Bhikaji Narain Vs The State of MP**, the court struck down the **C.P. & Berar Motor Vehicles Act** that excluded the citizens from a specific business as the law was considered violative of **Art 19(1)(g)**.
- The court stated that the law may be made effective again by amending the constitution and making it consistent with the law.

- Essentially, if the FRs chapter has eclipsed the law made by the legislature, the law can be made effective again by removing the restrictions imposed by the FRs.
- As a result, the Parliament passed the **1st CAA** and added **19(6)(ii)** that allows the state to exclude citizens from certain businesses.

ARTICLE 20 (11:07 AM):

- **Art 20 (1):**
- Provides **protection to an individual against retrospective application of criminal legislation** to the detriment of the person in question.
- According to it, a person can be charged with an offense only if committing a particular act existed as an offense at the time of committing the act.
- In simple words, criminal law can not have a retrospective application, not only that a person can not be subject to a punishment greater than what existed at the time of committing the act.
- It protects individuals from instances of political vendetta where those in power may enact the laws to declare an act as an offense retrospectively.
- This article does not prohibit the retrospective application of civil laws in India.
- **Art 20 (2):**
- A person shall not be prosecuted and punished twice for the same offense.
- It safeguards individuals from facing successive criminal proceedings or multiple punishments for the same offense.
- Although this provision disapproves of double punishment it does not provide immunity from proceedings before a **Tribunal or Quasi-judicial body**.
- Therefore, a public servant who has been punished for an offense in a court may be subject to a **departmental inquiry** for the same act.
- **Art 20 (3) (11:48 am):**
- (Sunset laws: Comes with Expiry date).
- No self-incrimination.
- It provides a **right against self-incrimination** and no compulsion can be made in a case where a person is an accused to provide testimony or to act as a witness against oneself.
- When the Police officer uses force/threatens a person who is an accused in a case to give a confession against himself the right to protection against self-incrimination kicks in and the person may remain silent and not give any statement against himself due to any pressure.
- Not only that if a person confesses something during his investigation by his own will it becomes important for the courts to satisfy themselves that the confession was made without any pressure or compulsion.

- This provision only prohibits a person to give a witness against himself in a compelling manner and should not be considered as an equivalent of giving evidence.
- Therefore, taking **fingerprints**, and **blood samples** from an accused does not come under the scope of **20 (3)**.
- Also, the immunity under this provision is only limited to criminal proceedings.
- The court in the **Selvi Vs State of Karnataka** held that **Narco analysis** can not be compelled on the person as it leads to a violation of mental privacy which is an intrinsic part of **Art 21**.

TOPIC FOR THE NEXT CLASS: Article 21

Class 19

INTRODUCTION (9:07 AM)

- Overview of the previous class- Article 20.

ARTICLE 22 (9:07 AM)

- Protection against arrest and detention.
- **There are two types of detention:**
- **Punitive Detention:** When a person is guilty of a crime or accused of a crime.
- **Preventive Detention:** A detention in which a person is arrested or detained even before a crime has been committed.
- The police do not get involved in Preventive Detention, rather civil authorities are involved.
- Preventive detention is often considered against Constitutional democracy.

Safeguards with respect to Punitive Detention (9:13 AM)

- **Article 22 (1)**
- Every arrested person must be told the grounds of their arrest as soon as possible.
- Every person who is arrested has the right to consult and be defended by a legal practitioner of his/her choice.
- **Article 22 (2)**
- When a person is arrested then that person must be presented to the nearest magistrate within 24 hours excluding the time of travel to reach such authority.

- No person shall be arrested for more than 24 hours without the permission of the magistrate.
- However, this 24-hour period shall exclude the time taken to travel from the place of arrest to the place of the nearest magistrate.
- **Article 22 (3)**
- Protections given under Article 22 are not available to enemy aliens or;
- a person who has been arrested under preventive Detention.

Offences under IPC (9:32 AM)

- **(1) Cognizable offences & Non-Cognizable offences**
- **Cognizable offences**
- In such an offence the arrest can be made or a search conducted without any warrant issued from the magistrate.
- Serious offences are covered under cognizable offences.
- FIR is mandatory.
- **Non- Cognizable offences**
- A complaint has to be filed first => Police inquiry => FIR is filed (if the police feel that an offence has been committed)
- In a non-cognizable offence, the arrest can not be made without the prior permission of the magistrate.
- **(2) Bailable and non-bailable offences**
- **Bailable Offence**
- While the accused is undergoing trial, he has the right to seek bail.
- **Non-Bailable Offence**
- There is a right to demand bail but approval will depend on the magistrate concerned.

Criminal Proceedings in India (9:49 AM)

- FIR => Investigation & inquiry by police (arrest, search, seizure, etc.) => Prima facie accused is identified => Chargesheet* is made => The accused is produced to the magistrate.
- **Magistrate decides whether to :**
- **release** the accused (Quashing of the FIR) or;
- send the accused to **police custody** (police can investigate the person without the permission of the magistrate) or;
- send the accused to **judicial custody** (the accused is sent to jail and police can not conduct any investigation on the person without the permission of the magistrate.)

- *Chargesheet contains the observations & inquiries conducted by police along with the offences with which the person is being charged.
- Once the chargesheet is filed the matter goes to the court and based on its proceedings the verdict is delivered.

Anticipatory Bail

- Anticipatory Bail allows a person to seek bail in anticipation of an arrest on the accusation of having committed a non-bailable offense.
- It is granted by High Court or sessions court.

Safeguards available in case of Preventive Detention (10:08 AM)

- **Article 22 (5)**
- It says that when any person is detained in pursuance of an order for preventive detention then he must be communicated on the grounds of detention as soon as possible, and be given an opportunity to make a representation against an order.
- **Article 22 (6)**
- There lies an exception to Article 22 (5) in Article 22 (6).
- If the authority making the detention order in 22 (5) thinks that it is **against the public interest** to disclose such grounds of detention then it may withhold such disclosure.
- **Article 22 (4)**
- No person detained under Preventive Detention Law can be detained for more than 3 months **unless either of these two conditions are satisfied:**
- **(a) If the advisory board approves the detention beyond 3 months period.**
- Advisory Board as under Article 22(4) (a) consists of persons who are, or have been, or are qualified to be appointed as, Judges of a High Court.
- It is a quasi-judicial body.
- The procedure followed by the advisory board is set up by Parliament under its law.
- The appointments are made by the Centre or states based on who has formed the law.
- Under Schedule VII, Concurrent list, Entry III, both Union & States can make a law in case of preventive detention based on the subject upon which the law is being framed.
- **(b) If the parliament by law** has prescribed a certain offence or a class or classes of offence where detention can be made beyond 3 months without the advisory board's approval.

- **Article 22 (7) (b)**
- Parliament may by law provide the maximum period of detention for preventive detention.

Critical analysis of Preventive detention (10:59 AM)

- India is among the few democratic countries to include provisions related to Preventive Detention in its constitution.
- As per several experts, these laws are against the principle of Liberal democracy as a person is detained not for committing a crime but on the mere suspicion that he may commit one.
- It is only ironic that the constitution makers who were themselves victims of such laws chose to grant such powers to the executive in India.
- **In the case Mariappan vs. DC**, it was held that Preventive detention provisions should not be misused to punish someone but to prevent certain offences from happening.
- **In Abdul Karim vs. State of West Bengal**, the court noted that Article 22 (5) is not a mere formality and should be followed diligently by the executive.
- The courts have repeatedly held that preventive detention laws must be resorted to only in exceptional circumstances.
- The court has observed that preventive detention laws such as NSA, 1980 should maintain the delicate balance between national security and individual freedom.
- One criticism of the laws is that the government fills up the advisory board with its own people who are easily pliable as per the whims and the fancies of the executive.
- In a recent turn of events, the Allahabad High Court overturned 94 cases in which the government had invoked the NSA.
- The other states have also misused the NSA in the same manner.
- **As per a report in the Indian Express**, more than 75% of the orders under the NSA made between 2018 to 2020 were found to be illegal and incorrect by the courts.
- Even though the courts have stepped in to prevent the exploitation of the citizens and the infringement of their fundamental rights, the reality is that the courts in India face a huge pendency and as a result, it takes several months to get the Habeous corpus petition listed against detention.
- As a result, the purpose of personal or political victimization of an individual is served.
- All these examples show how the executive can misuse the preventive detention laws to curb dissent and opposition.

- Because of the above reasons, there is an urgent need to introduce stricter checks and balances to prevent the misuse of such laws.
- At the same time, we must not forget that national security is of paramount importance and crimes such as Naxalism, terrorism, and insurgency still plague India.
- Therefore, we must adopt a balanced approach between the concerns for individual liberty and the security of the State.

Default bail

- Ritu Chabbaria Case
- Master of Roaster for judges now being master of roaster for the entire judiciary: allegation against CJI
- Kindly read the associated article from the newspaper.

ARTICLE 21 (11:29 AM)

- No person shall be deprived of life or personal liberty except according to the procedure established by the law.
- In other words, the person can be deprived of his life and liberty if the procedure established by law is followed.
- **Three conditions:**
- (a) There must be a law made by a competent legislature.
- (b) The law must provide a procedure for depriving a person of his/her personal liberty.
- (c) The procedure provided must be followed.
- Such a procedure should follow Due Process of Law (American concept). It is different from the Procedure established by law which was followed earlier.

Due Process of Law

- The law itself must be reasonable and fair. It is known as the concept of **Substantive Due Process**.
- The procedure provided must be just, fair, and reasonable. In other words, the procedure should follow the principles of Natural Justice. This is known as the concept of **Procedural Due Process**.
- In Due Process of Law, the courts would apart from examining the basic 3 conditions also check whether the law and the procedure are also just, fair, and reasonable.

AK Gopalan Case 1950 (11:55 AM)

- (a) In this case, Gopalan says that the law to deprive personal law and life must itself be just, fair, and reasonable.
- (b) He also says that his Article 19 (1) (d) [Right to Movement] is curbed which can only be curbed only on the basis of Article 19 (5).
- He says that these restrictions imposed on him are unreasonable.
- He argues that the Due Process of Law is implicit in our Constitution.
- His Right to Equality has also been violated because he was denied a fair hearing which means he has been denied the Principles of Natural Justice.
- In this case, the Supreme Court says that it does not agree with the petition.
- The court argues that Constitution explicitly adopts 'Procedure adopted by law' referring to constitutional debates and constitutional text.
- Also, Articles 14, 19, and 21 are mutually exclusive which means that if your liberties are deprived according to a law made under Article 21, it should not confirm to the restrictions under Article 14 or Article 19.

TOPIC FOR THE NEXT CLASS: CONTINUATION OF ARTICLE 21

Class 20

INTRODUCTION (09:15 AM)

- A Brief Review Of The Previous Class.

ARTICLE 21 (09:19 AM)

- **Maneka Gandhi Vs UOI,1978.**
- Impounding of passport led to the violation of Art 21 (**Satwant Singh case: right to travel abroad**).
- Procedure under the Passport Act, of 1967 violates the Principles of Natural Justice.
- Hence, should be struck down.
- S.C Judgement:
- The opinion in A.K Gopalan's case was faulty.
- Art 14, 19 and 21 are not **mutually exclusive**.
- In case of overlapping FRs, the state must satisfy all provisions while infringing a particular right.

- The procedure provided by the law to deprive a person of life and personal liberty itself must be just fair and reasonable.
- After Maneka Gandhi the renewed provision of Art 21 would actually mean "**no person shall be deprived of life and personal liberty except according to just fair and reasonable procedure provided by a valid law.**"
- **Dictation:**
- In the aftermath of the Maenka G Case the court acquired an activist position and constantly expanded the ambit of the FRs.
- The judgement became a springboard for the evolution of law relating to the preservation of Human rights.
- The most important aspect was that it expanded the meaning of 'Right to Life' to include a wide range of unenumerated rights.
- These rights cover areas such as the rights of prisoners, protection of women and vulnerable sections and environmental rights.

EXPANDED MEANING OF LIFE UNDER ART 21 (09:42 AM)

- The court through its various judgement has stated that art 21 which includes the right to life does not mean mere animal existence.
- Rather it includes all those things that make life worth living.
- If any person is denied the right to live with dignity, it would be considered a denial under Art 21.
- **S.C has expanded the definition of life through a series of cases listed below:**
- Cases related to the rights of prisoners:
- Right to speedy justice (**Hussainara Khatoon Vs State of Bihar**)
- In Khatri Vs state of Bihar the court talked about custodian violence and torture.
- **Cases related to the environment:**
- Right to a healthy environment (**M.C Mehta Vs UOI**).
- Right to sustainable development (**N.D Jayal Vs UOI**).
- Right to pollution-free air and water. (**Subhash Kumar Vs the state of Bihar**).
- Protection from pollution hazards due to the use of pesticides (**Ashok Vs UOI**).
- **Cases related to personal liberty:**
- Right to choose one sexual orientation (**Navtej Singh Jaauhar vs UOI**)
- Right to choose one's life partner (**Shaktivahini Vs UOI**).
- Right against Phone tapping (**R.L Malkani Vs State of Maharashtra**)
- **Right To reputation (Kiran Bedi Vs committee of Inquiry)**
- **Cases related to Social Issues:**
- Right against sexual harassment in the workplace. (**Vishakha Vs the state of Rajasthan**)
- Right to livelihood. (**Olga Tellis Vs Bombay Municipal Corporation**).

- Right to education (**Mohini Jain Vs state of Karnataka**).
- Right to health (**Vincent Vs UOI**)
- Right to die with dignity (**Aruna Shaun Baug Vs UOI**).
- (**Note: Kindly Refer to the handouts for this topic for better understanding and more coverage.**)

ART 23 (10:17 AM)

- **Art 23** Prohibits activities such as traffic in human beings beggars and other similar forms of forced labour.
- Traffic in Human beings refers to the sale and purchase of human beings as if they are inanimate objects.
- For example slavery prostitution etc.
- Beggar is a form of forced labour where an individual is forced to work without wages or below the minimum wage.
- Forced labour includes those situations where a person is forced to work against his wishes.
- Art 23 (2) is an exception to the principle embodied in Art 23 (1).
- It allows the state to impose compulsory service for public purposes.
- The idea behind this provision is to keep the doors open for conscription in the armed force if the situation so demands.
- It also lays down the grounds based on which discrimination is prohibited while imposing compulsory services.
- A notable omission from these grounds is that of sex.

ART 24 (10:39 AM)

- As per the constitution makers Child labour is an inhumane practise as it snatches away opportunities for a normal childhood from a person.
- Thereby hampering the growth of an individual.
- The parliament enacted the Child Labour (Regulations and Prohibition) Act, of 1976, which makes it a punishable offence to employ children in Hazardous occupation.
- In 2006, an amendment was made to this act that banned the employment of children as domestic help and from working in establishments such as hotels and restaurants.
- In 2016, another amendment was made to the act that identified a new category in the form of adolescents between the age of 14 to 18 years who are prohibited to work in hazardous occupations.

- **In the M.C Mehta Vs UOI case**, the petitioner invoked Art 32 and sought the intervention of the court to prohibit the engagement of Children in the manufacturing of matches and fireworks at Shivkasi in Tamilnadu.
- The court qualified this industry as hazardous and ordered the suspension of any activities involving children with an immediate effect.
- The court referred to provisions 39(e) and 39 (f) stating that it is the responsibility of the state to ensure that the children develop in a healthy manner and are not forced to work at those places which are unsuitable for their age and strength.

ART 25 to 28 (RIGHT TO FREEDOM OF RELIGION) (10:57 AM)

- **Art 25: It provides every individual's** rights with respect to one's religion.
- It is not an absolute right and is subject to various restrictions that can be imposed on the grounds of public order, health, morality and other Fundamental rights.
- **Right to Freedom of Religion for an Individual includes the following:**
- **Freedom of conscience:**
 - It is the absolute inner freedom of a person to mould his relationship with God in whatever manner he likes.
 - It refers to the freedom of a person to entertain any beliefs or doctrines related to matters which are considered to be conducive to his spiritual well-being.
- **Freedom to profess one's religion:**
 - It means the right to exhibit one's religion in overt acts such as teaching, practising and observing religious ideals in which there is no explicit intention of convincing others about one's religion.
 - Taking out religious processions, worshipping at specific places and wearing specific garments are all included within its ambit.
- **Freedom to propagate one's religion:**
 - It means to spread and publicise one's religious views for the example of others.
 - Through this right one can communicate one's religious views by Teaching, Preaching and Writing with the explicit intention of convincing others about the goodness of one's religion.
 - In the 1970s Mp State legislature came up with a law named the 'Anti conversion Law' that stated conversion through allurement, coercion and fraud is not permitted and is illegal.
 - In Stanislaus Vs State of MP this law made by the legislature was challenged on the grounds of violating Art 25.
 - The court held that anti-conversion laws are not unconstitutional and the right to propagate one's religion is not an absolute right.
 - And the State may make laws on the grounds of public order to restrict individuals from converting others through fraud, coercion etc.

- **Freedom to Practice One's Religion:**
- It includes the right to perform the prescribed religious duties and rituals and to exhibit such religious beliefs through various acts as prescribed by a religious order to which one belongs.
- **Art 25 (2) :**
- **1) Art 25 (2)(a):** Law can regulate or restrict any political, economic or secular activity associated with religious activity.
- Example: Appointment of priests, administration of the temple, managing of funds wrt a temple.
- According to this provision the state may regulate a secular activity associated with a religious activity.
- For example, the administration of temples or appointment of priests is a secular activity associated with religious activity.
- Similarly, laws related to managing funds of religious institutions are allowed under this provision.
- **2) Art 25 (2)(b):** The state can regulate religious activities as well for the purpose of social welfare and reform or for throwing open the Hindu temples for all the sections of Hindu society.

(TOPIC FOR THE NEXT CLASS: CONTINUATION OF FREEDOM OF RELIGION)

Class 21

OVERVIEW OF PREVIOUS CLASS: (9:11 AM)

- **Article 25**
- **ESSENTIAL RELIGIOUS PRACTICES (ERP): (Continuation of previous class)**
- This doctrine was led down by the Supreme Court (SC) in 1954 in the **Shirur Matt case**.
- According to it, the State cannot interfere in religious practices that are designated as essential religious practices.
- Interfering with such practices would result in taking away the right to freedom of religion for a particular religious denomination.
- Any religious practices except ERP can be interfered with by the State for the purpose of social welfare or social reform or due to considerations of public order, health, morality, and other Fundamental Rights.
- For example, in **Sabarimala Case**, the court held that the practice of prohibiting women between the age of 10 to 50 inside the sacrum sanctorum of the temple is not an ERP of the Hindu religion, and therefore, State interference is allowed.

- In the **Saira Banu case**, the court held that the practice of Talaq-e-biddat is not an ERP of Sunni Muslims and therefore State interference is allowed.
- **Critical analysis of essential religious Practices:**
- It has been criticized by several scholars.
- They argue that it allows the court to enter into areas, which are purely religious in character.
- The court does not have any expertise on religious matters and ideally, should stay away from the same.
- The court itself has been inconsistent in determining what constitutes essential religious practice.
- For example, in some cases, they have relied upon religious texts to determine the essentiality, in other cases, of the empirical behavior of the followers, and in some other cases on whether the practices existed at the time of the origin of the religion.
- It has therefore resulted in uncertainty and confusion.
- In **Sabarimala Case**, Justice Indu Malhotra in her dissenting judgment noted:
- "Matter of religion and religious beliefs should not be seen from the perspective of rationality and the courts should refrain from entering into such matters".
- Therefore, there is a need to find a balance between the religious beliefs and the views of a community, and the basic principles of the Constitution.
- In such circumstances, we may follow the principles of constitutional morality.

PRINCIPLES OF CONSTITUTIONAL MORALITY (9:22 AM):

- It refers to steadfast adherence to the values of the Constitution and includes going beyond the text of the Constitution to interpret its true meaning.
- Even though Justice D Y Chandrachud invoked this principle in Sabarimala Case, the court has implicitly relied upon this doctrine in several other cases:
- **1. In Keshavananda Bharti Case.**
- **2. Menaka Gandhi Case.**
- In **Navtej Singh Johar Vs Union of India**, the court relied upon the principle to protect the rights of the LGBTQs.
- Similarly, in the **Naz foundation case**, the court upheld the rights of transgenders on the basis of Constitutional morality.

ARTICLE 26: (9:46 AM)

- Article 26 recognizes the religious rights of religious denominations in India.
- A **religious denomination** is a group within a religion with a distinct name, identity, and set of beliefs.
- It provides religious denominations with a bunch of rights including:

- 1. Setting up institutions for charitable purposes.
- 2. Managing affairs with respect to religion.
- 3. Acquiring movable and immovable property.
- 4. Administering such property in accordance with the law.
- These rights are not available to religion as a whole but rather 2 sections within a religion, referred to as religious denominations.

ARTICLE 27: (9:58 AM)

- It prohibits the State to collect taxes for the promotion and maintenance of a particular religion and is consistent, with the spirit of secularism imbibed in the Indian Constitution.
- As per the Article, a fee imposed by the temple for the maintenance of premises cannot be considered a tax as the fee is levied in return for services provided by the temple.
- The court has stated, that a fee involves, an element of quid pro quo, where special services are rendered for the benefit of those from the payment is received.

ARTICLE 28 (10:11 AM):

- **Article 28(1):**
- In Educational Institutions, maintained fully out-of-state funds, there shall be no religious education and worship.
- In **Aruna Roy Vs Union of India**, the court held that there is no prohibition on the studies of religious philosophies and culture under Article 28.
- In fact, a comparative study of religion is important for building value-based social life i.e. degenerating every day in society due to want for power and money.
- Article 28(2) is exception to Article 28(1).
- **Article 28(2):**
- Those EIs which were set up under a religious trust for the promotion of a particular religion are not limited by Article 28(1), despite funds provided by the state.
- **Article 28(3):**
- An EI funded by the state, religious education, and worship is not prohibited, but rather a choice of the pupil or his/her guardians.
- In such EIs, there is no compulsion for religious education and worship.

ARTICLE 29: (10:44 AM)

- **Article 29(1):**

- Any section of citizens in India having a distinct language, script, and culture should have the right to conserve the same.
- It ensures that India can maintain its unique and diverse culture.
- Even though the title of Article 29 mentions the term "minorities", it is equally applicable to the majority community as well.
- The philosophy behind this provision is to maintain the diversity of languages and cultures.
- **Article 29(2):**
- It prohibits discrimination in matters of administration in educational institutions maintained by the state or receiving aid out-of-state funds on the grounds only of religion, race, caste, language, or any of them.
- A notable ground missing from this provision is "sex" as the constitutional makers wanted to leave a window open for promoting girls' and women's education in India.

Article 30 (11:12 AM):

- It is a provision unique to the Indian Constitution.
- That allows linguistic and religious minorities to establish and administer EIs of their choice.
- The main purpose behind the provision is to :
- Allow the minority communities to maintain their unique tradition and culture and exercise the right U/A 29(1).
- The word choice in this article reflects that they can set up institutions for the purpose of:
 1. Imparting religious and cultural education
 2. For secular education.
- The Constitution classifies minorities on the basis of:
 1. Religion
 2. Language.
- As per the court to be classified as a minority community, it shall form less than 50% of the population at the state level.
- **Privileges Enjoyed by Minority Educational Institutions (MEIs):**
- No quota reservation for SC, ST, OBCs, and EWS.
- They can provide reservations to the students of that particular minority community.
- The state has limited power to interfere in administrative matters of MEIs.
- While acquiring the property of such institutions, the state should ensure that it meets safeguards **U/A 30(1A)**.
- The State while providing aid to EIs should not discriminate against MEIs.
- **Observations in cases related to MEIs:**

- In **St. Stephens Vs Delhi University Case** the court noted that :
- The right to establish and administer EIs also includes the right to regulate admissions by fixing criteria for admission and providing reservations to the student of Minority Communities.
- The court also stated that up to 50% reservation may be provided to the students of Minority Communities and the cap on reservations may vary according to the nature of education and from one state to another.
- For example, in primary and secondary education, a higher % may be reserved for minorities.
- In **the TMA Pai Vs State of Karnataka case**, the court held that:
- The right to administer a MEIs does not include the right to maladminister.
- In case the court finds some mismanagement, it may regulate administration so that the institute can meet its desired objectives.
- In **another case**, the court observed that :
- MEIs are free to admit non-minority students but such a number should be limited to an extent that it does not compromise the minority status of the institutions.

ARTICLE 32 (12:05 PM):

- The Right to Constitutional Remedies.
- **Remedies:**
- The right to move to SC by appropriate proceeding for the enforcement of FR part III is itself a fundamental Right.
- If violation of FR, then one can move to SC or HC.
- SC has nationwide jurisdiction, whereas HC has area-wise jurisdiction.
- Article 32 is a Fundamental Right so cannot be denied, but A 226 is not a Fundamental Right, so can be denied.

TOPIC OF NEXT CLASS: ARTICLE 32 AND WRITS.

Class 22

OVERVIEW OF THE PREVIOUS CLASS: (1:06 PM)

- Writs.
- Remedies are prerogative.
- **ARTICLE 32: (Continued from the previous class).**

- **Article 32(1):** The right of a person to approach the SC for the enforcement of FR is itself a FR.
- **Appropriate Proceeding:** The court has provided a liberal interpretation of this term and has held that any proceeding would be considered as appropriate as long as its objective is enforcement of the Fundamental Rights.
- In **S.P.Gupta Vs Union Of India**, the court went to the extent of saying that a writ petition can be submitted to the court even on a postcard and technical difficulties should not result in the denial of rights to any citizen.
- The idea is to ensure that the FR should be available to all citizens irrespective of their socio-economic status.

WRIT POWER OF SUPREME COURT AND HIGH COURT: (1:25 PM)

- Writ refers to an order issued by the court for the enforcement of the rights.
- According to the Constitution, SC U/A 32 and HC U/A 226 are empowered to issue the writs.
- According to **Article 32(3)**, the Parliament by law may confer such writ powers on any other courts as long as it does not interfere with the exercise of powers conferred upon the SC.
- **Difference between writ powers of SC and HC:**
 - 1. Source of the writ for SC is in Article 32, whereas the Source of the writ for HC is in Article 226.
 - 2. SC can issue writs across the country, whereas HC can issue writs only within their area of jurisdiction.
 - 3. SC can issue writs only for the enforcement of FR, whereas the HC can issue writs for the enforcement of FR and other rights.
 - 4. Article 32 is itself a FR which means that the court cannot deny an individual a remedy in case of violation of FRs whereas Article 226 is not FR and it is the prerogative of the HC concerned to give a remedy or not.
- **Article 32(2):** The SC U/A 32(2) has wide powers to issue writs for the enforcement of FRs but certain specific writs that can be issued by the courts are as follows:
 - **I. Habeas Corpus: To have the body of.**
 - It is issued in those cases where an individual has been illegally detained by another individual or by an authority.
 - If the person has been detained illegally, he or she should be presented in front of the court and the court shall examine the reason for detention.
 - If no legal justification is provided for the same, the person would be set free.
 - The principle of locus Standi does not apply in the case of Habeas Corpus.

Locus Standi is a principle according to which only an aggrieved party can approach the court to seek a remedy. A person having no interest in the matter cannot do so.

- **II. Mandamus: We command.**

- It directs a public authority to perform some duty that he or she has failed to perform resulting in the violation of the FR.
- To issue the writ of mandamus certain essential conditions must be satisfied:
 - 1. A violation of FR should be involved.
 - 2. There should be nonperformance of a statutory duty.
 - 3. There has to be a demand and a refusal to perform a duty.
- Such a writ cannot be issued to:
 - 1. A private individual.
 - 2. Legislature.
 - 3. To the President and the Governor.
 - 4. To the lower courts.
- The principle of Locus Standi is applicable.

- **III. Certiorari: To certify.**

- It is issued by the superior court to quash the order of a lower court or a tribunal for the effective enforcement of the FR.
- It is issued when an inferior court exceeded its jurisdiction or usurped the jurisdiction with which it is not legally vested or if the decision has been obtained through fraud corruption or collusion or if the court has acted contrary to the principles of natural justice.
- This writ can be issued only to an inferior court or a quasi-judicial body.
- Therefore, it may be issued to administrative authorities that possess the power to decide the disputes.
- Once the writ is issued, it quashes the order and the case is put in front of the concerned HC or SC.

- **IV. Prohibition: To forbid.**

- It is issued by a superior court to an inferior court or a tribunal forbidding the latter to continue the proceedings any longer.
- The difference between Certiorari and Prohibition is that the second one is made when the final order is issued, whereas, Prohibition is to stop the court from proceeding any further and making an illegal order.
- The principle of Locus Standi is applied.

- **V. Quo-warranto: Where is the warrant of appointment?**

- It is issued by the court to examine the legality of a claim of a person with respect to a public office.

- If the person is not able to show a legal right to occupy the office, the court may order the person to be removed from the office.
- For this writ to be issued, the office in question must be a public office and a creation of a law.
- The principle of Locus Standi is not applicable in the case of Quo Warranto.

PUBLIC INTEREST LITIGATION (PIL): (2:18 PM)

- **Judicial Activism:** It refers to such actions of the judiciary where it oversteps its traditional role and enters into the domain of the legislature and the executive.
- The justification provided by the court for such actions is the inability of the executive and the legislature to serve justice to the masses.
- One of the most important tools of judicial activism is PIL.
- It was devised by the SC to ensure the effective enforcement of the FRs and to maintain the faith and trust of the citizen in the rule of law.
- According to it, a public-spirited individual may approach the court on behalf of those who cannot afford to do so.
- If the petitioner can prove sufficient public interest, the court may set aside the principle of Locus Standi.
- For example, in **Hussainara Khatoon** case, the plight of under trial prisoner was brought to the notice of the apex court.
- Justice PN Bhagwati set aside the principle of Locus Standi and ordered the release of more than 30,000 prisoners across the country.
- This case set the precedent for several cases, where public-spirited individuals or social action groups have approached the courts for the enforcement of the FRs.
- As per Justice V Krishna Iyer, it is a tool to allow the common man to approach the courts irrespective of his socio-economic status.
- In **S P Gupta Vs UOI**, the court stated:
- Any member of the public or an NGO acting bonafide can invoke writ powers of SC or HC seeking redressal against violation of rights of persons who due to social or economic or any other disability cannot approach the court.
- **The importance of PIL:**
 - 1. It has democratized access to justice for the common man.
 - 2. It has made justice more affordable.
 - 3. It helped ineffective enforcement of FRs.
 - 4. The court has been able to keep a check on the exercise of powers by the other organs of the state.
- **Concerns associated with PIL: (2:53 PM)**
 - 1. It has led to judicial overreach, resulting in a violation of the Separation Of Powers (SOP).

- 2. PIL cannot be a substitute for poor governance and in such cases, the citizen must exert pressure on the government rather than asking for interference from the courts.
- 3. It is alleged that PIL has turned into Private Interest litigation or Publicity Interest Litigation, where the aim of certain individuals while filing such petitions is to gain publicity or achieve some ulterior motives.
- It has resulted in an increased workload on the judiciary further leading to higher pendency in the courts.
- **Way Forward:**
- There is no doubt that PIL has played an important role in deepening access to the judicial system for the citizen of India, but it is equally important to prevent its misuse.
- Therefore, dubious and frivolous PILs should be rejected along with exemplary costs.
- The courts should also observe restraint from entering into the domain of other organs on the pretext of PILs.
- The court may give extra attention to the scrutiny of PILs at an early stage to reduce the chances of bogus PILs wasting the precious time of the courts.

ARTICLE 33: (3:32 PM)

- It allows the Parliament to make laws, to restrict the application of FRs with respect to the members of certain organizations.
- These organizations include:
 - 1. The armed forces.
 - 2. Forces given the responsibility of maintaining public order.
 - 3. Intelligence organizations.
 - 4. Organisations involved in maintaining the telecommunication systems of the above organizations.
- This provision has been included to ensure that the security and defense of the country do not get compromised in the name of FRs.
- As a result, several laws have been made by the Parliament, including:
 - 1. The Army Act of 1950.
 - 2. The Airforce Act of 1950.

ARTICLE 34 (3:41 PM)

- It allows the Parliament to make laws and provide legal immunity to any person in the service of the Union or the State or any other person connected with the maintenance of or restoration of law and order in an area, where martial law is in force.

- It does not provide the definition of the term Martial Law, but in a general sense, it means the suspension of civilian administration and its replacement with the rule of the armed forces.

DIRECTIVE PRINCIPLES OF STATE POLICIES (DPSP) (3:50 PM)

- Part IV
- Articles 36 to 51.
- **Article 36:**
- It provides the definition of the "State" for the purpose of part IV.
- According to it, the definition of the term shall be the same as is provided in Part III.
- **Article 37:**
- These rights are legally not enforceable in nature.
- Fundamental Principles to be applied in governance.
- It is the duty of the state to apply these principles in making laws.
- **Significance of DPSP:**
- They help in ensuring the accountability of the "State" to the citizens.
- They help in ensuring continuity in the functioning of the Governments in India.
- They create conditions for social and economic democracy without which political democracy is meaningless.
- The courts have stated that while deciding the constitutionality of a law they may take into consideration whether that law gives effect to DPSPs or not.
- They can play a crucial role in the interpretation of ambiguous provisions of the Constitution.

TOPIC FOR THE NEXT CLASS: CONTINUATION OF DPSPs.

Class 23

DIRECTIVE PRINCIPLES OF STATE POLICY (9:10 AM)

- **ARTICLE 38-**
- It is a socialist principle that reflects the character of the Indian state
- According to it, the Indian state shall be a welfare state that would try to create a society where justice prevails.

- Additionally, the state shall try to address the inequalities in income as well as minimize the inequalities between individuals and people living in different parts of India or engaged in different vocations.
- **Some of the examples of schemes and policies made by the state -**
- The Hill Areas development program,
- Aspirational district program,
- Special category status for difficult states,
- Tax on the wealthy, etc
- **ARTICLE 39**
- 1. It is based on socialistic principles and provides direction to the state to ensure adequate means of livelihood for men and women.
- **Example-**
- MGNREGA,
- Mudra Scheme,
- Pradhan Mantri Grameen Kaushal Vikas Yojana, etc.
- 2. To prevent the concentration of resources and ensure equal distribution of material resources in the community.
- **Examples-**
- Land reform measures.
- Nationalization of industries and Banks.
- Abolition of privy purse.
- 3. The state shall try to ensure equal pay for both men and women.
- **Example-**
- Payment of Wages Act and Wage Code 2022.
- 4. Citizens should not be forced into occupations unsuitable for their age and strength.
- **Examples-**
- Factories Act 1948.
- Child Labor Regulation and Prohibition Act 1988.
- 5. The state should provide opportunities to children so that they can develop in a healthy manner and protect them against exploitation moral and material abandonment.
- **Example-**
- Juvenile Justice Act
- POSCO Act-The Protection of Children from Sexual Offences Act, 2012
- Integrated Child Protect Scheme
- **ARTICLE 39A**
- It was added by the 42nd Constitutional Amendment Act 1976.
- It directs the state to ensure that the legal system of the country should work in such a manner that it is for the benefit of all in the society.

- The state is expected to provide free legal aid so that the citizens are not denied justice due to their economic situation or some other disability.
- For example, the Parliament has enacted the **Legal Services Authority Act 1987** under which **legal service authorities** have been set up at national, state, and district levels.
- **These authorities will aim-**
 - 1. Provide free aid and advice
 - 2. Spread legal awareness
 - 3. Provide compensation to victims of crimes
 - 4. Provide a mechanism for settlements of disputes through Alternate dispute Resolution routes.
- Under the NALSA scheme, certain people are eligible to get free legal aid.
- Eligible person-Women and children, SC, STs, persons with disabilities, industrial workers, victims of natural disasters and ethnic violence, victims of human trafficking, and persons belonging to below-poverty-line families.
- All the other measures taken by the state to reform the functioning of the judicial system such as setting up e-courts, use of teleconferencing for court hearings, national judicial data grid, etc
- These all fall under Article 39A.
- **ARTICLE 40-**
- It is a Gandhian principle to cast the responsibility on the state to organize village panchayats in such a manner that they can function as institutions of self-governance.
- Village panchayats have been a common feature of Indian society for a time in memorial, but they have always lacked certain structure and formal outlook
- Examples-
 - 73rd Constitutional Amendment Act provides a broad framework to ensure the effective function of panchayat in India.
 - PESA Act 1996-Panchayat (Extension to Scheduled Areas) Act (or PESA), 1996.
 - Gram Swaraj Abhiyan
 - e-Panchayat schemes
- **ARTICLE 41**
- According to it, the state should undertake welfare programs, especially for those who are not in a position to take care of themselves.
- Examples-
 - The National Policy for Senior Citizens.
 - Reservations for the physically disabled in government jobs, and educational institutions
 - National Old Age Pension Scheme.
 - MGNREGA

- Persons with Disability Act.
- **ARTICLE 42**
- According to it the state shall strive to provide decent standards of the line for all the workers and must ensure that conditions, and facilities at the workplace must be of basic minimum level.
- The Wage Code 2022 lists down basic facilities to be provided by employers to their employees
- Under the Factories Act 1948, the employer shall provide requisite protection gear and take adequate safety protections.
- The state is also responsible for providing conditions for maternity relief.
- The parliament enacted the Maternity Benefits Act 1961 which lists down provisions to be implemented by employers for the welfare of pregnant employees.
- Setting up a vast network of ASHA Workers who are supposed to provide pre and ante-natal care to pregnant women also falls under the category.
- **ARTICLE 43**
- The state shall endeavour to protect the rights of all kinds of workers either through law or some other measures.
- Wages Code 2022
- Employee Compensation Act
- Provident fund
- Factories act
- Additionally, the state must try and promote cottage industries in rural areas to promote the rural economy and protect India's traditional industries and occupations.
- A number of entities have been set up by the centre and state to promote the cottage industries.
- Khadi Village Industries Commission.
- **Article 43A**
- It is a socialist principle that was added 42nd Constitutional Amendment Act to improve the participation of workers in the management of industries.
- It is often termed as the principle of profit sharing according to which industrial workers should also have a say in major decisions of industries as well as get a larger share in the profits.
- **Some examples of legislation for this are-**
- Trade Union Act 1926
- Industrial Dispute Act 1947
- Employee Compensation Act 1923
- **Article 43B**

- It is added by the 97th Constitutional Amendment Act 2011 and aims to encourage economic activities through a cooperative model and therefore contribute to the progress of rural India.
- A number of steps have been taken in this direction such as setting up of Ministry of Cooperative at the union level and National Cooperative Development Cooperation.

UNIFORM CIVIL CODE UCC-(11:13 AM)

- **I] CONCEPT-**
- **Article 44-Uniform Civil Code-**
- UCC is an idea according to which a **common set of laws** shall be applicable to all persons in **personal matters irrespective of one religion and faith**.
- In simple words, all the citizens of India must be governed according to the same set of uniform laws in personal matters.
- The introduction of the Hindu Code Bill in the parliament was a step in this direction.
- Due to widespread opposition, this law was not passed as one act but rather as three different ones.
- Hindu Marriage 1955
- Hindu Succession Act 1956
- Hindu adoption and maintenance act 1956
- According to Article 44, the state shall try to introduce, a uniform that is a similar set of laws in personal matters.
- At present India has different personal laws, not only due to religious diversity but such laws vary from one state to another.
- This subject is mentioned in entry 5 of the concurrent list of constitutions.
- We must also remember, that it is the myth that Hindus are governed by ine uniform law in the country.
- **II] ADVANTAGES-**
- **Some of the advantages of the uniform civil code are as follows-**
- 1. A single set of laws irrespective of religion would help in the **effective implementation of the laws**.
- 2. Some personal laws are discriminatory against women and detrimental to their interests.
- Enacting a UCC would help to solve these problems.
- The **principle of equality is part of the basic structure of the constitution that can be ensured effectively by implementing UCC**.
- 3. The secular credentials of the Indian constitution and the state would be strengthened as a result of enacting UCC.
- **III] CHALLENGES IN ENFORCING UCC-**

- It is **difficult to create a consensus** between different communities over the content of UCC.
- It may **create fear in the minds of minorities** that their culture may be subsumed by the majority.
- It may run into **conflict with several provisions of the constitution** including the right to freedom of religion and cultural rights under Article 29.
- According to some experts, it may threaten India's unique diversity including, the special practices and traditions of the indigenous community.
- For example,
- UCC may run into conflict with the provisions of 371A and 371G.
- It may end up creating conflicts and communal tension in India.
- Since personal laws vary from one state to another, bringing uniformity between would be a challenging task.
- **IV] CONCLUSION**
- There is no doubt that India needs UCC in order to ensure the effective implementation of personal laws and to give effect to the provision of Article 44.
- Despite article 44 successive governments have found it difficult to evolve consensus on the UCC.
- At the same time, the courts have often mentioned that the government should take all the possible measures to enforce the UCC in India.
- **For example-**
- In the Shah Bano case, the court held provisions related to maintenance under the CrPC (Criminal Procedure Code) should be equally applicable to all women irrespective of their religion.
- In conclusion, one can say that any such move to implement the UCC should only be made after evolving a broad consensus in society.
- Such decisions should not be made in a hurry and the government should work along with various social and religious leaders and legal experts to evolve a common viewpoint on this matter.

THE TOPIC OF THE NEXT CLASS IS THE CONTINUATION OF THE DPSPs AND FUNDAMENTAL DUTIES.

Class 24

DIRECTIVE PRINCIPLES OF STATE POLICY (CONTINUE...) (01:00 PM)

Article 45:

- Amended by 86th aa according to which the original text of this article was moved to FRs, U/A21A
- At present it casts responsibility on the state to promote early childhood care and education till the age of 6 years
- **Some of the steps taken in this direction-**
- Immunization program of the govt.
- Setting up of Anganwadi centers
- Introduction of fortified means
- ICDS etc
- **Article 21A:**
- States that all children between the age of 6 to 14 must be provided free education regulated according to laws made by the state.
- Therefore, parliament enacted the RTE Act 2008 to lay the provisions wrt the same.

Article 46

- It casts responsibility on the state to promote the economic and educational interests of weaker sections of society including SCs and STs.
- The state has given effect to this directive by making reservations as well as introducing o scholarship schemes and programs such as the tribal sub-plan.

Article 47

- According to it, the state shall strive for improving nutrition, public health, and standard of living for the public.
- Initiatives- NHM, PJA, etc.
- According to it, the state must try to bring about prohibition or consumption of intoxicating drinks and drugs
- Therefore, several states have introduced a policy of prohibition.
- **NDPS Act 1985** prohibits the manufacturing and use of narcotics and drugs.

Article 48-

- The state must try and promote animal husbandry on scientific lines and in particular must prohibit the slaughter of cows and calves and other milch and drought cattle.
- **Initiatives-**
- PMFBY, SHC schemes, ICAR, NICRA, IARI, NDDB, etc.
- Some of the states have passed strict antislaughter laws to implement Art 48 respectively.

Article 49-

- According to this, the state shall endeavor to protect ecology, and safeguard biodiversity.
- Some of the steps taken in this direction include the enactment of laws such as **WPA 1973, FCA**, etc.
- The state has also introduced various schemes to protect endangered wildlife species such as tigers, elephants, etc.
- It imposes a duty on the state to protect monuments, places, and objects of national importance.
- Some of the measures taken by the state on this front include-
- Enacting ancient monuments and archaeological sites, and remains in 1958.
- **The Archaeological Survey of India** has been given the responsibility to protect and conserve some of these monuments.

Article 50-

- The **doctrine of separation of power(SoP)** requires that the principal functions of the state must be divided clearly among the different organs of the state to safeguard the citizens against the tyranny of the state.
- This concept was propounded by the French thinker **Montesquieu in 1748**.
- In his words when the legislative and executive powers are united in the same person or in the same body there can be no liberty.
- According to this concept none of the branches must exercise the powers of the other nor should a person be a member of two organs of the state.
- The **USA** has adopted the concept of strict separation of powers according to a written constitution.
- In **Britain** on the other hand an uncoded constitution allows for more fluidity in the arrangement of powers.
- **India** has adopted a parliamentary form of democracy in which enforcement of strict separation of power is not a possibility.
- At the same time, certain provisions of the Indian constitution do allow for the separation of powers.
- In order to compensate for the dilution of SoP Indian constitution has adopted the **concept of checks and balances**.

Some of the provisions in the constitution that dilute the SoP in India are as follows-

- i)Parliamentary form of govt
- ii) Ordinance-making power of the president and the governor.

- iii)Setting up of a tribunal by the executive to decide the dispute of specific nature.
- iv)Acts of judicial activism by the courts.

Some of the provisions related to checks and balances are as follows-

- i)A law made by parliament can't come into force unless approved by the president who heads the executives.
- ii)An ordinance made by the executive requires the approval of parliament to continue beyond a certain period of time.
- iii)Powers of judicial review according to which the courts may scrutinize the actions of the executive and legislature.
- iv)The powers of the legislature to pass a censure motion including a no-confidence motion.
- v)Parliamentary approvals for budget proposals made by the executive.
- vi)Powers of parliament to remove the judge of SC and HC through the resolution of parliament.
- It casts a responsibility on the Indian state to promote the resolution of conflicts on the basis of a dialogue-based approach
- It clearly shows fosters respect and internal law and global peace.
- **Some of the initiatives are-**
- Sending Indian security forces to intranational peacekeeping forces
- Fostering respect for international conventions like UDHR, ICCPR, etc.
- Not only that India has tried to resolve its conflicts with neighboring countries through mechanisms such as ICJ.

CRITICISM/ANALYSIS OF DPSP (03:00 PM)-

- Not legally enforceable.
- Hollow words and promises made by the Constitution.
- Vague and subjective in nature and are open to multiple interpretations.
- Some are repetitive in nature as well.
- Several DPSPs are in conflict with the FRs.
- **Example-** 25 v/s 44, 19(1)(g) v/s 47, 46 v/s 15, 15
- They impose a financial burden on the Indian state which is already resources starved.
- Some of the DPSPs are orthodox in nature and run contrary to the liberal spirit in the Indian constitution.

RIGHT TO PROPERTY (3:05 PM)

- **Art 19(1)(f) -**

- Every citizen shall have the right to acquire, dispose and hold the property.
- **Art 31-**
- No person shall be deprived of property save the authority of the law or except according to the law.
- Compulsory acquisition of property by the state shall be done only for the public purpose.
- Compensation provided for such acquisition must be fixed by the law or shall be determined according to principles laid down in the law.

DILUTION OF RIGHT TO PROPERTY IN INDIA (03:20 PM)

- i. Parliament introduced the first CAA adding Art 31A and 31B as exceptions to the right to property and Art 14.
- ii. Addition of laws to schedule IX to shield from JR.
- iii. 25th CAA, 1971 added Art 31C.
- If a law u/a 31C includes a declaration that it is to give effect to DPSPs under 39(b) and 39(c) the court shall have power to examine if it actually gives effect to such DPSPs.
- The word compensation was replaced by 'amount'
- It meant that the state did not need to justify the amount paid to acquire the property of the person.

DOCTRINE OF HARMONIOUS CONSTRUCTION (03:48 PM)

- According to this principle if a law has two conflicting provisions the court shall provide such an interpretation to both provisions so that both can have the maximum possible application without rendering the other useless.
- According to it, the Constitution is based on the fine balance DPSPs and FRs, and one can't give complete importance to one over the other.
- The court in Keshavnanda Bharti applied this doctrine to uphold the constitutional validity of Art 31C as this provision resolved the conflict by giving importance to some DPSPs over some FRs.
- On the other hand in the Minerva mill case, the court struck down the change made by the 42nd CAA as it disturbs this fine balance and gave over importance to all the DPSPs over some FRs.
- **44th CAA 1978-**
- It selected Art 31 and 19(1)(f) from the constitution and include the right to property as a constitutional right under **Art 300A**.

Present status of the right to property-

- At present it is available to both citizens and non citizens

- Since it is no longer FR one cant approach SC directly for its enforcement.
- Laws made by legislature cant be challenged in the court on the grounds of violating Art 300A as it doesn't enjoy protection u/a 13.
- The initial protection provided by 31(2) in the form of the doctrine of eminent domain has also been taken away.

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- **Test yourself-**
- **Question: Trace the evolution of conflict between the FRs and DPSPs with the help of judgments of the court.**
- Approach:
- Champakan Dorai Rajan case: FRs>>>DPSPs
- Shankari Prasad: DPSPs>FRs
- Golakhnath case: FRs>>DPSPs
- 25th CAA: Some DPSPs>Some FRs
- 42nd CAA: All DPSPs>Some FRs
- Minerva mill vase: Strikes down changes in 31C

NEXT CLASS: ELECTION TO THE PRESIDENT

Class 25

BRIEF REVISION OF PREVIOUS CLASS (1:07 PM)

FUNDAMENTAL DUTIES (1:09 PM)

- They are **not legally enforceable** by themselves.
- They **apply to citizens** of India.
- They are **not an original part constitution**, included by the **42nd Constitutional Amendment Act 1976**.
- **SIGNIFICANCE OF FUNDAMENTAL DUTIES-**
- 1. They **remind the citizens of their duties** while they enjoy their rights.
- 2. They serve as a **warning to those elements** which are a threat to India's unity and integrity.
- 3. They act as a **source of inspiration** to citizens to make them active participants in achieving national goals.

- 4. The court has stated that while **judging the constitutionality of the law** may take into consideration if it gives effect to a fundamental duty.
- **CRITICISM OF FUNDAMENTAL DUTIES-**
- 1. Some of them are **vague and subjective** in nature and therefore open to multiple interpretations.
- 2. **They are not enforceable in nature** on their own and are considered to be lofty ideals by some people.
- 3. According to some, the list of fundamental duties is not fundamental in nature and is missing some of the essential duties such as casting votes and paying taxes.

UNION EXECUTIVES (1:36 PM)

- Part V, Chapter 1, Article 52-78 of the Constitution.
- **ARTICLE 52-**
- **According to article 52**, there should always be an incumbent in the office of President.
- And there can not be any vacancy at any time in this position.
- The President is **not only the head but also the symbol of the Indian state**.
- Therefore **any vacancy in this position would create the situation of a constitutional crisis and reflect anarchy in the state**.
- Therefore, the constitution-makers have established the **position of Vice President to fill the office in case of vacancy**.
- Additionally, the parliament enacted the **President's succession act of 1969** to decide the line of succession to the office, in case the vice president is not able to discharge the duties.
- It also means that the outgoing president should hold office until a new President is elected.
- To ensure this, election to the office of a new President must be completed before the end of the term for the sitting President.
- Casual vacancy- A vacancy that arises due to death or resignation or removal.
- **In this (casual vacancy)case, the election of the president must be conducted within 6 months.**
- **ARTICLE 53-**
- Executive powers of the UNION.
- Executive powers- **Powers to enforce or to implement a law.**
- **According to the Supreme Court, executive powers refer to the residue of whatever is left after taking out the judicial and legislative powers of the state.**
- The **executive powers shall be vested in the President of India and shall be exercised by him or either by an officer subordinate to him.**

- Even according to the constitution, the President is supposed to exercise the executive powers either directly or through officers subordinate to him which include the council of ministers and civil servants.
- Since the President is merely a symbolic head, these powers must be exercised on the advice of the council of ministers.
- **Article-77(3) -The various ministries allocated functions and business by the President on the advice of the council of ministers.**
- **Article 73 (2)-The command of the defense forces of the Union** is also vested in the President, but since he is **titular head**, he is supposed to exercise this power and control **on the aid and advice of the Council of ministers and according to the Parliamentary law.**
- **ARTICLE 74-**
- Original provision-**Article 74(1)**-There shall be a Council of Ministers headed by the Prime Minister to aid and advise the President in the exercise of his functions.
- 42nd CAA -**President who shall act** in accordance with such advice.
- Even though India has adopted a parliamentary form of democracy, in which the President is merely a nominal head, certain doubts were raised over whether the president is bound by the aid and advice of the council of ministers or not.
- For example-Dr Rajendra Prasad, the first president of India raised doubt that the Indian president is midway between the British Crown and the American president.
- Therefore, not bound by the aid and advice of the Council of Ministers.
- The court in **Shamsher Singh vs State of Punjab and Ram Jawar vs State of Punjab** has held that India has adopted a parliamentary form of democracy based on the convention of the British model.
- Therefore the position of the Indian President is similar to that of the Monarch in the UK and he is bound by the aid and advice of the council of ministers.
- The court relies upon the constituent assembly debates and provisions of Article 75(3) to reach this conclusion.
- **According to 75(3), the council of ministers shall be collectively responsible to the House of People since power and responsibility go hand in hand with each other.**
- It leaves no doubt that President is a nominal head of the executive and does not enjoy real executive powers.
- In order to settle this debate, Parliament amended the text Article 74(1) via the **42nd constitutional amendment act to make the advice of the Council of Ministers binding on the President.**

- 44th Constitutional Amendment Act added a safety valve to this provision to 74(1) according to which the President may require the council of ministers to reconsider their advice.
- But if the council of ministers issues the same or different advice on the same issue, the President is bound to act as per such advice.
- For example, in 1998, **the President exercised this discretionary power** and asked the council of ministers to reconsider the advice to impose the President's rule in the state of Bihar.

DISCRETIONARY POWER OF PRESIDENT (3:24 PM)

- 1. As per Article 74, the **President may ask for reconsideration** of the advice given by the Council of Ministers.
- 2. As per Article 111, the **President may exercise his suspensive veto power** with respect to legislation passed by Parliament.
- For example,
- The president asked the parliament to reconsider the Office of Profit bill in 2006.
- 3. In case of a **hung parliament**, it is **President's discretion to decide who should be invited first to form the government**.
- 4. In case of a minority, **the President may ask the Council of Ministers to resign and to dismiss them if they have refused to resign after losing the majority in Lok Sabha**.
- 5. In case of a minority government, the President may exercise his discretionary powers with respect to the advice given by the Council of Ministers upon early dissolution of Lok sabha
- As per the Article 78(b), the President may ask Prime Minister to provide him with information related to affairs of the union and important legislative matters
- As per Article 78(c), the President may ask for consideration of a decision by the entire council which has been taken by the minister without the consideration of the rest of the council.

QUALIFICATIONS FOR PRESIDENT, VICE PRESIDENT, AND GOVERNOR (4:02 PM)-

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Parameters	President	Vice President	Governor

Age	35	35	35
Citizenship	Citizen of India	Citizen of India	Citizen of India
Office of Profit	Should not be holding the office of profit (exceptions-President, Vice President, Governor, Union minister, minister in-state)	Should not be holding the office of profit (exceptions-President, Vice President, Governor, Union minister, minister in-state)	Should not be holding the office of profit (exceptions-President, Vice President, Governor, Union minister, minister in-state)
	Must be an elector in any constituency in India	Must be an elector in any constituency in India	-
	Should not be disqualified under the provision of 102(2)	Should not be disqualified under the provision of 102(2)	-

- **THE TOPIC OF THE NEXT CLASS IS THE CONTINUATION OF THE UNION EXECUTIVE.**

Class 26

THE BRIEF REVIEW OF PREVIOUS CLASS (9:05 AM)

UNION EXECUTIVE (9:08 AM)

- **PRESIDENT**

- **Article 54-**

- The electoral college for the election of the president.
- Both the union and state shall have an equal role in the election of the president.
- All the states must have a say in the election that is in proportion to their population.
- There must be parity between the union and the state.
- There must be parity between the states also.
- Value of votes of MLAs = $(\text{Total population of the state} / \text{total number of the elected MLAs in the state}) * 1/1000$
- Value of vote of an MP = Total value of votes of all MPs / elected MPs

Article 55(3) (10:00 AM)

- The election would be conducted by proportional representation and by means of a single transferable vote.
- The election will be carried by secret ballot. (anti-defection law does not apply).
- The quota of votes = $(\text{Total number of votes} / \text{number of positions} + 1) + 1$
- **First past the post system-**
- FPTP works on the "winner takes all" principle.
- It is based on the plurality of votes.
- For example, three candidates stand in the election if the total cast votes are 30
A gets 9 votes B gets 8 votes and c gets 13 votes then c will be declared a winner.
- Whereas the **Proportional Representation system**, distributes seats according to the percentage of votes secured in total, the list system and Single Transferable Vote (STV) are variants of PR.
- **Manner of votings-**
- The constitution uses the term proportional representation to signify the election system for the post of the President.
- But there is only one seat for the President of India and the term proportional representation is misnomer.
- A number of political scientists are of the view that the Presidential election system is a kind of alternate voting system.
- The idea behind mentioning the term proportional representation is to convey that the system is not first past the post system.
- A successful candidate is supposed to secure more than 50% of the total value of valid votes polled.
- The Constitution also indicates that elections should take place by a single transferable vote in which the voters are supposed to rank the candidates based on their preference instead of indicating support for only one candidate.

- The ballots are counted for each voter's top choices, if any candidate secures the desired quotas of votes, he or she is declared the winner.
- If not, the candidate with the fewest votes is eliminated and the second reference indicated in those ballots would transfer the vote of the eliminated candidate.
- The process would continue for multiple rounds till the candidates end up securing more than 50% of the total value of votes polled.
- The method of election for the position of vice president is the same as the President of India.

ARTICEL 71 (11:22 AM)

- Disputes related to the election of the president can be entertained only by the Supreme Court through an election petition.
- According to Article 71(4)-Vacancy in the Electoral College can not be a ground for raising disputes over the validity of the presidential election.
- **Reasons for choosing the indirect election method for the office of President-**
 - 1. A directly elected president would have created two power centers and affected the functioning of the Central government.
 - 2. The President is merely a nominal head of government and does not exercise any real powers, electing him through direct election would have led to wasteful expenditure.
 - 3. In case the president and Council of Ministers would have belonged to two different political parties, it would have situation of deadlock at the center
 - 4. If both of them had belonged to the same political party, the role of the President to keep a check on the action of the central government would have been compromised.

Article 155 (11:45 AM)

- **Appointment of Governor-**
- According to the constitution, the governor is appointed by the President as per the advice of the Council of Minitors.
- **A number of issues have been raised with respect to the appointment of Governors-**
- The process of appointment has not been effective in addressing the conflicts between the Council of Ministers and the Governor.
- Even at the center, the president is elected indirectly and it does not compromise the principles of parliamentary democracy.
- Therefore, it is difficult to justify the appointment process for the governor.

- It is alleged that the office of the governor has become the post for the rehabilitation of rejected politicians, therefore defeating the democratic mandate provided by the citizens.
- Often the appointments are made without consultation with the state council of Ministers which leads to conflict between the council and the governor.
- In the recent past, retired judges, army officials, and bureaucrats or civil servants have been appointed as governors in different states, which has raised questions over the independent functioning of these offices.
- The recommendation of expert bodies in this-
- **The first and second Central -state relation commission has suggested-**
- The governor should be a person from outside the state so that he or she is not affected by the politics of the state.
- He should be an eminent person from some walk of life so that he can withstand any undue pressure from the central council of Ministers.
- He should be the person who should have taken part in active politics of the state in the recent past.

THE TOPIC OF THE NECT CLASS IS THE CONTINUATION OF THE UNION EXECUTIVE(PRESIDENT-PROCESS OF REMOVAL).

Class 27

PRESIDENT (9:09 AM)

- **REMOVAL PROCESS OF PRESIDENT OF INDIA**
- **Ground- Violation of the constitution.**
- This term is not defined in the Constitution but in a general sense, it refers to any act that is grossly against the provisions of the Constitution.
- **Procedure-**
- It can begin at any of the houses of the Parliament.
- House prefer the changed (Lok sabha, rajya sabha)
- At least 1/4th of the total members of the house must express their intentions to move a resolution for the impeachment.
- This intent must be given in writing.
- The notice of 14 days must be given.

- This resolution has to be passed by at least 2/3rd of the total membership of the house.
- The second house acts as an investigation house.
- The president has the right to appear and to be represented in the House.
- The second house shall also pass the resolution by a majority of at least 2/3rd of the total members of the house.
- After the passing of the resolution by the second house the President stands impeached.
- **REMOVAL PROCESS OF PRESIDENT OF AMERICA**
- The US Constitution states that the President may removed on the grounds of bribery, treason, and other higher crimes.
- The removal process can be initiated by any member of the House of Representatives.
- And if the simple majority of the house supports the impeachment the process progresses to the trial stage.
- In the trial stage, the chief justice of the Supreme Court presides over the trial where the members of the House of Representatives form the prosecution.
- The senators act as the jury.
- If at the end of the trial, at least 2/3 rd senators find the President guilty, he stands removed from office.
- **PROCESS OF THE REMOVAL OF VICE PRESIDENT OF INDIA-**
- The process for the removal of the president can initiated only in Rajya Sabha where the house should pass the resolution by majority by then membership of the house.
- At this stage, the vice president may take part in the proceeding of the house and represent himself or the cause to be represented.
- At least 14 days' notice must be given to express the intention the introduce such a resolution.
- Once passed by the Rajya Sabha, the resolution moves over to the second house which must approve the resolution by a simple majority of the house.
- Once the resolution is approved by the Lok Sabha, the Vice President stands removed.
- The Constitution does not mention any grounds for the removal of the vice president.

POWERS OF THE PRESIDENT (9:50 AM)

- **LEGISLATIVE POWERS-**
- **1. Summoning power-**
- No session of the Parliament can begin without the issue of summon orders by the President.

- It is the constitutional duty of the president to ensure that more than 6 months elapse between the two sessions of parliament.
- **2.Prorogation powers-**
- Any session of the Parliament can be brought to an end once the President issues the prorogation orders.
- **3. Dissolution power-**
- The president may from time to time issue a dissolution order for the House of People(Lok sabha).
- **4. Nomination powers-**
- The president has the power to nominate members having special knowledge and experience in the field of literature, arts, science, and social service to the Rajya Sabha on the advice of the council of ministers.
- **5. Powers to address the houses of Parliament-**
- The President has the power to address either one or both the houses of parliament assembled together.
- He also possesses the power to send messages to the Parliament with respect to legislation pending in the power.
- This provision has never been invoked in the constitutional history of India.
- It was adopted from the American constitution to ensure effective communication between the legislature and the executive.
- But in India, it is not of much relevance as the executive and legislature are fused into each other and often go hand in hand.
- **6. To make a special address to the Parliament-**
- The President is supposed to make a special address to both houses of Parliament assembled together at two specific instances.
- At the first sitting of the newly elected Lok Sabha and at the first sitting of Parliament every year.
- The President in his address discusses and elaborates upon the plans of the government and its achievements.
- The President's speech is followed by discussion in both the houses separately after which the members may move amendments to the President's speech that may be accepted or rejected as per the vote of the House.
- Finally, the entire speech is put to vote in both houses which is referred to as a vote of thanks to the President's speech.
- In the case the vote of thanks gets defeated in Lok sabha, it is considered as the defeat of the Council of Ministers and they should resign.
- Therefore one may say that another objective of the vote of thanks is to prove the majority of the council of ministers in the Lok Sabha.

ORDINANCE MAKING POWER (11:00 AM)

- The President derives his ordinance-making power from Article 123 and should be an exercise in extraordinary circumstances.
- An ordinance made by the President shall have the same effect as the law of Parliament.
- Since the ordinance-making power of the executive dilutes the principle of separation of powers, certain checks and balances have been imposed on the same.
- President can promulgate ordinances only on those matters on which the parliament is competent to make law.
- An ordinance shall remain in effect only up to 6 weeks after the assembly of both houses of Parliament.
- An ordinance can be issued only when either one or both houses are not in session.
- The ordinance promulgated shall be subjected to the same restrictions as are imposed on a law of Parliament.
- That is it cannot violate the fundamental rights or the basic principles of the Constitution.
- An ordinance cannot be issued for an amendment of the constitution.
- The Parliament can pass a resolution during the six-week period to disprove the ordinance.
- The president can issue an order for the withdrawal ordinance at any point in time before its expiry.
- As per a parliamentary convention the government while placing an ordinance in front of parliament for its approval must accompany it with a statement of reasons justifying the issue of the ordinance.
- **INHERENT DANGERS WITH THE USE OF ORDINANCE-MAKING POWER-**
- It dilutes the principle of separation of powers.
- The government may use this route to avoid the discussion in the legislature on a bill that may generate adverse reactions.
- A minority government in Lok sabha to avoid exposing its status in the legislature.
- **Judicial review of ordinance-making power-**
- In **A K Roy versus UOI** and **RC Cooper versus UOI**, the court has held that the ordinance-making power of the President and the governor can be reviewed by the judiciary **on certain grounds-**
- If the president did not act upon the aid and advice of the council of ministers
- If the satisfaction of the President was formed on the basis of irrelevant consideration and on Malafide intentions.
- If the ordinance breaches limits set by the constitution.

- The constitution of India is silent about whether re-promulgation is possible or not.
- The legislature and the courts in India have interpreted that it is possible.
- In DC Wadhwa versus the state of Bihar, the court notes that re-promulgation of the ordinance may be justified if the legislation is overburdened with work or the session is too short to consider the ordinance.
- In all the access when the re-promulgation is done to avoid the scrutiny of the legislature, it shall be considered as un constitutional exercise.
- In Bihar, 256 ordinances were re-promulgated between 1960-81 and were kept alive for a period ranging between 1 to 14 years out of which 69 were re-promulgated several times.
- In recent times, re-promulgation has been a common phenomenon.
- For example-In 2013-14, securities law(amendment ordinance was re-promulgated thrice.)
- The same was the case with the land acquisition ordinance that was introduced for the first time in December 2013.
- The decision of the court in the DC Wadhwa case has provided an excuse to the executive to re-promulgate an ordinance on account of the over-burden nature of work or by calling a shorter session of the legislature.

THE TOPIC OF THE NEXT CLASS IS THE CONTINUATION OF PRESIDENT.

Class 28

VETO POWERS OF THE PRESIDENT AND THE GOVERNOR:

- For a bill to become an act it must get approval from the President of India.
- According to Article 111, when a bill is presented in front of the President for his approval, he may either give his assent to the bill, withhold the assent, or send the bill back to the legislature for its reconsideration.
- Some of these actions may be performed by the President at his discretion.
- Collectively the powers of the President on such matters are referred to as veto powers.
- **Suspensive veto-**
- A bill passed by the parliament may be sent back for its reconsideration along with a message, but if the parliament sends the bill back to the President, the President shall give his assent to whichever was passed by the parliament.

- It is the discretionary power of the President and cannot be exercised in case of money bills.
- **Pocket veto-**
- Article 111 does not prescribe any time limit for the President, to give assent to a bill.
- Therefore, he may delay giving assent to the bill for an indefinite period.
- This is the discretionary power of the President derived implicitly from the constitutional provisions and should be used only for exceptional circumstances.
- For example, in 1986, the President exercised this veto, on Indian Post Office (Amendment) Bill 1896 and did not provide assent till the end of his tenure.
- The American President, on the other hand, has to provide approval within 10 days otherwise the bill is deemed passed by the President.
- It may be said that the pocket veto of the Indian President is larger than that of the American President.
- **Absolute veto (01:35 PM)**
- A bill introduced by a previous government pending approval of the President may be rejected by the newly elected council of ministers.
- The President cannot exercise, this power at his discretion.
- **Qualified veto-**
- It is given to the President of the USA.
- If the President sends the bill back to Parliament for reconsideration, the parliament may overrule the veto of the President by passing the bill with a higher majority.
- **The purpose behind the veto powers of the President:**
- To prevent hasty legislation by the Parliament that may have been passed without proper consideration due to a shortage of time.
- To prevent the parliament from enacting legislation passed due to populist consideration alone.
- To prohibit the parliament from enacting a law that is against the principles of the Constitution in the opinion of the President and compromises the national interest.

CLEMENCY POWERS OF THE PRESIDENT/GOVERNMENT (01:53 PM)

- The philosophy behind Clemency's powers-
- Since no judicial system is free from errors, it is important that the Executives should be provided with extra-ordinary powers to pardon a person, who has been convicted of a crime.
- Such power may be exercised in those cases, where the courts have awarded undue or harsh punishment to an individual or in those cases, where the guilt of a person has not been proven beyond a reasonable doubt.

- For example in 2012, Fourteen formal judges of the Supreme Court wrote to the President that several individuals had been wrongly awarded capital punishment in the 1980s.
- The objective behind these powers is to maintain the faith and trust of the common man in the criminal justice system.
- **Pardoning powers (02:08 PM)**
- **Pardon-** it simply means doing away with conviction as well as the sentence.
- It amounts to turning the clock back and putting an individual in a position in which he was prior to committing an offense.
- Only the President has the power to issue a pardon in case of a death sentence.
- The Governor does not have such powers.
- **Commutation-** means changing the character of punishment to a lighter one.
- For example, a death sentence may be commuted to life imprisonment.
- **Remission-** means reducing the term of punishment without changing the character.
- For example 14 years of rigorous imprisonment to 7 years of rigorous imprisonment.
- **Reprieve-** refers to a temporary stay on the execution of a sentence due to some reason.
- For example, a person may be given a reprieve from capital punishment to appeal in a higher court.
- **Respite-** it temporarily changes the characters of the punishment to a lighter one.
- It is usually done for special circumstances.
- For example on account of the pregnancy of a convict, regression imprisonment may be changed to simple imprisonment for a temporary period.

DIFFERENCE B/W CLEMENCY POWER OF PRESIDENT AND GOVERNOR (02:30 PM)

- The President can exercise these powers on those matters where the executive power of the Union extends.
- Whereas the Governor can exercise pardoning powers in those matters, where the executive power of the State extends.
- The President alone has the power to pardon a death sentence.
- The Governor does not have such powers but he may commute, or provide reprieve for a death sentence.
- Additionally, the President alone has the power to exercise mercy in case of a punishment given by a court martial.

JUDICIAL REVIEW OF CLEMENCY POWERS (02:53 PM)

- The Supreme Court in several cases such as Kehar Singh Versus Union of India, Maru Ram Versus Union of India, and Epru Sudhakar versus the state of Andhra Pradesh, has stated that judicial review of the exercise of pardoning power is possible but on limited grounds.
- The court has stated that Judicial Review can take place when the power has been exercised without application of mind or without taking the advice of councils of ministers, if it was exercised with mala fide intentions or wholly irrelevant considerations, or if the relevant material was kept out of consideration.
- In Kehar Singh Versus Union of India, the court has stated that the convict does not have a right to an oral hearing w.r.t a mercy petition.
- **The court has laid down the following grounds for the exercise of the pardoning powers:**
 - Whether the offense is an individual act of crime or if it affects the society at large.
 - Whether there is a chance of repeating the crime in the future.
 - Whether any purpose is served by keeping the convict in prison.
 - The socio-economic conditions of the convict and his family.
 - The health of the convict especially when he or she is suffering from a terminal illness.
 - The post-conviction conduct of the convict.
- **Can excessive delays in disposing of mercy petitions be grounds for commutation of death sentence(03:22 PM)**
 - In certain cases, there have been massive delays in disposing of the mercy petitions for an individual on death row.
 - The court in the Shatrughan Chauhan case, held that delays in disposing of mercy petitions can be a ground for commuting capital punishment to life.
 - The court provided the reasoning, that excessive delays in such cases are violative of an individual rights under article 21.
 - The court overruled its earlier judgment in the Devendra Singh Bhuller case, where it stated that a convict charged with crimes such as terrorism cannot come to the court for commutation of the death sentence on the grounds of delay.
 - In **Shatrughan Chauhan's case**, the court laid down the court laid down few other guidelines as well-
 - The M.Home Affairs must place its recommendation on mercy petition as soon as possible in front of the President.
 - There is a gap of at least 14 days between the rejection of the mercy petition and the execution of the convict.
 - The rejection of the mercy petition must be communicated to the convict and the family members in writing.

- The post-mortem report must be handed over to the family members of the convict.
- **Parallel Remission powers under CrPC-**
- As per sections 432 and 433 of CrPC, an appropriate government may remit a sentence on justifiable grounds.
- The power of the state and the central govt. under these provisions is parallel to constitutional power vested in the President and Governor.
- It should be exercised according to limitations imposed by section 433 A, and should not be exercised in an arbitrary manner.

OTHER EXECUTIVE POWERS OF THE PRESIDENTS (03:42 PM)

- He makes a declaration of war and peace with other countries.
- The appointment of the Prime Minister and other Ministers in the council is made by the President as per parliamentary conventions.
- He makes appointments to various important constitutional posts, including the CAG, Judges of the High Court and Supreme Court, members of UPSC, CEC, etc.
- He makes rules for convenient business and transactions of the work of the Government of India.
- He appoints administrators of various UTs and governs the UTs through them.
- He appoints the Governors of states.
- He issues declarations and regulations for scheduled areas for schedule 5.
- He signs treaties, conventions, etc. on behalf of India on the global stage.

COUNCIL OF MINISTERS (CoM) (03:49 PM)

- CoM- real head of the executive, headed by the PM.
- Cabinet- takes decisions on behalf of not of the Council of Ministers (CoM).
- Minister of State (Independent charge).
- Minister of State.
- Appointments-
- The appointment of the PM is made by the President and once he/she is appointed he/she advises the President on the appointment of other ministers.
- The appointment of PM is not a discretionary power of the President but must be according to Parliamentary conventions.
- If a party or a coalition has a clear majority in the lower house, the leader of that group should be asked to take oath as PM.
- But in the case of a hung parliament, the situation is slightly complicated.

NEXT CLASS TOPICS: Continuation of Council of Ministers, State Executive, and Provisions related to the Union Legislature.

Class 29

COUNCIL OF MINISTER (9:11 AM)

- **During the hung parliament**, the president exercises his discretionary power to invite the person to take oath as prime minister.
- **He has multiple options-**
 - 1. He may invite the leader single largest party,
 - 2. The leader of the largest pre-poll or post-poll,
 - 3. Leader of any party or alliance that has maximum possibility of forming the government and securing the support of Lok sabha.
- In such a situation, he must exercise his wisdom and see which leader has the maximum chance of proving a majority in Lok sabha.
- The president should keep the national interest in mind and select a person who can provide a stable government to the country.
- **I] Even though the Prime Minister is supposed to be first among equals, in reality, the position of PM has become similar to that of the President in the USA. Critically examine-**
- **Position of Prime Minister in CoM**
- India has adopted the British cabinet style of government that is based on the principle of the PM being first among the equals.
- It means that the PM does not special position as compared to other ministers but is only the leader of the team.
- However, in practice, India has adopted a prime ministerial form of government where the PM position is significantly more powerful as compared to the other ministers.
- **This can be attributed to a number of reasons-**
- Even though the ministers are appointed by the president, it is the PM who advises him on the same.
- The allocation of portfolios and removal of the ministers is also done by the President on the advice of the Prime Minister.
- According to Article 78, the Prime minister is supposed to keep the President informed of the activities of the Union.
- He acts as a channel of communication between the council and the President.
- Indian politics is largely influenced by the culture of personality-based politics and therefore the position of the Prime Minister has acquired significant importance.

- In the past, a number of Prime Ministers controlled a large part of the decision-making of executives, and this trend continues in the present time as well.
- The position of Prime Minister viz a viz the council is also dependent on his or her position in the political party as well as whether the government is a coalition government or not.
- **II] The size of the Council of Ministers-**
- Originally the Constitution did not prescribe any size for the council of ministers, but the 91st Constitutional Amendment Act limited the size of the council to 15% of the total size of the Lok Sabha/legislative assembly
- According to 75(1)(a) and 164(1)(a), these provisions have been enforced.
- The reason behind the introduction of such a provision was the ever-increasing size of the council during the era of coalition governments in the 1990s.
- It led to inter-ministerial friction and coordination issues within the government.
- **Arguments in favour of limiting the size of CoM-**
- It reduces red Tapism and makes decision-making swifter within the government
- It can reduce ego and political clashes within the ministers which are a common feature of a coalition government.
- It can lead to reduced expenditure and efficient functioning of government.
- It gives effect to the maxim of " minimum government, maximum governance"
- **The argument against limiting the size of CoM-**
- The creation of new ministries led to better work distribution and ensured effective accountability of the ministries.
- Setting up specialized ministries would ensure dedicated attention to the priority sectors of the economy.
- Limiting the size of CoM can create difficulties in accommodating the diverse nature of Indian society.
- Doing away with this provision can allow MPs and MLAs from different parts of the country to become a part of policymaking.
- **III] ARTICLE 75 (3)**
- CoM -collective responsibility to Lok sabha.
- They sink and swim together.
- If the Prime Minister resigns or dies the entire council of ministers dissolves.
- Article 75(2)-The ministers hold the office during the pleasure of the president.

REMOVAL OF GOVERNOR (10:14 AM)

- **Article 156-The doctrine of pleasure.**
- The governor of a state can be removed by the president at any point in time.
- The president need not provide reasons for the removal nor there is any requirement for giving any notice to the government.

- Some of the experts believe that the removal process of the governor has led to the politicization of this post.
- **Some of the other issues associated with the removal of the governor are as follows.**
- Several constitutional experts that the process is against the principle of natural justice.
- Since the danger of the removal is lurking in the mind of the governor, he is not able to exercise the discretionary powers in the public interest.
- In ideal circumstances, he is supposed to act on the aid and advise the council of ministers but this provision ends up giving excessive control to the union over the governor.
- Therefore some experts believe that this process has compromised the principle of federalism and the powers of the duly elected government.
- **B.P. Singhal versus UOI (Union of India)**
- In this case, the court held that the power of the President to remove the governor may be subject to judicial review but certain conditions need to be satisfied.
- The petitioner prima facie needs to prove that the removal was based on arbitrary grounds.
- Once this is done, the Union Council of Ministers may ask to verify the compelling reasons for the removal.
- The court has stated mere variance in the ideology or the opinion of the government with the central government cannot be a valid reason for the removal of the governor.
- This judgment of the court has been criticized as it would be impossible for the petitioner to prove his removal on irrelevant grounds till the time he has access to such relevant material on the basis of which CoM forms its opinion but this material can be produced only if the petitioner can prima facie prove that his removal was arbitrary.
- Therefore according to some experts, this judgment has legitimised the removal of the governor by the president without any justification.
- Ideally, the union council of the minister should behave more responsibly and not miss their powers for the removal of their power.
- But given the political compulsion, it may not run into reality.
- Therefore certain expert bodies have suggested that the removal should happen as per the resolution passed by the legislature or the Parliament to ensure the independence of this office.

DISCRETIONARY POWER OF THE GOVERNOR (10:42 AM)

- **1. Article 239(2)-**

- If the governor of the state is appointed as administrator of an adjoining union territory he shall act at his discretion with respect to the administration of the UT.
- **2. According to paragraph 9 of Schedule 6-**
- If the dispute arises with respect to the share of the autonomous district council in royalty from mining and license provided for such purpose the governor shall exercise his discretionary powers.
- **3. States having special status -**
- In the case of certain states having a special status, the governor is supposed to exercise discretion with respect to certain matters mentioned in specific constitutional provisions.
- Example- 371A, 371 F and 371H (a).
- **4. Under Article 200-**
- The governor may exercise his discretionary powers and reserve a bill for the assent of the president if he considers it to be of importance in the national interest.
- In case a bill derogates the power of the high court of the state, the governor is duty-bound to reserve such a bill for the assent of the president.
- But the governor must reserve a bill if the bill derogates the power of the high court.
- The governor exercises his discretion in the submission of his reports with respect to the failure of constitutional machinery in the state according to the provisions of Article 356.

EMERGENCY PROVISIONS (11:34 AM)

- **TYPES OF EMERGENCY-**
- 1. FINANCIAL EMERGENCY
- 2. PROCLAMATION OF EMERGENCY(National emergency).
- 3. ARTICLE 356-PRESIDENT RULE/ STATE EMERGENCY- Failure of constitutional machinery.
- **I] FINANCIAL EMERGENCY-**
- **Ground-**
- Article(1)-the financial stability or credit of India or part of India is at threat or risk.
- The satisfaction of the President is not discretionary but rather is supported by the aid and advice of CoM.
- **Effects of the financial emergency-**
- 1. The union may issue directions to the states to spend their financial resources in a fiscally prudent manner.
- 2. The union may also issue directions to the state for the reduction of salaries and allowances of officers in connection with the services of the state.

- 3. The union may issue directions to reserve all the bills related to financial matters including the money bills for the consideration of the president after getting approved by the state legislature.
- 4. The President may issue directions for the reduction of salaries of union officers including the judges of high courts and supreme court.
- **Safeguard with respect to financial emergency-**
- The order of proclamation of emergency must be approved by both houses of parliament within the period of 2 months.
- If during this duration of two months, the Lok Sabha gets dissolved, the Rajya Sabha must provide approval within that period and the Lok Sabha must approve the proclamation within 30 days of its reconstitution.
- The president of India can issue an order to revoke the financial emergency at any time in the future.
- **Duration of financial emergency-**
- Once approved by the Parliament, financial emergency will continue to remain in force for an indefinite period of time unless revoked by a subsequent presidential order.
- The inclusion of the provision of financial emergency has been inspired by the events that transpired in the USA in the 1930s.
- A number of legislations to deal with the economic depression were struck down by the court on the grounds of violating the constitutional provisions.
- Financial emergency provisions have never been invoked in the constitutional history of India.
- Even during the financial crisis of 1991, the government did not resort to such a measure.

THE TOPIC OF THE NEXT CLASS IS THE CONTINUATION OF THE EMERGENCY PROVISIONS IN THE INDIAN CONSTITUTION.

Class 30

THE BRIEF REVISION OF THE PREVIOUS CLASS (1:11 PM)

ARTICLE 352-PROCLAMATION OF EMERGENCY (1:16 PM)

- **NATIONAL EMERGENCY-**
- **A. Grounds-**

- The security of India or part of India is under threat due to expression, war or armed rebellion.
- Even an imminent danger of the same is enough.
- The armed rebellion was not in the constitution.
- The term used was an internal disturbance.
- Armed rebellion was added by the 44th Constitutional Amendment Act.
- **B. Area of application-**
- When the order is made by the President-
 1. When it is declared for the entire India or
 2. It may apply to part of the territory of India(not necessarily under security threat).
- **C. Effects of proclamation of emergency**
- **1. Effects on centre-state relation-**
- **i. Article 353-Executive relation between centre and state-**
 - The union becomes competent to issue executive directives to the state.
 - Parliament can enact a law and can provide executive powers on state matters.
- **ii. Article 250-Legislative relations between Centre and state-**
 - Parliament gets the concurrent power to legislate on state subjects.
 - Such a shall remain in force only up to 6 months after the proclamation of emergency ceases to operate
- **iii. Article 354-Financial relations between the centre and state-**
 - The president can modify or suspend financial arrangements between the centre and the state according to articles 268-279.
 - It shall remain in effect for a maximum period of a financial year in which the proclamation of emergency ceases to operate.
- **2. The effects on fundamental rights-**
- **i. According to article 358-**
 - Article 19 gets automatically suspended when a proclamation is made on the **ground of external aggression and war(by the 44th Constitutional Amendment Act)**.
 - Suspension of Article 19-
 - Essentially the provision of Article 19 does not remain in effect for a temporary period.
 - The state becomes competent to enact a harsh even arbitrary law in contravention of fundamental rights mentioned under Article 19(1).
 - Even a citizen cannot approach court against such a law or for the violation of fundamental rights under Article 19.
 - Such a law must contain a recital/declaration that gives effect to the provisions of the proclamation of emergency under Article 352.
- **ii. According to Article 359-**

- The President makes an order to suspend the enforcement of fundamental rights other than articles **20 and 21** as mentioned in the order (by the **44th Constitution Amendment Act**).
- The restriction on the powers of the state to impose a limitation on the fundamental rights mentioned remains intact but the right to approach court against any arbitrary law or action of the state concerning that fundamental right gets suspended.
- **3. It has effects on the duration of the legislation as well.**
- **i. Article 83-**
- The duration of Lok Sabha can be extended by 1 year at a time through a parliamentary law.
- The maximum period 6 months after the proclamation of emergency ceases to operate.
- **ii. Article 172-**
- The extension duration of the legislative assembly can be done for 1 year at a time and a maximum of 6 months after the proclamation of emergency ceases to operate.
- **D. Safeguards concerning the proclamation of emergency under Article 352-**
- 1. The proclamation of emergency must be approved by both houses of Parliament within **one month by a resolution passed special majority**(by the **44th Constitutional Amendment Act**).
- 2. The duration of the proclamation of emergency shall be **six months at a time once approved. (by the 44th Constitutional Amendment Act)**.
- If 1/10 of the members of Lok Sabha give in writing their intentions to move a resolution for discontinuing the proclamation of emergency(to the president or speaker).
- 3. The special sitting must be called within 14 days and if the Lok Sabha passes the resolution by a simple majority, the proclamation of emergency shall cease to operate.
- 4. The president may issue an order to discontinue a proclamation of emergency at any point in time.
- **5. The advice to issue an order for the proclamation of emergency must be made in writing to the President by the cabinet**(by the **44th Constitutional Amendment Act**).

JUDICIAL REVIEW OF EMERGENCY POWERS (3:05 PM)

- The Supreme Court has held that a proclamation of emergency under Article 352 is subject to judicial review but the court cannot go into advice tendered by the council of ministers to the President.

- The court may examine if there existed the relevant material to form the basis for the president's satisfaction and or whether the president acts in a Malafide manner or if the exercise of the power was arbitrary in nature.
- **ADM. Jabalpur versus Shivkant Shukla case-**
- After the proclamation of emergency in 1975, a number of people were arrested and detained under preventive detention laws such as MISA 1971.
- A number of petitioners approached the High Court against this order.
- Most of them took the view that the detention orders could be challenged by filling the Habeas Corpus petition, aggrieved by the order of the high courts the government appealed to the Supreme Court and all the matters were up together and heard in the concerned case.
- The Supreme Court ruled in favour of the government and stated that Article 21 is the whole and sole repository of the right to life under the constitution and if its enforcement stands suspended, the citizen has no right to approach the court.
- Among the five judges on the bench Justice H . R. Khana was the sole dissenter and stated that the court has failed to realise that the right to life and personal liberty are natural rights and not a gift of the constitution.
- Later on, Justice P. N. Bhagwati regretted writing the judgement and apologise for the same
- The judgment for criticised across the world and is considered one of the lowest points in the history of the Supreme Court of India.
- In 2017, in the right to privacy judgement, the majority overruled its opinion in the ADM. Jabalpur case held that the right to life and liberty are not bounties provided by the state and nor does the constitution alone create these rights.
- It also stated that it would be criminal to suggest that a democratic constitution without enforced fundamental rights would leave individuals at the mercy of the state.
- The court also stated that the powers of the court to issue the writ of Habeus corpus is a precious and undeniable feature of the rule of law.

PRESIDENT'S RULE/STATE EMERGENCY (3:47 PM)

- **A. Ground-**
- Ground-Failure of the constitutional machinery in the state.
- When the government cannot be carried out in accordance with the provision of the constitution of India.
- If the president of India is satisfied the government of the state cannot be carried out in accordance with the provision of the constitution of India on the basis of a report by the governor or failure of constitutional machinery
- Article 365 and Article 355 -are precursors to Article 356.
- **B.Area of effect-**

- The entire state or part of the territory of that state.
- **C. Effects of invoking the article 356-**
- 1. State CoM gets dismissed and the executive power of the state government is vested in the President.
- The legislature of the state gets suspended. (suspended animation)
- 2. The function of the state legislature is performed by the Parliament.
- The state legislative assembly may also be dissolved by the president but only after the approval from both the houses of the parliament.
- 3. The president can suspend for the whole or any part of the state, the operation of the entire or any part of the constitution with respect to that state.

THE TOPIC OF THE NEXT CLASS IS THE CONTINUATION OF THE PRESIDENT'S RULE.

Class 31

BRIEF REVIEW OF PREVIOUS CLASS (9:05 AM)

PRESIDENT'S RULE (9:08 AM)

- **Safeguards to Article 356**
- Every proclamation under 356 must be approved by both houses of parliament within a period of 2 months of making the proclamation.
- If the Lok Sabha gets dissolved during this period the Rajya Sabha must provide approval within 2 months and the Lok Sabha should approve within one month of its reconstitution.
- The resolution must be passed by a simple majority of both houses.
- Once approved the emergency shall remain in effect for a period of six months at a time but the maximum period for which president rule may be extended is 3 years.
- Also, beyond one year, the emergency can be extended only if the following conditions are satisfied.
- Proclamation under 352 must be in operation in the whole of India or any part of India.
- The Election Commission of India must certify the continuance of Article 356 in the state on account of difficulties in holding elections in the state.
- **Issues of invoking Article 356-**

- According to Dr Ambedkar, article 356 would be a dead letter in the Constitution but it has been invoked more than 120 times making it the most daggered letter in the Constitution.
- Unlike 1959, it was invoked only 6 times during the 1960s was invoked 11 times and between 1970-74 alone it was invoked 19 times, the misuse of this provision continued unabated till the 1990s.
- According to the Sarkari Commission out of 75 instances analysed the use of Article 356 was justified in only 26 instances.
- No liberal democratic constitution of the world has provisions similar to article 356 and therefore several experts demand its repeal.
- The prison of 356 was borrowed from the Government of India Act 1935 which was vehemently opposed by the leaders of the freedom struggle.
- The term failure of constitutional machinery is vague, subjective and prone to misuse.
- Often frivolous and arbitrary ground has been invoked by the Union to impose Article 356.
- **SR Bommai versus UOI case-**
- The SR Bommai case was the most significant judgement provided by the 9-judge constitutional bench of the Supreme Court related to the misuse of Article 356.
- Some of the observations made by the court are as follows-
- The court stated that the proclamation under Article 356 is subject to judicial review in case the president has invoked it on arbitrary grounds to topple duly elected state government.
- The court can declare its exercise unconstitutional.
- The court cannot go into adequacy of material but it can check if there exist relevant considerations to form the satisfaction of the president.
- The state legislative assembly should be dissolved only after parliamentary approval and it should be kept in a state of suspended animation till then.
- In case the state government loses majority in the assembly the strength of the government should be tested on the floor of the house and not as per the whims of the governor.
- Article 356 is an exceptional provision and should be used in limited circumstances.
- For example, an alleged case of corruption against the state council of ministers should not be a ground for invoking Article 356.
- The court also stated if it finds the use of Article 356 is not justified, it may restore the dismissed government and even restore the dissolved legislative assembly.

- In the historical judgement of 2015, the Supreme Court restored the dismissed government in Arunachal Pradesh on the grounds that Article 356 was invoked arbitrarily.
- The court in this case noted that the material considered for invoking 356 was irrelevant.
- A similar situation emerged in Uttarakhand where the court restored the dissolved legislative assembly in the state.
- These judgements served as a warning to the union government to not misuse Article 356 especially due to differences of ideologies with the party in power at the centre.
- **Instances where the use of Article 356 shall be considered an abuse of power-**
 - In case of allegation of corruption against the state council of ministers.
 - Instances leading to small disruptions of law and order in the state.
 - Change of government in power at the centre.
 - In case a few MLAs withdraw support from the state government putting its majority in the house under the scanner.
- **Reasons for the decline of the use of Article 356 after the 1990s-**
 - 1. Judicial activism started from the SR Bommai case where the courts reviewed the invoking of Article 356 multiple times.
 - 2. The era of coalition politics where the union government has been dependent on regional parties in order to retain power at the centre.
 - 3. Media activism enforced greater accountability on the union government with respect to their actions.
 - 4. Presidential activism played an important role when the president returned the recommendation to invoke Article 356 to the cabinet in 1997-98
 - Faced with the President's resistance, the central government withdrew the recommendation on both occasions.
 - 5. The decline of single-party dominance at the centre and regional parties gaining prominence has increased their bargaining power.
 - This made the central government more reluctant to invoke the President's rule to avoid backlash and instability.
 - Attorney General of India and Advocated General of State (explained and for notes refer -to class material).

UNION LEGISLATIVE (10:30 AM)

- Chapter II of Indian Constitution-Articles 79-122.
- Parliament-Article 79- House of Parliament, Council of States and President.
- **COUNCIL OF STATES**-Article 80
- 238 members representative of state and UTs.

- 12 members -nominated by the President among people having special knowledge and experience in the area of literature, arts, science and social service.
- 233- As per Schedule IV, seats as per the population figure of the 1949 census.
- There is unequal representation of states in the Rajya Sabha.
- **The comparison of the Council of State with the US Senate-**
- The US Senate is the most powerful upper chamber.
- Any treaty, convention, etc. entered into by the US president must be ratified by the Senate.
- The power of the Senate with respect to legislation is similar to the House of Representatives in the US.
- In India, the power of the Council of States is lesser in comparison to the House of People in certain legislative matters.
- Any important appointments including the judges of the Supreme Court made by the President require approval of the Senate to come into effect.
- Even in the impeachment proceeding of the president, the Senate has more powers when compared to respect to House of Representatives.
- In the Senate, the states have been provided equal representation.
- This is in contrast to the unequal representation of the State in the Council of States in India.
- **National Committee on Review of Working of Constitution -NCRWC on the unequal representation of states in the Council of States**
- NCRWC considered the issue of equal representation of states in the Council of States in great detail.
- **Some of the arguments in favour of equal representation in states are as follows-**
- Providing representation on the basis of the population has turned the Rajya Sabha into a replica of the Lok Sabha.
- Smaller states feel that the present system is discriminatory against them and gives importance to more populous states.
- For example, northeastern states put together have 14 seats in total in comparison to UttarPrdaeh which has 31 seats in the council of states.
- The US which is the perfect example of a federation provides equal representation to all states and a similar system should be followed in India.
- **The argument against the equal representation of states in the Council of States-**
- 1. Equal representation led to greater demand for smaller states resulting in the ever-increasing size of the Rajya Sabha.
- 2. Smaller states if granted equal representation may use their influence in Rajya Sabha to stall important legislation especially if they form a significant block.

- This may lead to legislative deadlock and hinder the functioning of Parliament.
- 3. Granting equal representation to all the states regardless of their population could be viewed as discriminatory against larger states.
- 4. In a democracy based on the principle of one person one vote it may appear unfair that the smaller states have equal say as the larger states.
- **Election of members of Rajya Sabha-**
- The election system is the same as the president of India- Proportional representation with a single transferable vote
- Changes were made in the provision of the Representation of People Act 2003 to introduce an open ballot system in case of the Rajya Sabha election.
- Tenure of Rajya Sabha, since it, is not subject to dissolution, it has infinite tenure.
- However individual members enjoy a tenure of 6 years as 1/3rd of members retire every second year.

HOUSE OF PEOPLE (11:25 AM)

- Total size- 543- States and UTs.
- **Allocation of seats among the states in the House of People-**
- The ratio of the population of the state and the total number of seats. (the last preceding census).
- The data of the last preceding census shall be considered as data of the 1971 census till the first census after 2026.
- The drawing boundaries of constituencies within a state-
- Population of constituency/ total number of seats allotted to constituency= same
- **The qualification for the membership of Parliament-(Article 84)**
- 1. He must be a citizen of India.
- 2. Take an oath according to the constitution of India(oath of candidate and oath of membership).
- Age criteria- Lok Sabha-25 minimum age.
- Rajya Sabha-30 Minimum age.
- The qualification prescribed by the law made by the Parliament.
- **As per the Representation of People Act -RoPA 1951-qualification of members -**
- 1. According to section 3 of RoPA to be qualified to be elected as a member of the Council of States, the person must be an elector in any Parliamentary constituency in India.
- 2. The amendment to RoPA in 2003, removed the requirement for a domicile in a particular state or a union territory that was challenged in Kuldeep Nayyar versus the union of India.

THE TOPIC OF THE CLASS IS THE CONTINUATION OF THE PARLIAMENT

Class 32

BRIEF REVISION OF PREVIOUS CLASS (9:16 AM)

PARLIAMENT - (9:21 AM)

- **The qualification of the House of People -**
- According to section 4 of RoPA to be eligible to contest an election to the House of People from an unreserved constituency a person must be a registered voter in any constituency in India.
- To contest the election from seats in Sikkim he should be an elector from any constituent in Sikkim.
- To contest a reserved ST seat in Lakshadweep, he or she must be from the ST community of Lakshadweep and must be a voter registered in Lakshadweep.
- To contest reserved ST seats from an autonomous district in Assam, he must belong to the ST community from that autonomous district and should be an elector from that district.
- **Disqualification for the membership of parliament -**
- Article 102(1)-for sitting members or for contesting the election (candidate).
- **Grounds-**
- 1. office of profit.
- 2. unsound mind.
- 3. undissolved insolvent.
- 4. no longer a citizen of India.
- 5. if disqualification under the law made by parliament.
- Article 102(2)-Anti-defection law, sitting MPs.

OFFICE OF PROFIT (9:50 AM)

- This concept originated in the United Kingdom to protect the independence of legislators from the influence of the crown.
- It ensures that the principle of separation of powers between the legislature and the executive is not compromised.
- India also adopted this concept into its constitution from Britain.
- In general terms, the office of Profit is interpreted to be an office that brings to the office holder some financial gain or advantage where the amount of such profit is immaterial.

- **The Supreme Court has laid the following principles to decide whether an office can be labelled as an office of profit or not.**
- 1. Whether the government is appointing authority is not.
- 2. Whether the government has the power to terminate the position.
- 3. Whether the government determines the remuneration with office or not.
- 4. Source of remuneration and what is the power that comes with the appointment.
- In the Jaya Bachan case, the court held that what matters is whether the office is capable of yielding any profit or not.
- And not whether the person has actually gained any monetary benefits or not.
- Both the parliament and state legislature have been given powers to make laws to exempt certain offices from the category of office of profit.
- For example, the Parliament enacted the Prevention of Disqualification Act 1959 to exempt certain offices from categorisation as offices of profit.
- **Issues associated with the exemption laws-**
- MLAs-parliamentary secretaries- same privileges as Minister and power similar to a minister.
- In recent times in several states, MLAs have been appointed as parliamentary secretaries to circumvent the constitutional limit on the size of the council of ministers.
- The court in the past declared the appointment of MLAs as parliamentary secretaries as an office of profit despite such a ruling the court says the government has repeatedly appointed MLA secretaries.
- Not only that, several states have included this office in the exempted category.
- For example in 2017, in Goa, the governor made an ordinance to exempt 50 offices from the office of profit category.
- In Delhi as well the government appointed 21 MLAs as parliamentary secretaries and the bill was passed by the legislative assembly to keep this office of profit category in a retrospective manner.
- According to several constitutional experts, such acts or actions violate the basic principle behind the concept of office of profit by creating such a long list of the entire purpose of this provision is defeated.
- It has significantly diluted the principle of executive accountability to the legislature.
- **Recommendation of expert bodies on the office of profit -**
- The second ARC has suggested amending RoPA to include the definition of office of profit under the law.
- It also suggested that all the offices including executive decision-making and financial control on public funds shall be treated as offices of profit.

- It has recommended that offices in purely advisory capacity should not be treated as offices of profit.
- The national committee for reviewing the working of the constitution recommended amending the constitution to empower the ECI-Election Commission of India to identify which offices shall be treated as offices of profit.
- We may learn from practice in England where at the time of the creation of the office, it is determined and mentioned whether it constitutes an office of profit or not

ANTI-DEFECTION LAW-Article 102(2) (11:14 AM)

- The objective of the anti-defection law was to prevent defection in Indian politics to ensure the stability of elected governments, reduce the role of money power in politics and curb the practice of giving votes in legislation due to consideration of office and money.
- Indian politics starting from late 1980- witnessed a large defection often termed as the era of aya ram and gaya ram politics.
- Disqualifications-
 1. If a member voluntarily gives up the membership in his political party.
- Definition- It includes not only cases of resignation, but the court has stated this term is wider than resignation and even the conduct and behaviour should be taken into account in such cases.
- The court has also stated that expulsion of a member from a political party is an internal matter and anti-defection law would not apply in such cases.
- 2. If a person votes contrary to the direction issued by the political party or abstains from voting and if the person's actions are not condoned by the political party within a period of 15 days, he shall be liable for disqualification.
- 3. If a nominated member joins any other political party after a 6-month period.
- The decisions over disqualification shall be taken by the presiding officer of the house.
- The constitution does not provide a time limit for the decision of the presiding officer.
- Paragraph 7 of Schedule 10 barred the court from exercising any jurisdiction on the matter of disqualification under this law.
- In the Kihoto Holohan case, the Supreme Court upheld the constitutional validity of the anti-defection law on the grounds that it promotes clean politics and reduces the role of money and muscle power in an election.
- In the same case, the court struck down paragraph seven as it interfered with the judicial review powers of the court which is part of the basic structure of the constitution.

- Originally the law provided exceptions in case of a split(if 1/3 of the members of the party in a house split from the party and formed a new party anti-defection law would not apply).
- After the 91st Constitutional Amendment Act, it was replaced with the merger (2/3 rd members of a political party split from a political party).
- If the presiding officer after getting chosen resigns from his political party and does not join any political party during the term of office as presiding officer or rejoins the political party to which he originally belonged after leaving the office, the provisions of anti-defection law shall not apply.
- This provision is inspired by the convention -once a speaker is always a speaker in Britain.

THE TOPIC OF THE NEXT CLASS IS THE CONTINUATION OF PARLIAMENT

Class 33

BRIEF REVIEW OF PREVIOUS CLASS (9:11 AM)

ANTI DEFECTION LAW (9:17 AM)

- **CONCERN WITH ANTI-DEFECTION LAW -**
- It compromises the role of the individual legislator to comment on legislation passed in the House.
- It undermines the principle of parliamentary democracy as the executive already enjoys a majority in the lower house and as the result of this law it cannot be questioned effectively by the members of the ruling party.
- It undermines the principle of representative democracy as legislators are supposed to follow the whip of the party that may be contrary to the opinion of the constituency.
- The lack of internal party democracy forces the individual to follow the direction of a handful of the people rather than one own conscience.
- The law is silent on the time to be taken by the presiding officers to decide upon the matters of disqualification.
- Since the presiding officer is usually partisan towards his or her own party, it results in an undue advantage to the ruling party.

- For example, in certain cases, the presiding officer has delayed the decision on the matter of disqualification even when the individuals were appointed as ministers after defection.
- The exception of merger under the law has only made it difficult to influence the individual but it has not curbed wholesale trading of legislature.
- A few experts also believe that this law has promoted further fragmentation of Indian politics contrary to its original objectives.
- The law does not apply to political parties and coalitions.
- Political parties are free to choose new alliance partners even though they have been given the mandate by the electorate with some other political party.
- **WAY FORWARD-**
- 2ARC recommendation-
- The presiding officer should be relieved from the disqualification decision and such power should be vested with ECI and an independent tribunal formed for this purpose.
- We may consider raising the threshold for disqualification from 2/3rd to 3/4th, making it harder for the political parties to split up.
- The second ARC has suggested that the speaker should take a decision on disqualification within a period of 3 months.
- We may consider the principle of Britain- Once a speaker always a speaker.
- We may follow the principles highlighted by the court in the Kihoto Holloin case that the whip of a political party should be applied only to those cases where the stability of the government is in question or on those matters that are central to the manifesto of the party in power.

ARTICLE 101-VACANCY OF SEATS IN THE PARLIAMENT (10:12 AM)

- An MP may resign by submitting the resignation to the presiding officer of the House.
- In such a case it duty of the presiding officer that the resignation is voluntary and genuine or otherwise he should not accept such resignation.
- If the person is elected to two seats in the Lok Sabha, he should choose which seat he wants to retain.
- If he fails to do so, then both seats shall become vacant.
- If a person is elected to the House of People and Council of States simultaneously he should choose which seat he wants to retain.
- If he fails to do so, then the seat in the Council of State should become vacant.
- In case a person is chosen simultaneously as MP and state legislature unless resigned previously the seat in the parliament is become vacant.
- A person absent for more than 60 days continuously without permission from the house may be disqualified by the house by passing a resolution.

PARLIAMENTARY FUNCTION (10:28 AM)

- **PRESIDING OFFICERS-**

- There are two Presiding officers in the Lok Sabha i.e. Speaker and Deputy Speaker.
- There are no prescribed qualifications for the Presiding Officer except being a member of the house.
- As per convention, the deputy speaker is from the opposition.
- The Speaker shall continue to hold the position till the first sitting of the newly elected LS.
- In case the speaker resigns from the position before the new LS is elected, the Deputy Speaker shall perform the role of Speaker.

- **PRESIDING OFFICERS-**

- The manner of choosing presiding officers-

- **LOK SABHA- SPEAKER-**

- They are chosen as per a majority vote of the house. (effective voting).

- **Speaker Pro-tem-**

- He presides over the election of a new speaker.
- Oath administration of newly elected members.

- **FUNCTIONS AND RESPONSIBILITY OF PRESIDING OFFICERS-**

- Decides upon the disqualification under the anti-defection law.
- Responsible for maintaining the decorum in the House.
- In case of indiscipline by a member, may even take disciplinary action against the erring member including suspension or expulsion from the House.
- Final interpreter of the laws, rules, regulations and constitution within the House.
- Empowered to adjourn the House and to suspend its sitting in the event of the absence of a quorum.
- Decides the time allocated to the members to speak in the House.
- Has the discretion over accepting or rejecting the various motions in the House.
- He is the final authority in accepting or rejecting the point of order raised in the House.
- Supposed to ensure the proper and smooth functioning of the House so that the Parliament can continue to enforce accountability on the executive.
- In case of a tie in the House, he is supposed to make a casting vote in the House.
- The Speaker is also the chair of the Business Advisory Committee, which is responsible for deciding the business of the House and allocating time for the same.
- The Speaker also chairs the General Purposes Committee and the Rules Committee of the Lok Sabha and appoints the chairpersons of other committees among the members.

- **Special power of the speaker of Lok Sabha-**
- He decides whether the bill is a money bill or not.
- He presides over the joint sitting of Parliament-
- **The concerns over the neutrality of presiding officers-**
- 1. Biased decision-making under the anti-defection law.
- 2. Biased over-certifying certain bills as money bills.
- 3. Allegation has been raised over biased attitudes in acceptance or rejection of various motions.
- 4. Question overuse of disciplinary power to suspend the members of the house.
- **REMOVAL OF PRESIDING OFFICER-**
- The Speaker and a Deputy Speaker can be removed as per a resolution passed by the House with a majority of the then membership of the House.
- Such a resolution must be moved by giving at least 14 days' notice.
- While the motion for the removal is under consideration, the Speaker shall not preside over the proceedings of the House but can take part in the proceedings as a member.
- He can vote in the first instance but does not have a casting vote in case of a tie.
- The Speaker of LS can submit his resignation to the DS but he must also inform the President of India about the same.

THE FUNCTIONING OF PARLIAMENT (11:42 AM)

- **A day in Parliament-**
- **11 AM-12 PM -QUESTION HOUR**
- Question hour is mentioned in the rules and procedure of Parliament.
- It is an important tool in the hands of the Parliament to hold the executive accountable for its actions.
- The MPs may post a question related to laws and policies under the control of various ministries.
- The members may pose questions to the private members as related to private member bills and the functioning of the committees of the Parliament.
- **These questions can be classified into three categories: Starred, Unstarred and Short Notice Questions.**
- (i) Starred Questions – If a Starred Question is asked, this means that the Member who asks the question wants an oral answer from the concerned Minister.
- The Minister's answer may be followed by other additional questions by Members.
- (ii) Unstarred Questions – An Unstarred Question does not need an oral answer, and the question will get a written answer which will be submitted to the Parliament by the concerned Minister.

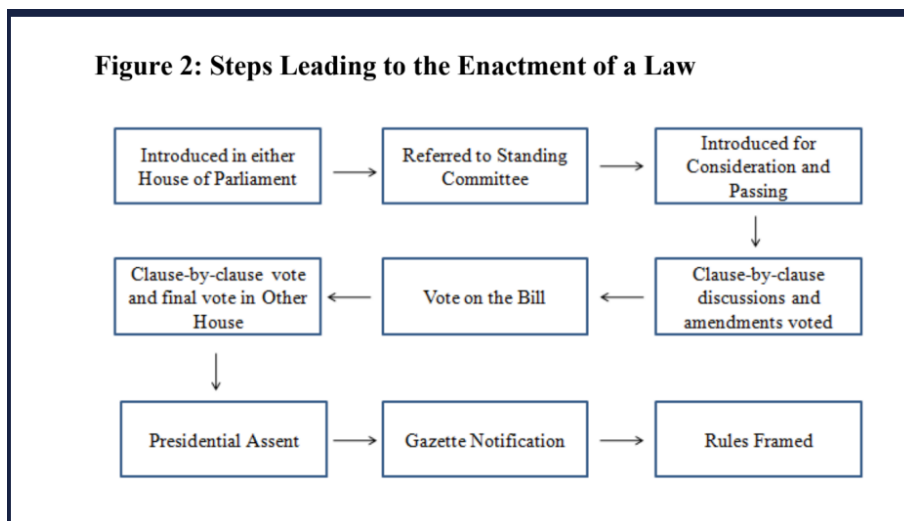
- In this case, no additional questions can be asked.
- (iii) Short Notice Questions – These are questions asked on matters of public importance which need to be addressed urgently, within a shorter time period than ordinary questions.
- Like a Starred Question, a short-notice question is answered orally and can be followed by additional questions.
- **IMPORTANCE OF QUESTION HOUR-**
- It ensures legislative control over the executive and keeps the ministers on their toes as their answers are widely publicised for public consumption and scrutiny.
- It is an effective method of ensuring checks and balances on the functioning of the executive.
- It acts as a deterrent for the government to involve itself in financial misdoings.
- The government remains in touch with the issues faced by the people Ministers can become aware of many loopholes which they might have overlooked.
- **RULES OF QUESTION HOUR-**
- They have to be precise and not too general.
- The question should also be related to an area of responsibility of the Government of India.
- Questions should not seek information about matters that are secret or are under adjudication before courts.
- It is the presiding officers of the two Houses who finally decide whether a question raised by an MP will be admitted for answering by the government.
- **ISSUES RELATED TO QUESTION HOUR-**
- It has been the biggest casualty of parliament disruption in India.
- A large portion of time allocated to the question hour has been wasted due to a ruckus in the Parliament.
- For example in 2015, 26% of the time allocated to question hour was utilised for asking the question. In 2020, this number stood at 20%.
- Recently, the Business Advisory Committee of LS even suspended the question hour due to COVID-19.
- In the past, the MPs have been found guilty of asking the questions after taking money during the question hour.
- Many MPs do not use the opportunity provided during the question hour due to several reasons including lack of research and support staff.
- **Kindly refer to the handout for detailed information on topics given by the faculty.**
- **12 PM-1 PM -ZERO HOUR -**
- It is by convention.

THE TOPIC OF THE NEXT CLASS IS THE CONTINUATION OF THE FUNCTIONING OF PARLIAMENT.

Class 34

FUNCTIONING OF THE PARLIAMENT (1:05 AM)

- **ZERO HOUR-**
- The Zero Hour is usually used to raise matters that are urgent and cannot wait for the notice period required under other procedures.
- For raising matters during the Zero Hour, MPs give notice before 10 a.m. to the Chairman on the day of the sitting. The notice must state the subject they wish to raise in the House.
- The Chairman decides whether to allow the matter to be raised.
- Short notice questions too are taken up during the Zero Hour.
- **LEGISLATIVE PROCESS IN PARLIAMENT -**



-
- The legislative process starts with the introduction of a Bill in either House of Parliament—Lok Sabha or Rajya Sabha.
- A Bill can be introduced either by a Minister or by a private member.
- **First reading** the concerned member should obtain permission of the house for the introduction of the bill.
- Accompanied along with a statement of reasons provided by the concerned member.
- A brief discussion on the general aspects of the bill.
- Sought through vote.
- **Committee stage of the bill-**

- Select committee or Joint committee of both houses.
- Analyse the bill in details -invite comments and suggestions from the public.
- The committee makes its report on the bill.
- **Second reading-**
- General discussion will happen on the bill
- The report of the committee may be discussed
- Clause by clause discussion
- Members may even suggest amendments to the bill
- Amendments are accepted or rejected through a vote of the House.
- **Third reading -**
- 1. Final comment on the bill.
- 2. The entire bill is put to the vote of the House.
- **The other House can take either of the following courses:**
- It may reject the Bill altogether. In such a case provisions of Art 108(1) (a) as to a joint sitting may be applied by the President.
- It may pass the Bill with amendments. In this case, the Bill will be returned to the originating House. If the House which originated the Bill accepts the Bill as amended by the other House, it will be presented to the President for his assent (Article 111).
- If however the originating House does not agree to the amendments made by the other House and there is final disagreement as to the amendments between the two Houses, the President may summon a joint sitting to resolve the deadlock.
- It may take no action on the Bill i.e. keep it lying on its Table. In such a case if more than 6 months elapse from the date of receipt of the Bill, the President may summon a joint sitting.
- When a Bill has been passed by both Houses of Parliament either singly or at a joint sitting as provided in Art. 108, the Bill is presented to the President for his assent.
- **Effects of dissolution of Lok Sabha on the bill**
- A bill is introduced and pending in Lok Sabha and if Lok Sabha gets dissolved the bill shall lapse.
- A bill is introduced in the Rajya Sabha pending in Rajya Sabha and Lok Sabha gets dissolved the bill would not lapse.
- A bill is introduced in Lok Sabha, passed by Lok Sabha and is pending in the Rajya Sabha, if the Lok Sabha the bill shall lapse.
- A bill is introduced in the Rajya Sabha, passed in Rajya Sabha and while it is pending in Lok Sabha the Lok Sabha gets dissolved, and the bill lapses.
- The bill is passed by both houses of Parliament and is spending the approval of the President and the Lok Sabha dissolves the bill shall not lapse.

Table 1: Kinds of Bills in Parliament

Kind of Bills	Subject	Introduction	Passage
Ordinary Bills	Anything under the Union and Concurrent Lists	Introduced in either House	Simple majority in each House
Money Bills	Involving taxation, borrowing, govt funding, payment or withdrawal of money from the Consolidated or Contingency Funds of India	Introduced only in LS	Simple majority in LS RS can recommend changes but LS has the right to reject them RS must return or pass a Money Bill within 14 days or it is deemed passed
Constitutional Amendment Bills	Amends the provisions of the Constitution	Introduced in either House	Simple majority of total membership and two-third majority of the MPs present and voting Some Bills also need to be ratified by half the state legislatures in the country

TWO TYPES OF BILL (2:09 AM)

- **I] Ordinary bill-**
- **II] Financial bill-**
 - 1. Money bill
 - 2. Financial bill type 1
 - 3. Financial bill type 2

	Money bill	Financial bill (I)	Financial bill (II)
Article	Article 110	Article 117(1)	Article 117(3)
Content	Only deals with financial matters such as imposing the tax, abolition,	Deals with financial matters along with certain other matters	Deals with other matters but also include-money matters

	amendment withdrawal from the consolidated fund, of money. The introduction of the bill contains only the matter mentioned in 110(1)		
Introduction	Only in the Lok Sabha	Only in the Lok Sabha	Either house of Parliament
Powers of Rajya Sabha	Limited powers, It can either accept the bill or recommend or not act for a period of 14 days. After 14 days the bill shall be deemed passed.	The powers of Rajya Sabha are the same as Lok Sabha	The powers of Rajya Sabha are the same as Lok Sabha

	The initial recommendation of the President is required	The initial recommendation of the President is required	At any stage before passing the bill, the recommendation of the President is required.

ISSUES ASSOCIATED WITH MONEY BILLS (3:12 PM)

- Whether a bill is a money bill or not, should be decided by the presiding officer of Lok Sabha or the state legislative assembly.
- The presiding officer is supposed to certify this at the time of transmitting the bill to the Rajya Sabha.
- Often the government have been accused of introducing the bill as a money bill to escape the scrutiny of the Rajya Sabha.
- It generally happens in that situation where the government lacks the requisite majority in the Rajya Sabha.
- As per several constitutional experts such practice violates the basic structure of the constitution as it affects the federal character of Indian polity.
- The constitution has the role of the revisory house to the Rajya Sabha to prevent hasty and politically motivated decisions which get defeated as such result of such intention of the executive.
- Since the neutrality of the speaker is also a matter of debate the decision of the speaker to declare a bill as a money bill has also come under suspension.
- Given this situation, it is necessary to evolve an objective and independent process to arrive at the correct decision.
- We can follow the British system where Britisher on such matters is taken by a committee consisting of the opposition members as well.
- Even though the courts have shown restraint in general from interfering in such matters due to provision 110(3), the court in the Aadhar case held that it does have the power to check whether the speaker acted in an arbitrary manner or not.
- However, despite the judiciary review, there is an urgent need to bring reforms to check the misuse of this provision.

BUDGETARY PROCESS (3:36 AM)

- **Preparation of Budget document-**
- Every year, the Department of Economic Affairs under MoF sends requisitions to various departments and ministries of the government of India asking for their budgetary demands for the coming financial year.
- The ministries formulate these demands after internal consultations and consultations with the concerned state governments and other stakeholders.
- On the basis of these demands for grants made by various ministries, the MoF prepares the expenditure budget.
- **Union Budget consists of various components-**
- Annual financial statement-
- Explained through example-
- Estimates of Expenditure for the coming year-2024-25
- Estimates of revenue for 2024-25
- Estimates of expenditure and revenue for the present financial year-2023-24
- Actual expenditure and revenue of previous financial -2022-23
- Consolidated Fund
- Public Account
- Finance Bill
- Memorandum
- Expenditure Budget
- Receipts Budget
- Macroeconomic framework statement
- Medium-term fiscal policy statement
- Fiscal policy strategy statement
- **Presentation of budget and discussion-**
- After tabling the budget documents in the House of People, the Finance minister makes the budget speech in the House explaining the critical highlights of the Budget.
- This is followed by a presentation in the CoS after which General Discussion happens in both houses on the budgetary proposals.
- Time is allocated to different political parties on the basis of their strength in their house to provide comments on the budget.
- Post this exercise, both houses of the Parliament go into recess for ~ 2 months.
- **Vote of account**
- It is a tool used by Parliament to allow the executive to spend the money as per the budget proposals until the Parliament passes the Budget.
- It allows the executive to carry on its usual business and not wait for approval from the Parliament.
- It is passed before the Parliament goes into the break after the general discussion on the budget.

- **Committee stage-**
- During recess, the DRSCs analyse the grant demand in detail and provide their recommendations as a report.
- Each of these committees analyses the demands made by the specific departments and includes 31 members each (21 from LS and 10 from RS)
- The discussion is generally apolitical and focused on improving the accountability of the executive to the legislature.
- **Post-committee discussion in Parliament-**
- After the reassembly, the demand for grants is discussed in detail on the basis of reports provided by the DRSCs.
- At this stage, members may suggest cutting the demand for grants.
- Even though the discussion on the demand for grants takes place in both Houses only the LS may introduce cuts.
- Cut motions are nothing but a Parliamentary device on the basis of which the LS can suggest a reduction in the budget demanded by various ministries and departments.
- **Various types of cut motion-**
- Policy cut motion: It expresses complete disapproval of the policy of the government and reduces the demand for grants to Re 1.
- Token cut motion: If the token cut motion is passed by the House, the demand for grants is reduced by Rs 100. The idea behind the token cut is to express token disapproval of the policy proposed by the executive.
- Economy cut motion: If passed, the demand for grants is reduced by RsX.
- Its purpose is to suggest the economy in the expenditure proposed by the government.
- **Appropriation bill**
- All the demand for grants is put in the form of an appropriation Bill to withdraw the money from the consolidated fund of India.
- After the introduction of the cut motion and the passing of the demand for grants, the introduction and passing of this bill is a mere formality.
- **Finance bill-**
- At this stage, this bill containing the taxation proposals is presented in front of the Parliament.
- Once the finance bill is passed, the budget is deemed passed by the Parliament.

THE TOPIC OF THE NEXT CLASS IS THE CONTINUATION OF THE BUDGETARY PROCESS.

BRIEF REVISION OF BUDGETARY PROCESS IN PARLIAMENTARY (1:05 PM)

CERTAIN PRINCIPLES TO BE FOLLOWED DURING THE BUDGETARY PROCESS IN INDIA- (1:12 PM)

- No taxation proposal should be implemented without the approval of the legislature.
- Any money should be withdrawn from the Consolidated Fund of India only as per the approval of the legislature.
- The popularly elected house i.e. Lok Sabha should have an upper hand in the budgetary process.
- **Why parliament does not discuss in detail the demand for grants by itself-**
- The Parliament consists of layman politicians who lack technical knowledge related to the functioning of specific departments and ministries of the government.
- The Parliament is too big a group to make any effective decision on such complicated matters.
- This task can be best performed by committees that are relatively smaller and therefore more effective.
- The functioning of committees is relatively apolitical as the discussion happens behind closed doors.
- **The various grants made by executives to legislative-**
- Supplementary grants-
- It is mentioned under Article 115 (1) (a) when the funds allocated under the budget are found to be insufficient to meet the objectives during the current financial year.
- In such a case, the Parliament may provide the executive with supplementary grants.
- Additional grants-
- They are granted when the need has arisen for expenditure upon a new service associated with an existing service and not contemplated in the Budget for that year.
- Excess Grant-
- They are granted when the money has been spent on any service during the financial year over and above the amount granted for the service in the budget for that year.
- Any excess grant must be approved by the Parliamentary Accounts Committee before they are put to vote in front of the Parliament.

- **Exceptional Grants:** They are granted to make an expenditure on a service that is not a part of any service in the current financial year
- **Vote of credit-**
- It is granted for meeting an unexpected or exceptional demand on the resources of India when on account of the magnitude or indefinite character of the service, a demand for the grant has arisen that cannot be ordinarily stated with the details given in the annual financial statement.
- It is like a blank cheque the Parliament gives to the executive.

PARLIAMENTARY COMMITTEE(1:40 PM)

- **Role of Parliamentary Committee-**
- It examines Departments of the government.
- It examines the bill.
- It reports on the functioning of government ministries, departments, etc.
- President of the U.S. **Woodrow Wilson once remarked, -'It is not far from the truth to say that Congress in session is Congress on public exhibition, whilst Congress in Committee rooms is Congress at work.'**
- Parliamentary committees are composed of groups of MPs.
- These Committees review proposed laws, oversee the activities of the government, and scrutinise government expenditure.
- Their reports allow for informed debate in Parliament, as well as increase the efficiency and expertise of Parliament.
- Parliament lacks the expertise and time they fill that gap
- Committees also provide a forum to build consensus across party lines
- They enable consultations with independent experts and stakeholders
- The government is required to table an 'Action Taken report for the House to judge the progress made on the suggestions of the committee.
- **Ad hoc committees-**
- These committees are appointed for a specific purpose and they cease to exist when they finish the task assigned to them and submit a report.
- The principal Ad hoc Committees are the Select and Joint Committees on Bills.
- **Standing committees-**
- These act as Parliament's Watchdog over the Executive.
- They are permanent in nature.
- Some of the important standing committees are as follows-
- **Departmentally Related Standing Committees (DRSCs)-**
- They were constituted in 1993 to assist Parliament in scrutinising funds allocated to Ministries.
- They also examine Bills referred to them by Parliament.

- They are composed of 31 members - 21 from Lok Sabha and 10 from Rajya Sabha.
- Financial Committees-
- These include the Committee on Public Accounts, the Committee on Public Undertakings, and the Estimates Committee.
- They ensure that ensure that public finances are used efficiently.
- Administrative committees-
- Both Houses have set up different Committees, such as the Business Advisory Committee, which helps decide the daily agenda of Parliament.
- Accountability committees-
- These are the Committee on Government Assurances, the Committee on Subordinate Legislation, and the Committee on Petitions.
- **Some of best examples-**
- Northeast Frontier (Assam) Tribal and Excluded Areas Sub-Committee and the Excluded and Partially Excluded Areas (Other than Assam) Sub-Committee (1947).
- PERSONNEL, PUBLIC GRIEVANCES, LAW AND JUSTICE – identified the shortcomings and suggested measures to facilitate effective and efficient redressal of public grievances.
- Suggested to forward grievances to state governments received on CPGRAMS.
- The Committee on Rural Development & Panchayati Raj in its report noted that the RE always fell short of the budget estimates.
- PAC highlighted several concerns in a 2015 report including but not limited to audit findings about inadequate shipbuilding practices, frequent mid-course changes, delays in the finalisation of weapon packages, and an underestimation of costs by shipyards.
- **Limitations-**
- All bills need not be referred to a parliamentary committee which has reduced their effectiveness.
- In the 16th Lok Sabha only, 29 % of the bills were referred to the parliamentary committee in comparison to 70% of bills in the 15th Lok Sabha.
- Parliamentary committees suffer on account of a shortage of staff Shortage of time affects comprehensive functioning.
- Recommendatory in nature.
- The attendance of the MPs at meetings is not consistent with irregularity in their functioning.
- DRSCs are renewed on an annual basis which affects their specialization.
- **Way ahead-**
- The problem of shortage of technical staff may be addressed by selecting young and dynamic individuals interested in the area of functioning of the parliament.

- They can be given a fixed timeline to come up with the recommendation and present its report.
- There is a need to increase the number of DRSCs and their term may be increased beyond the period of one year.
- The NCRWC is setting up new DRSCs including the committee on the national economy, for scrutinizing amendment bills, and legislative planning.
- Mandatory attendance at meetings of the committee.
- Adopting the British practice of compulsory referral.
- During the discussions of the committee, no party whip would apply.

PARLIAMENTARY PRIVILEGES AND IMMUNITIES (2:26 PM)

- **Definition**
- Parliamentary privilege refers to rights and immunities enjoyed by Parliament as an institution and MPs in their individual capacity, without which they cannot discharge their functions as entrusted upon them by the Constitution.
- According to the Constitution, the powers, privileges and immunities of Parliament and MPs are to be defined by Parliament. No law has so far been enacted in this respect.
- After the 44th CAA, 1978 specific reference to the House of Commons has been deleted w.r.t parliamentary privileges.
- **Individual Privileges**
- Freedom of Speech-
- No member can be taken to task anywhere outside the four walls of the House
- Freedom from arrest-
- Under Section 135 of CPC, a sitting legislator cannot be arrested in a civil case 40 days before after and during the ongoing session of the Parliament.
- Exemption from attendance as witnesses-
- The members of Parliament also enjoy freedom from attendance as witnesses during the session.
- **Collective Privileges**
- Right to punish members and outsiders for breach of its privileges-
- It has been given punitive powers to punish those who are adjudged guilty of contempt of the House.
- The Parliament has the privilege to publish its debates and proceedings-
- In normal circumstances, the Parliament does not prohibit the press from publishing its proceedings, yet it does have a right to enforce such a mechanism.
- Exclusion of strangers-
- Each House of Parliament also enjoys the right to exclude the press and strangers from witnessing the proceedings of the Parliament.
- **Breach of privileges-**

- The Parliament may punish individuals who are guilty of breaching these privileges.
- Such a breach may be committed by members of the House or outsiders.
- When an MP is involved in misbehaviour or commits contempt of the House, he or she may be expelled from the House as well.
- For example, in 2006, 11 members were expelled by the speaker of the LS in the cash-for-question scam.
- **Punishment for Breach of Privilege:**
 - The house can ensure the attendance of the offending person.
 - The person can be given a warning and let go or be sent to prison.
 - Examples-
 - In the case of throwing leaflets and chappal, the offending individuals were sentenced to simple imprisonment.
 - In 2008, an editor referred to the D.C of Rajya Sabha as a "coward".
 - The privileges committee held the editor guilty of breach of privilege.
 - The committee instead of recommending punishment stated that, "it would be better if the House saves its own dignity by not giving undue importance to such irresponsible articles published with the sole intention of gaining cheap publicity."
- **Why these privileges are prone to misuse-**
 - The privilege and immunity shall according to law by Parliament.
 - Till the time Parliament, makes the law, it will same as the House of Commons in Britain.
 - The privileges and immunity shall be what they were before the 44th Constitution Amendment Act.
 - 1. Threat to democracy because of Non-Codification-
 - Art.105(3) authorizes the Parliament to codify its privileges and until then rely on the privileges of the British Parliament.
 - 2. Our Parliament has not yet codified its privileges.
 - Therefore it can punish citizens for breach without even telling them what the privileges are.
 - 3. Mere codification will not grant protection to free speech-
 - SC has held that Art.105 and 194 being special provisions would trump Art.19(1)(a).
 - SC held that there can be no JR on the speaker's decision of breach unless it is proved that the decision was an " exertion of arbitrary powers."
- **Instances of parliamentary privilege misuse-**
 - A Karnataka tabloid in 2017 published defamatory articles against an MLA.
 - Based on the Privilege Committee's recommendations, the Assembly imposed a one-year sentence on the journalists.

- The final decision was of the Speaker, Koliwad, who was the one who had lodged the complaint against the journalists. High Court stepped in and stayed the jail sentence.
- In Maharashtra, a person was sentenced to 90 days imprisonment for breach of privilege for using the sentence, "We would not allow minister's wives to move around if dance bars were banned."
- The High Court refused to interfere in the Legislative matter.
- Ultimately, the Supreme Court issued a stay order.
- Similarly, in 2019, a parody video of Devendra Fadnavis delivering a speech in the House was taken as an insult to the House and a breach of parliamentary privilege.
- Reason for Non-codification-
- Codification of these privileges may put them in direct conflict with various FRs, especially freedom of speech and expression under Article 19(1)(a) and therefore allow the courts to enter into such matters.
- The vagueness due to non-codification works in the favour of the Parliament as it can arbitrarily apply them.
- The Parliament believes that there have been very few instances of misuse of these privileges and therefore, there is no pressing need to codify them.
- It is often argued that specifically defining the privileges may hamper the powers of the Presiding officers to take disciplinary actions against the erring members.
- Way forward-
- Parliament fears losing its supreme power when the codified law comes under judicial scrutiny.
- This is affecting the fundamental rights of citizens and it is not the way a democracy should function. Knowing the intention of the parliamentarians, the Supreme Court may give the legislature a deadline for codifying its privileges so that further abuse of privileges is prevented.
- Finally, unless the privileges are codified and the relation between privileges and fundamental rights is balanced, the present scenario should be improved.
- One possible solution could be making the Privilege Committee as impartial as possible.
- Since it is this Committee which recommends whether there has been a breach and what punishment can be accorded to the person, it should follow all procedures of natural justice.

STATE LEGISLATURE (3:27 PM)

- **State legislative consists of-**
- Governor
- State legislative assemblies

- State legislative council(optional)-
- **Legislative council**
- The states having legislative councils - Telangana, Maharastra, Andhra Pradesh, Karnataka, UP, and Bihar.
- The abolition and creation of legislation are mentioned in Article 169.
- The state legislative assembly passed a resolution for a legislative council-special majority.
- After the approval, it is conveyed to the Parliament of India and then Parliament makes law for abolition or the creation of a Legislative council.
- Such a law would have an effect on Article 168(amending the constitution).
- Such a law shall not be deemed as a constitutional amendment act under Article 368.
- So, it will be passed as ordinary law.
- **Composition of Legislative Council-**
- 1/3rd-elected -(electoral consists members of local bodies in the state).
- 1/3rd-elected-(electoral-MLAs of state).
- 1/3rd -divided further-
- 1/6- nominated(from experts from **literature, science, arts, the cooperative movement and social services**)by the Governor of the state.
- 1/12th -elected by graduate constituency(who are voters of the state, people who hold a graduate degree or equivalent and held for at least three years).
- 1/12th -Teacher's constituency(All the teachers in the state not less than secondary level)(atlaest for 3 years).
- Size- 40 minimum and cannot be more than one-third of the membership of the State Legislative Assembly.
- **Composition of legislative assemblies-article 170**
- Maximum-500
- Minimum -60
- **Number of seats in legislative assemblies-**
- Population figures from the 1971 census till the first census of 2026.
- **To determine the boundaries of the territorial constituency-**
- Population of territorial constituency/ number of seats allocated to a constituency shall be constant.
- Data is used of (the 2001 census) till the first census of 2026.
- **Process of legislation in the states having two houses-**
- **Ordinary bill-**
- If a bill is introduced in the legislative assembly and it is approved.
- **It is sent to the legislative council for approval** -4 options are available to the legislative council-
- 1. Accept.

- 2. Do not act on the bill for three months.
- 3. They can make changes to the bill.
- 4. They can reject the bill.
- In the above three cases, it will be sent back to the legislative assembly-
- 1. If the legislative assembly does not act on the bill- it will be dead.
- 2. If the legislative assembly approve and further sends (second journey) to the legislative council-
- Option available- accept or not act for one month.
- It will go for the governor's assent.
- **If the bill is introduced in the legislative council-** does not act- dead or if approved and passes to legislative assembly -
- 1. Can pass.
- 2. No action on the bill- the bill will be dead.
- 3. Reject the bill- the bill will be dead.
- 4. Amend the bill- It will be equivalent to that second journey of the bill.
- Legislative council -accept or after 1 month deemed passed.
- **Differences between the Powers of the Council of States and the Legislative Council-**
- No concept of Joint sitting.
- The amendment suggested by the legislative council may or may not be accepted by the Legislative Assembly.
- A bill originating in the legislative council if rejected by the Legislative assembly comes to an end instantly.
- A legislative council is merely a delaying chamber.
- In the case of money bills, the powers of Legislative councils are the same as Rajya Sabha (delay the bill by a maximum of 14 days).
- **Arguments in favour of retaining the Legislative Council-**
- It prevents majoritarianism. Essentially it ensures that the same party does not necessarily dominate the legislative assembly and legislative council.
- It prevents hasty and populist legislation as the legislative assembly is often driven by political considerations.
- It provides representation to grassroots bodies thereby strengthening India's multilevel federalism and efforts of decentralization.
- It provides representation to diverse sections of society including teachers.
- It ensures the presence of technical expertise through the nomination route.
- **Arguments against the Legislative Council**
- It is a superfluous body that serves no special purpose.
- It is at best a delaying chamber as it can delay a bill by a maximum of 4 months.
- Often politicians rejected by the electorate are provided representation in the legislative councils.

- It is an expensive affair to maintain a legislative council.
- Representation of political parties in graduate and teacher constituencies defeats the entire purpose of these constituencies.
- Several states including Tamilnadu, Rajasthan, etc have already abolished Legislative councils due to lack of utility.

THE TOPIC OF THE NEXT CLASS IS THE CENTER-STATE RELATIONS.

Class 36

CENTRE-STATE RELATIONS (1:04 PM)

- **LEGISLATIVE POWERS-**
- 1. Territorial division-
- 2. Subject matter-
- **I] Territorial division-**
- Article 245-Union legislation shall be applicable throughout the territory of India or part of it.
- The laws of the state shall be applicable throughout that state or part of it.
- Article 245(2)-A law made by parliament can have extra-territorial operation as well.
- Example -Maritime laws, Data Protection Act, etc.
- **The doctrine of territorial nexus-**
- RMDC versus the state of Bombay-
- In normal circumstances, a law of state legislature cannot have extra-territorial operations, but as per this doctrine, an exception can be made if there exists a sufficient nexus between the subject and the territory of the state.
- In other words, if an entity has operations outside the state it may be subject to the laws of other states if a sufficient territorial nexus can be proven.
- Chaurusila devi versus state of Bihar.
- TISCO versus the state of Bihar.
- **Exceptions to a territorial extension made by the legislature-**
- 1. Schedule V-
- In the case of schedule V areas, the governor by notification may provide that the law of parliament or state legislature may not apply or apply with such modification as provided in the notification.

- In Schedule VI areas the governor or president may notify that the law of government and state legislature may not apply or apply with such modification as mentioned in the notification.
- Article 371A and 371 G-
- A law would not apply on certain matters in Nagaland or Mizoram unless approved by the legislative assembly of Nagaland and Mizoram respectively.
- According to Article 240-
- The president can make regulations for peace and good government of certain UTs that would have an effect on Parliamentary law and also have the capability of repealing and amending the law -
- The Andaman and Nicobar Islands;
- Lakshadweep;
- Dadra and Nagar Haveli;
- Daman and Diu,
- Puducherry
- **II] Subject matter-**
- ARTICLE 246-Subjects by the legislature and state legislatures.
- According to 246(3) -State have exclusive powers to make laws mentioned in List II Schedule VII.
- This power is subject to clause 1 and clause 2.
- Article 246(2)-Parliament shall have powers to make laws on subjects mentioned in the list III.
- It is over the power of state legislature under Article 246(3).
- If on concurrent subjects, the union makes that law is in conflict with the state list, then union law will prevail.
- The state legislature also has the power to make laws on List III.
- This power is subject to Article 246(1).
- According to Article 246(1), Parliament has exclusive powers to make laws on the subject mentioned in List I, this power is over and above the power of state legislature in Article 246(2) and Article 246(3).
- Parliamentary law on the union list shall prevail on the state list and concurrent list.
- Article 246(4)-
- The union can legislate even on the state list matters with respect to the UTs.
- The exceptional or conditions under which a union can legislate on state-list subjects-
- Article 249-
- If the Council of State passes a resolution by a majority of at least 2/3rd members present and voting that it is necessary for the national interest for the Parliament to make laws for the whole or any part of India then it shall be lawful

for the Parliament to make a law on the subject mentioned in the resolution while such resolution remains in force.

- A law passed by the parliament under this provision shall cease to exist six months after the resolution ceases to operate.
- Such a resolution shall remain in force for one year from the date of its passing and may be extended by passing the subsequent resolution in the house.
- In 1986, the Rajya Sabha passed a resolution giving the powers of Parliament to make laws on specific subjects in the state list to deal with the insurgency in Punjab and infiltration in Jammu and Kashmir.
- Article 250- Parliament can enact a law on any state subject while the proclamation of emergency is in operation.
- Such a law shall have to cease to effect six months after the proclamation of emergency ceases to exist.
- Article 252-
- If two or more states passed a resolution that parliament should make a law on the subject included in the state list then the parliament became competent to do so.
- Such a law may be extended to other states if their legislature also passes a resolution to adopt this law.
- Any act so passed by the parliament can be amended or repealed by parliamentary law alone.
- Example-
- Wildlife Protection Act 1972.
- Water Conservation Act 1974.
- Article 253-
- The union may legislate on the state subject to enforce commitment made by India at an international forum in the form of an agreement, treaty, convention, etc.
- The Lokpal and Lokayutta Bill in 2011 was introduced in the Parliament on state subjects to effectively implement India's commitment made as a member of the UN Convention against Corruption.
- The Anti-hijacking Act and the Geneva Convention Act are other examples.
- Conflict between union and state law on concurrent subjects-
- As per 254-if a law is made by Parliament and state legislature on concurrent list subject, then in case of repugnancy, the law made by the parliament shall prevail over the state law.
- It does not matter whether the state law was made before or after the parliamentary law.

- And exceptional to this provision is that law made by the state shall prevail over the union law if the state law has been reserved and received the assent of the President.
- Parliament may still overpower the law made by the state legislature by enacting another law on the same subject.

ISSUES RELATED TO THE INTERPRETATION OF ENTRIES PROVIDED IN SCHEDULE VII (3:05 P.M.)

- Interpretation of over 200 entries provided in 3 lists is not an easy task for the courts.
- And they need to apply various judicial principles to reconcile the various entries.
- The court has given the following doctrines for the same.
- **1. The doctrine of harmonious construction-**
- In case of a seeming conflict between the entries of the union and state lists, the competing entries should be interpreted liberally and provided the broadest possible interpretation so that both legislatures can enact laws according to their respective entries.
- The doctrine follows a simple premise that every law is made with a purpose and both laws should be allowed to exist together unless the conflict provisions are so repugnant that no reconciliation is possible between the two.
- **2. Doctrine of Pith and Substance-**
- When there is a conflict between the union and states due to the law made by one having incidental encroachment on the subject of the other, this doctrine becomes useful
- As per it the court would examine where the pith and substance of the law lie to determine whether the encroachment is incidental or not.
- A law should not be declared unconstitutional merely due to incidental encroachment on the subject of the other.
- The Supreme Court led down this doctrine in F.N Balsara versus the state of Bombay.
- **3. The doctrine of colourable legislation-**
- It is based on the maxim principle that what cannot be done directly cannot be done indirectly.
- If a legislature has no power to legislate concerning a particular matter it cannot be allowed to make law indirectly on the subject of the other.
- The court applied this doctrine in the case of K.C Gajapati versus the state of Orissa.

CENTRE- STATE RELATION-EXECUTIVE POWER (3:02 PM)

- As per the Indian constitution, the executive powers of the Union and state are co-terminus with their legislative powers but unlike the distribution of the legislative powers the executive powers in India are decentralised.
- And the states have been provided with a bigger role in execution.
- Therefore India is often labelled as executive federalism.
- Even in concurrent list subjects the executive powers rest with the states unless Parliament specifies that the union shall have the executive powers.
- Often the union devolves its executive powers to the states due to the following reasons-
 - 1. Lack of implementation agencies with the union.
 - 2. The proximity of the states to the local areas where the laws have to be executed.
- The situations in which the union may issue executive direction in states in the exercise of state executive powers.
- Article 360-In case of financial emergency.
- Article 353-during national emergency.
- Provision under Article 256-the union may issue directions to the states to exercise their executive powers to ensure compliance with the laws made by the union.
- Article 257(1)-The union may issue executive direction to the states to not interfere with the executive power of the union.
- Article 257 (2) - The union may issue executive direction to the states for the maintenance and construction of means of communication that are of national and military importance.
- Article 257(3)- The union can issue directions to the states for the protection of railways within the states.
- Article 339(2)-The union may issue executive directions to the state for the drawing and execution of schemes specified in the directions to be of importance for the welfare of the scheduled tribes in the state.
- Article 350A-
- The union may issue executive directions to the states for providing facilities for education in the mother tongue at the primary level for linguistic minority groups in the state.

COOPERATIVE FEDERALISM (4:10 PM)

- It is a concept according to which the union and states even though working in their own domain should cooperate with each other and coordinate their actions in such a manner that they work together to achieve the common development goals of the nations.

- Some of the examples of cooperative federalism in the Indian constitution are as follows-
- Article 258A
- Article 262
- Article 263
- Article 280

THE TOPIC OF THE NEXT CLASS IS THE CONTINUATION OF THE COOPERATIVE FEDERALISM

Class 37

BRIEF REVIEW OF THE PREVIOUS CLASS (01:04 PM)

Cooperative Federalism

- **Note: Kindly Refer to Handouts**
- Issues and Challenges to Cooperative Federalism
- Emergence of a strong Central Government
- State involvement in Foreign Affairs is very limited
- Certain provisions of the Constitution themselves mitigate the idea of Cooperative Federalism

Inter-state River Water Dispute (01:19 PM)

- **Note: Kindly Refer to Handouts**
- Article 262 provides an alternate mechanism for the resolution of disputes between the states related to interstate river water or river valley.
- The objective is to provide a dispute resolution mechanism i.e. cost-effective so that the states do not fight it out in the courts on such matters.
- Clause 2 of this Article allows the Parliament to exclude the jurisdiction of courts including the SC in such matters.
- Subsequently, Parliament enacted the Interstate Water Dispute Act of 1956 according to which the central government may notify setting up a tribunal upon receiving complaints from the states.
- Several tribunals have been set up under the law including Mahanadi Tribunal, Cauveri Tribunal, Godavari Tribunal, etc.
- Despite these efforts, these tribunals have largely been unsuccessful in resolving these issues amicably.

- **Challenges:**
- There is a lack of uniformity in the procedure of the functioning of the tribunals which has resulted in the non-uniform application of principles while giving the award.
- The tribunals have taken a long time to give their awards at times even more than a decade.
- The Supreme Court has overstepped the provisions of the constitution and law by entertaining appeals against the awards of the tribunals thereby defeating the purpose of creating such tribunals.
- The state governments have been reluctant to share data with the tribunals in the absence of which they have not been able to make conclusive awards.
- Several times, the states have refused to comply with the final award due to political bickering between the states.
- These tribunals also suffer on the account of a shortage of staff & resources.
- A bigger problem is that these tribunals usually consist of judges as members who do not have any technical expertise on such matters.
- **Way Ahead**
- Setting up of River boards for the development of inter-state rivers
- Defining a time limit for the tribunals to give their decisions
- Mandatory inclusion of technical experts in the tribunal
- Adopting a negotiation-based approach before setting up a tribunal
- A central repository of water data is necessary for informed decision-making
- A Single Permanent Tribunal should be set up which would have multiple benches
- Jurisdiction of the Supreme Court and all other courts should be barred in respect of matters

Inter-State Council (Article 263) (1:40 PM)

- **Note: Kindly refer to handouts**
- Article 263 provides power to the president to set up a council for the resolution of disputes between the union and the states and to advise upon resolving the common issues concerning both.
- The first center-state relation commission (Sarkaria Commission) recommended the setting up of a permanent inter-state council and subsequently the President issued the order in 1990 for the setting of the same.
- **Composition:**
- The council shall consist of the PM as the chairperson,
- Six union cabinet ministers to be chosen by the PM,
- Chief Ministers of all the states and UTs of Delhi & Pondicherry and
- The administrators of the UTs.

- The council is supposed to meet thrice a year and decisions on the issues are supposed to be taken by consensus.
- Additionally, a standing committee of the council has also been set up under the chairmanship of the Union Home Minister to provide support to the council in its functioning.
- **Advantages of the Interstate-council:**
- It is the only multi-lateral center-state forum created under the constitution where issues plaguing the nation can be discussed between the center & the states.
- It can play a crucial role in what exists between the center & states and constructively engage each other leaving behind their political differences.
- It can help in the formulation of a common policy on burning issues such as disaster management, terrorism, Naxalism, climate change, organized crimes, etc. where center-state coordination is of prime importance.
- **Problems/issues in the function of the inter-state council in India:**
- It has become a victim of bitterness between the national & the regional political parties.
- Despite the best efforts, the meetings of the council are not held regularly. For example, in 2016, the meeting of the council was held after a gap of 10 years.
- Since the recommendations of the council are not binding in nature, they are often ignored by both state and the center.
- The Secretariat of the council that is supposed to provide technical support to the same suffers on the account of a shortage of resources and is ad-hoc in character (not permanent)
- The setting up of multiple bodies with multiple functions such as NITI Aayog, NDC, and the GST council has diluted its functioning.
- **Way ahead:**
- The 2nd ARC and the Punchi Commission have recommended revamping the council to make it an effective forum for promoting cooperative federalism in India.
- The 2nd ARC has recommended that the council should be provided with a permanent secretariat to strengthen its functioning.
- The recent move made by the central government to reconstitute the council seems like a step in the right direction but it can not bear fruits in the absence of political will from both the state and the center.

Zonal Council (1:56 PM)

- **Note: Kindly refer to the handouts**
- **Immunity from mutual taxation:**
- The property of the union should be exempt from all the taxes imposed by states or an authority within the state.

- Similarly, the property of the state is immune from union taxation.
- Not only that but income from the state is also exempt from union taxation
- **Freedom of Inter-state trade and commerce**
- **Article 301-307**
- According to 303 Clause 1, neither the parliament nor the state legislature shall have the powers to make laws resulting in either discrimination or preference for one state over the other in the **area of trade commerce and intercourse-**
- The above-mentioned freedoms have certain **exceptions:**
 - a) Parliament can impose non-discriminatory restrictions in the public interest.
 - b) Even Discriminatory or preferential laws made by parliament to deal with the scarcity of goods.
 - c) State may impose reasonable restrictions in the public interest (Article 304(b))
 - d) Non-discriminatory can be imposed by the state on the goods imported from the other state or UTs similar to inter-state goods
- **Competitive Federalism:**
- Competitive federalism is a concept where the center competes with states and vice-versa, and states compete with each other in their joint efforts to develop India.
- The policy of one-size-fits-all is replaced with different policies of various states based on their own priorities within the state.
- Competitive federalism follows the concept bottom-up approach as it will bring change from the states.
- **Note: Kindly refer to the handouts**

FINANCIAL RELATIONS (02:22 PM)

- **THE FISCAL IMBALANCE BETWEEN THE UNION AND THE STATES IN INDIA**
- The 15th Finance Commission stated that the states have 37% of the resources and are responsible for 63% of the expenditure.
- The nature of subjects w.r.t to expenditure is more cost-intensive and are with the states as compared to the union.
- Taxation matters under the control of union are better compared to the states both Quantitatively and Quality-wise (more elastic in nature).
- States cannot borrow money from Outside India.
- Even States having an outstanding loan to pay back to the center cannot borrow more money within India without the consent of the center and the center often imposes unreasonable conditions on the states for the same. But there are no such limitations on the union.
- Lack of fiscal prudence by the states.

Sources of Revenue for States (02:58 PM)

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TAX SOURCES				
Articles/Tax	Levied by	Collected by	Appropriated by	Include
Taxes exclusively available with the states/List II	States	States	States	Agriculture Income, Tax on animals, Tax on entry into local areas.
Taxes levied and collected by the Union but appropriated by the states- Article 269:	Union	Union	States	Duties on a succession of land other than agricultural land; Taxes on the stock exchange.

Taxes levied by the union but collected and appropriated by the states- Article 268:	Union	States	States	Stamp duties on Promissory Notes; Taxes on Medicinal and toilet goods containing alcohol.
Taxes levied and collected by the union and distributed between the union and states- Article 270:	Union	Union	Union/State	Income Tax; Central GST
State GST and IGST				
Professional Tax (Article 276)				

NON-TAX REVENUE: Commercial Establishments; State PSUs; Forests

Sources of Revenue for the Union (03:08 PM)

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Tax Revenue	Non Tax Revenue sources
1. Taxes levied by the union and distributed between the union and states 2. Article 271: Surcharge and Cess	1. Sale of Natural Resources 2. Income from CPSUs; Commercial Enterprises 3. Disinvestment proceeds 4. Sale of Defence land and Railway land

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Recommendation of 15th FC:

1. Vertical Devolution:

- The devolution of funds out of a divisible pool of taxes is called Vertical devolution of Funds. This is decided as per the recommendation of FCI.

- The important recommendation by the 15th FC: It has recommended the vertical devolution from the center to the state at 41.5% of the divisible pool of taxes. (13th FC: 34% + 14th FC: 42%)

2. **Horizontal Devolution:** the basis of a formula devised by the FC which varies from one commission to another. Several Factors such as Population, Ecology, Forest Cover, Demographic performance, Income of the state, area of the state, and tax and fiscal efforts.

• **14th Finance Commission vs 15th Finance Commission:**

Criteria	14 th Finance Commission Weightage (2015-20)	15 th Finance Commission Weightage (2021-26)
Income Distance	50.0	45.0
Population - 1971	17.5	-----
Population - 2011	10.0	15.0
Area	15.0	15.0
Forest Cover	7.5	-----
Forest & Ecology	-----	10.0
Demographic Performance	-----	12.5
Tax Effort	-----	2.5
Total	100.00	100.00

•

14th FC	15th FC
• relied upon the 1971 census population as criteria (13th FC: 1971)	• Relied upon the 2011 census

•

•

1. **Article 275-Statutory grants/Revenue deficit Grants/ Post Devolution of Grants** (on the recommendation of FC, Parliament by law makes certain grants to states that face revenue deficit post-devolution). It is called **post-devolution**

of grants and grant-in-aid revenue. Grants are also supposed to be made for effective enforcement of capital and schemes to states related to STs and proper administration of scheduled areas in states (nature will be both capital as well as revenue). It is **not on the basis of the finance commission**.

2. Article 282- Discretionary Grants: Discretionary Grants are grants made by the union under Article 282. These are conditional grants made as per the recommendation of various ministries of the Government.

- To help the states in fulfilling their plan targets and to give some control to the center over subjects within the domain of the states so as to ensure uniformity across the country.
- The money provided by the union to the state as a part of Centrally sponsored schemes comes under this category.
- Centrally sponsored scheme: Normal category (60:40); Special Category (90:10)
- Central sector schemes: 100% centre

- **Issues Associated with Discretionary Grants:**
- These **grants often come with a number of conditions** that are found to be **unreasonable by the states**.
- Therefore, one can say that these grants are **susceptible to Politicisation**.
- A large portion of the central transfers are made through this route.
- States complain that they are required to **match the proportion of the grants** but cannot decide priorities.
- Often Grants are made one time and maintenance is supposed to be done by states (Grants made by the center are **not released on a timely basis to the states** thereby imposing liability on the state as well as delaying the execution of the schemes).

JUDICIARY (03:58 PM)

- In India, the Judiciary is organized in Pyrammadical form and is an integrated Judiciary.
- It means that we do not have separate courts like the USA to entertain cases related to state and Union laws.
- In India, we have single Judicial systems for State laws and Union laws.
- It also means that (Integrated judiciary) the decisions of the higher court are binding on the lower courts.

- The higher judiciary in India is capable of Entertaining civil, criminal, and constitutional cases.
- The highest court in the district that entertains criminal cases is called a **session court**.
- The highest court in a district that entertains civil cases is called the **district court**.
- The lower judiciary, on the other hand, is organized separately on the civil and criminal sides.
- The structure of the subordinate judiciary varies from one state to another state and is quite complex.
- **Independence Judiciary**
- It means that there shall be no interference of the executive and the legislature in the functioning of the judiciary. It also means that the judgments of courts shall be provided without favor and fear.
- **How Independence of the Judiciary is ensured?**
- **Note: Kindly Refer to Handouts**
- **Difference between question of law and question of fact**
- In jurisprudence, a question of law is a question which must be answered by applying relevant legal principles, by an interpretation of the law. Such a question is distinct from a question of fact, which must be answered by reference to facts and evidence, and inferences arising from those facts.

TOPIC FOR THE NEXT CLASS: WILL CONTINUE WITH THE JUDICIARY

Class 38

A BRIEF REVISION OF PREVIOUS CLASS (1:10 PM)

SUPREME COURT (1:20 PM)

- **Qualifications-**
- A person to be appointed as a judge of the Supreme Court should have the following qualifications-
- He should be a citizen of India.
- He should have been a judge of a High Court (or high courts in succession) for five years; or
- He should have been an advocate of a High Court (or High Courts in succession) for ten years; or

- He should be a distinguished jurist in the opinion of the president.
- The Constitution has not prescribed a minimum age for appointment as a judge of the Supreme Court.
- **Tenure of Judges-**
- The Constitution has not fixed the tenure of a judge of the Supreme Court. However, it makes the following three provisions in this regard:
 - He holds office until he attains the age of 65 years.
 - He can resign his office by writing to the President.
 - He can be removed from his office by the President on the recommendation of the Parliament.
- **Oath of Judges-**
- SC judges-Administered by the president or a person appointed by him.
- HC judges are administered by the governor or a person appointed by him.
- **Removal of Judges**
- A judge of the Supreme Court can be removed from his office by an order of the President.
- The President can issue the removal order only after an address by Parliament has been presented to him in the same session for such removal.
- The address must be supported by a special majority of each House of Parliament (ie, a majority of the total membership of that House and a majority of not less than two-thirds of the members of that House present and voting).
- The grounds for removal are proven misbehaviour or incapacity. (grossly unconstitutional, unbecoming of a judge of SC/HC- example corruption).
- The Judges Enquiry Act (1968) regulates the procedure relating to the removal of a judge of the Supreme Court by the process of impeachment.
- A motion of impeachment addressed to the President is to be signed by at least 100 members of the Lok Sabha or 50 members of the Rajya Sabha and then delivered to the Speaker of the Lok Sabha or the Chairman of Rajya Sabha.
- The motion is to be investigated by a Committee of 2 judges of the Supreme Court and a distinguished jurist.
- If the Committee finds the judge guilty of misbehaviour or that he suffers from incapacity, the motion along with the report of the committee is taken up for consideration in the House where the motion was moved.
- The judge is then removed by the requisite majority in both houses, i.e. majority of the total and 2/3 of its members present and voting.
- **Issues and need for reforms-**
- The method pursued by the legislature in the Act of 1968 makes judges susceptible to a political process of voting which may or may not impeach judges despite a 3-member committee holding the Judge guilty.

- The entire process is concerned with the possibility of harming judicial independence.
- This stems from the possibility of Judges being harassed to toe the ideology of a party in the majority or face their wrath in an impending motion of impeachment.
- The words “misbehaviour” or “incapacity” have neither been defined nor clarified in the Constitution.
- The process of removing a judge is too elaborate and somewhat cumbersome.
- This process has not been able to hold the judiciary accountable.
- **Salaries and Allowances-**
- The salaries, allowances, privileges, leave and pension of the judges of the Supreme Court are determined from time to time by the Parliament.
- They cannot be varied to their disadvantage after their appointment except during a financial emergency.
- **Article 124(2)- Appointment of the SC Judges-**
- Every Judge of the Supreme Court shall be appointed by the President by warrant under his hand and seal and shall hold office until he attains the age of sixty-five years.
- Appointment of judges is to be done by the President in consultation with the CJI and other judges of SC and HC as the President may deem necessary.
- The CJI is appointed by the President.
- 99th Constitutional Amendment Act and NJAC-2014:
- Introduced Art 124A and made changes to Art 124 (2) but this was struck by the SC as being violative of the Basic Structure of the separation of powers and the independence of the Judiciary.
- **Appointment of Chief Justice From 1950 to 1973 -**
- The practice established since the beginning was to appoint the senior-most judge of the Supreme Court as the chief justice of India. This established convention was violated in 1973 when A N Ray was appointed as the Chief Justice of India by superseding three senior judges.
- Again in 1977, M H Beg was appointed as the chief justice of India by superseding the then senior-most judge.
- The debate over Consultation and Concurrence- Was the consultation non-binding on the President, or did it mean that the view expressed by the CJI and his Colleagues was binding, i.e. concurrence?
- The Supreme Court has given different interpretations of the word ‘consultation’ in the above-mentioned provisions.
- **In the First Judges case (1982)**, the Court held that consultation does not mean concurrence and it only implies exchange of views.
- This means that the Executive has primacy in the appointment process.

- The court also stated that in most circumstances the judiciary and the executive must work together.
- **In the Second Judges case (1993)** (Supreme Court advocate on record versus Union of India), the Court reversed its earlier ruling and changed the meaning of the word consultation to concurrence.
- SC overturned the judgement of the SP Gupta case and held that consultation meant concurrence, i.e. the view of the **CJI would have primacy in the appointment of the SC judges.**
- Here, the CJI would also consult two senior judges of the SC.
- The SC also held that the senior-most judge of the SC should be the CJI of India, i.e. appointment of the CJI should be done on the basis of seniority.
- The judiciary shall have primacy over the executive.
- **In the Third Judges case (1998)**, the Court opined that the consultation process to be adopted by the Chief Justice of India requires 'consultation of plurality judges'.
- The sole opinion of the CJI does not constitute the consultation process.
- The Collegium-CJI and 4 senior-most judges.
- This consultation within the collegium must be conducted in writing and in case that does not happen, the president may reject the advice of the CJI.
- The court also states that in case two judges disagree on the appointment or transfer, the chief justice should drop that name.
- In case the next CJI or in line to be CJI is not part of 4 seniormost judges, he/she should be also included in such consultation.
- The court felt that this approach would potentially minimise the role of judges in appointing judges especially when the judiciary has the best knowledge of calibre and the acumen of potential appointees in comparison to executives.

COLLEGIUM SYSTEM (2:20 AM)

- This judgement also led to the formation of the Collegium consisting of the CJI and four other Judges of the SC. Consensus-based approach has to be adopted for the appointment.
- In case a Judge of an HC is being promoted to the Judge of the SC, the CJI should also consult a Judge of the SC belonging to that HC, along with four senior-most judges.
- The views of Judges should be expressed in writing and not orally.
- The court held that the recommendation made by the chief justice of India without complying with the norms and requirements of the consultation process is not binding on the government.

- **Issues with Collegium-**

- There is no transparency in the proceedings of the Collegium – Justice Ruma Pal's Allegations of corruption and favouritism.
- The role of the executive has been diluted by the collegium system and the balance between the Executive and the Judiciary has been compromised.
- This has created a tussle between the Executive and the Judiciary.
- The Judiciary is appointing its own members and there are no checks and balances in the system.
- The collegium system structurally tends to favour particular sections of society and is far from being representative of the population.
- There are inordinate delays in the appointment of High Court judges and depleting numbers in the higher judiciary threaten to affect the justice delivery mechanism.
- The total sanctioned strength of judges across the 25 high courts is 1,098 but the working strength is only 645, a shortfall of 453 judges.

- **Observation-**

- Former justice J. S. Verma has expressed displeasure with the functioning of the collegium system.
- According to the former president Supreme Court Bar Association, the collegium has created a system of **imperium in imperio** (which is an empire within an empire giving unquestionable powers to the collegium).

- **4th Judges case (NJAC case 2015)-**

- The court struck down the NJAC and 99th CAA on the grounds of violating the basic structure of the Constitution.
- The independence of the judiciary is compromised as a result of the primacy of the executive.
- Even 2 members can veto the proposal to appoint a person.
- Violates the principle of separation of powers.
- Justice Chelmeshwar provided a strong dissent in the case stating that judicial primacy is not a part of the basic structure of the Constitution.
- The collegium system does not ensure judicial independence.

- **Way Ahead-**

- Introduce another bill while giving primacy to the judiciary in NJAC.
- Ensure diversity in the collegium system till NJAC is adopted.
- Enact a law to ensure judicial accountability and transparency.
- Effectively implement the MoP after due consultation with the judiciary
- British practice where decisions on such matters are taken by a judicial appointment commission since 2005. In the UK, eligible candidates can submit their applications for appointment and they need to disclose their relationship with sitting and ret'd judges as well as provide details on their background.

- The present collegium is overburdened with work and to resolve this an independent secretariat should be set up to assist in its functioning.
- Any adverse report by IB against eligible candidates should be treated with caution and an inquiry committee shall be formed to look into such reports.

AD HOC JUDGES (3:32 PM)

- When there is a lack of quorum of the permanent judges to hold or continue any session of the Supreme Court, the Chief Justice of India can appoint a judge of a High Court as an ad hoc judge of the Supreme Court for a temporary period.
- He can do so only after consultation with the Chief Justice of the High Court concerned and with the previous consent of the president.
- The judge so appointed should be qualified for appointment as a judge of the Supreme Court.
- It is the duty of the judge so appointed to attend the sittings of the Supreme Court, in priority to other duties of his office.
- While so attending, he enjoys all the jurisdiction, powers and privileges (and discharges the duties) of a judge of the Supreme Court.
- **Retired Judges-**
- At any time, the CJI can request a retired judge of the Supreme Court or a retired judge of a high court (who is duly qualified for appointment as a judge of the Supreme Court) to act as a judge of the Supreme Court for a temporary period.
- He can do so only with the previous consent of the President and also of the person to be so appointed.
- Such a judge is entitled to such allowances as the president may determine.
- He will also enjoy all the jurisdiction, powers and privileges of a judge of the Supreme Court.
- **Master of the roster-**
- Priority of cases.
- Allocating of the judges.
- Allocating the category of cases to the benches.

JURISDICTION OF THE SUPREME COURT IN INDIA (3:46 AM)

- **Jurisdiction of the Supreme Court: Territorial and Subject-Matter**
- Territorial Jurisdiction includes the entire territory of India.
- **Subject Matter Jurisdiction**
- **Article 131: Original and Exclusive Jurisdiction-**
- Original: The case would be heard for the first time directly (first instance) in the SC such as a case between Gol and one or more States, Gol.

- Exclusive: Such cases would be heard only in the SC and no other Court of the Country, i.e. there is no shared jurisdiction on such matters.
- Writ powers of the SC are not exclusive as writs can be issued by the HCs too.
- The Supreme Court is also a court of appeal and hears appeals against the judgements of the lower courts. It enjoys a wide appellate jurisdiction which can be classified under four heads-
 - Appeals in constitutional matters
 - Appeals in civil matters
 - Appeals in criminal matters
 - Appeals by special leave
- **Constitutional Matters-**
 - Under Art. 132(1), an appeal lies to the Supreme Court from any judgment, decree or final order, whether in civil, criminal or other proceedings, of a High Court if it certifies that the case involves a substantial question of law as to the interpretation of the Constitution.
 - Appellate jurisdiction of the Supreme Court in appeals from High Courts in regard to civil matters. (Article 133).
 - The appellate jurisdiction of the Supreme Court on criminal matters is conferred by Article 134.
 - The Supreme Court has only a limited criminal appellate jurisdiction in order to avoid piling up of cases in the Supreme Court.
 - This can happen in two modes:
 - **Without the certificate of appeal** from HC an appeal lies to the Supreme Court if,
 - The High Court on appeal has reversed an order of acquittal of an accused person and sentenced him to death or sentenced him to imprisonment for life or for a period of not less than 10 years. It exists as a matter of right.
 - The High Court has withdrawn for trial a case from a lower court and sentenced the accused to death or sentenced him to imprisonment for life or for a period of not less than 10 years.
 - **With certificate-**
 - The Supreme Court can hear an appeal in a criminal case if the High Court certifies that the case is a fit one for appeal to the Supreme Court.
 - A certificate needs to be granted only in cases where there is a substantial question of law involved.
 - **Article 136: Special Leave Petition of the SC-**
 - The case did not fall under Art 131, 132, and 133 and the SC feels that injustice may have been carried out and there is a need for correction.
 - The Court can step out to set right and prevent a miscarriage of justice.

- The SC can not hear Special Leave Petition from the cases of the Armed Forces Tribunal.
- It can be an interlocutory matter- that is final judgement has been given but sentencing has not been announced yet from any court on any matter.
- **Some issues with the SLP of SC-**
- It has primarily become a court of appeal.
- Acceptance of SLPs has become too high. Presently stands at 14%.
- No standard guidelines or norms for accepting SLPs.
- Dependent on the face value of the advocate.
- Article 142-
- Enforcement of decrees and orders of the Supreme Court and orders as to discovery.
- The SC can pass a decree or order to ensure "Complete Justice".
- This article has been cited by the SC to claim extraordinary powers to carry out "complete justice", by even going out of our jurisdiction.
- **Article 137: Review of judgments or orders by the Supreme Court**
- Review Petition:
- SC can review its own decisions.
- In a 1975 ruling, Justice Krishna Iyer said a review can be accepted "only where a glaring omission or patent mistake or a like grave error has crept in earlier by judicial fallibility".
- A review petitions have to be filed within 30 days of the concerned judgment.
- Such a petition must also carry a certificate from SC AoR.
- The review jurisdiction should only be used when an error has occurred in the judgment and such an error is believed to cause a miscarriage of justice
- Also can be entertained if any material evidence is discovered after the judgment despite the best efforts of the parties involved.
- **Curative Petition-**
- An innovation of the SC where it can review its review judgements.
- The court has derived this from others under Art. 142 and is not mentioned explicitly in the constitution.
- The court propounded this power in Rupa Ashok Hurra vs Ashok Hurra and stated that-
- It can entertain a curative petition against a review judgment only when there has been a glaring omission or a grave error by the court.
- It must be accompanied by a certificate of a senior advocate on record of the SC.
- **Advisory Jurisdiction-**
- The Constitution under Article 143 authorises the President to seek the opinion of the Supreme Court in the two categories of matters-

- Article 143(1)-
- If a question of law or fact has arisen which is of public importance and the opinion of the SC is needed, The President can refer the case to the SC for the opinion of the SC.
- Examples: Berubari Case, Third Judges Case.
- The SC may or may not provide advice, so it is not binding on the SC.
- Article 143(2)-
- It is an exception to Art 131.
- In the case of a pre-constitutional treaty, agreements, etc if the President seeks the advice of the SC, the SC is bound to give advice on such matter.
- What is the utility of the advisory powers of the Supreme Court?
- Firstly, it allows the government to seek legal opinion on a matter of importance before taking action on it.
- This may prevent unnecessary litigations later.
- Secondly, in the light of the advice of the Supreme Court, the government can make suitable changes in its actions or legislation.
- **A Court of Record-**
- As a Court of Record, the Supreme Court has two powers-
- The judgements, proceedings and acts of the Supreme Court are recorded for perpetual memory and testimony.
- These records are admitted to be of evidentiary value and cannot be questioned when produced before any court.
- They are recognised as legal precedents and legal references.

THE TOPIC OF THE NEXT CLASS IS THE CONTINUATION OF THE JUDICIARY (HIGH COURT).

Class 39

INTRODUCTION AND REVISION OF LAST CLASS (9:14 AM)

COURT OF RECORD- (9:16 AM)

- **A Court of Record-**
- As a Court of Record, the Supreme Court has two powers:
- The judgements, proceedings and acts of the Supreme Court are recorded for perpetual memory and testimony.

- These records are admitted to be of evidentiary value and cannot be questioned when produced before any court.
- They are recognised as legal precedents and legal references.

HIGH COURT (9:21 AM)

- High Courts were first established in the three Presidency cities of Calcutta, Bombay and Madras in 1862.
- The High Court of Delhi came up in 1966.
- Currently, there are 25 High Courts.
- While many states have their own High Courts, Punjab and Haryana share a common High Court at Chandigarh, and four North Eastern states of Assam, Nagaland, Mizoram and Arunachal Pradesh have a common High Court at Guwahati.
- Appointment of judges to the High Court
- Article 217 of the Constitution: It states that the Judge of a High Court shall be appointed by the President in consultation with the Chief Justice of India (CJI), the Governor of the State.
- In the case of appointment of a Judge other than the Chief Justice, the Chief Justice of the High Court is consulted.
- **Consultation Process:**
- High Court judges are recommended by a Collegium comprising the CJI and two senior-most judges.
- The proposal, however, is initiated by the Chief Justice of the High Court concerned in consultation with two senior-most colleagues.
- The recommendation is sent to the Chief Minister, who advises the Governor to send the proposal to the Union Law Minister.
- The Chief Justice of the High Court is appointed as per the policy of having Chief Justices from outside the respective States.
- The Chief justice of the high court is appointed as per- CJI and 4 judges and a judge of SC belonging to that HC
- The Collegium takes the call on the elevation.
- **Tenure and Removal of Judges of High Courts**
- A permanent Judge of the High Court serves until he or she reaches the age of 62.
- Removal: A judge can be removed from his office by an order of the President on the recommendation of the Parliament.
- Ground for Removal: Misbehaviour and incapacity only.
- **The procedure of transfer of HC judge-**

- Article 222 of the Constitution makes provision for the transfer of a Judge (including Chief Justice) from one High Court to any other High Court.
- The initiation of the proposal for the transfer of a Judge should be made by the Chief Justice of India (CJI).
- The opinion of the CJI “is determinative”.
- CJI is expected to take into account the views of the Chief Justice of the High Court from which the Judge is to be transferred and the Chief Justice of the High Court to which the transfer is to be affected.
- The views of one or more Supreme Court Judges who are in a position to offer his/their views are also taken into account.
- In the case of the transfer of a Chief Justice, only the views of one or more knowledgeable Supreme Court Judges need to be taken into account.
- The views on the proposed transfer of a Judge or a Chief Justice of the High Court should be expressed in writing and should be considered by the CJI and the four senior-most Judges of the Supreme Court.
- The proposal once referred to the Government, the Union Minister of Law, Justice and Company Affairs would submit a recommendation to the Prime Minister who would then advise the President as to the transfer of the Judge concerned.
- After the President approves the transfer, the notification will be gazetted and the judge remains transferred.
- **The Jurisdiction of High Courts**
- It has original jurisdiction on fundamental rights and writ matters related to other rights.
- Apart from it the high court has original jurisdiction conferred according to the law of legislature.
- For example ROPA 1951 conferees jurisdiction in high courts related to election disputes which is an original jurisdiction of the court.
- **Appellate jurisdiction of High -**
- It also enjoyed appellate jurisdiction on civil as well as criminal matters in the first or second appeal against the decision of lower courts.
- Usually, high court accepts appeals only in those cases where a substantial question of law is involved.
- In Civil cases value of more than 5 lacs can be heard.
- Appeals can be made against the decision of the district court.
- In criminal cases the appeals can be made against the decision of the sessions court.
- In cases where sessions court has pronounced the accused as guilty and given capital punishment, the sentence must be confirmed by the High Court before the person is hanged to death.

- Even if the accused does not file an appeal against the death sentence, the State refers it to the High Court for confirmation.
- **Superintendence of Subordinate Courts**
- Supervisory jurisdiction-
- Article-227 -Every high court has the power to control the functioning of courts and tribunals within their jurisdiction.
- This power of superintendence is wide and includes revisional jurisdiction to intervene in cases of gross injustice /abuse of jurisdiction or violation of the principle of natural justice or arbitrary exercise of the power by the lower courts or tribunals.
- It can also make rules to regulate the functioning of subordinate courts and use the contempt powers to ensure their free and fair functioning.
- Not only that the control matters such as promotion, posting, and grant of leaves for judges working in subordinate courts.
- **Transfer of Cases to the High Court**
- If a High Court is satisfied that a case pending in a subordinate court involves a substantial question of law as to the interpretation of the Constitution, the High Court may withdraw such a case from the lower court.
- After examining the case, the High Court may either dispose of it itself or return it to the lower court with instructions for disposal of the case.
- **SUBORDINATE COURTS -**
- All the courts below the high court are referred to as subordinates.
- They are organised to entertain either civil or criminal cases only.
- The arrangement and nomenclature of lower courts vary significantly from one state to the other.
- Appointment of the judges to the subordinate courts.
- The judges may be appointed to subordinate courts under two routes-
- Appointment can be made by the governor of the state upon the recommendation of the state public service commission and the high court of the state.
- Such individuals are recruited to the judicial service of the state consult.
- A person may be directly appointed as a district judge by the governor of the state upon the recommendation of the high court.
- Such a person must possess an experience of at least seven years as an advocate.

JUDICIAL PENDENCY (10:18 AM)

- Presently 5 Cr+ cases are pending in the courts.
- Pendency is consistent across the hierarchy contrary to popular belief.

- The average case takes 14 years from the initiation stage till the time the Supreme Court gives decisions.
- This leads to unnecessary delays and creates an excessive burden on the poor litigants.
- Almost 20% of cases in HCs are more than 10 years old.
- Delays access to justice in certain vital cases such as habeas corpus petitions.
- Results in allegations of corruption against the registry.
- **Reason for pendency of cases-**
- Vacancies and shortage of judges.
- Dilatory tactics adopted by lawyers.
- Senior Advocates are overburdened with work in the Supreme Court.
- Poor case management in the lower courts.
- Poor infrastructure of the courts.
- Archaic procedural laws.
- Increasing litigation rate and inability to implement ADR mechanism effectively.
- **Solution -**
- Introduce a system of All India judicial services.
- Reforming procedural laws such as the criminal procedure code, evidence act, etc.
- Time-bound disposal of cases.
- Improvement of infrastructure.
- Induce technology for better case management.
- We must encourage the ADR mechanism (outside court settlement).

NATIONAL COURT OF APPEALS (10:43 AM)

- According to this idea, the Supreme Court should have multiple seats located at different places to entertain appeals against the decision of the lower courts.
- Whereas the Constitutional seat located in Delhi should only entertain cases related to Fundamental Rights and Federal matters.
- **Advantages of the National Court of Appeals -**
- It would improve the accessibility to justice to the people living in far-flung areas of the country.
- It would make justice more affordable to the poor and the marginalized.
- The Constitutional Seat can focus on constitutionally important cases, whereas the appellate court may entertain an appeal against the decision of the lower courts, thereby relieving the constitutional seat from such work.
- **Concerns associated with the setting up of the National Court of Appeals -**
- It would be a costly affair and would create a huge drain on the resources of the country.

- The quality of judgments may suffer due to the lack of a uniform approach by the National Court of Appeals.
- The present strength of the Supreme Court is not enough to deal with the workload that will be created due to the setting up of the National Court of Appeals.

ALTERNATE DISPUTE RESOLUTION (11:16 AM)

- **Meaning and Definition of ADR-**
- ADR refers to an alternate mechanism for the citizens to resolve their disputes in a non-adversarial manner.
- In ADR both parties worked together in a cooperative manner to reach the best resolution in the interest of everyone.
- There are various mechanisms for ADR including Arbitration, Mediation, Conciliation, etc.
- **Advantages of ADR Mechanism-**
- Disposal of disputes is much quicker and more economical.
- It focuses on harmonious settlement of disputes rather than a combative approach.
- It is confidential in nature and therefore prevents any adverse damage to the reputation of the parties involved.
- Parties are in control of the proceedings and in some cases (mediation and conciliation) they have an opportunity to communicate with each other.
- It does not involve the payment of court fees and one may choose to not avail of the services of a lawyer.
- Some of the laws such as the Legal Services Authority Act, the Civil Procedure Code, the Commercial Courts Act 2015, the Companies Act 2013, and the Arbitration and Conciliation Act 1996 provide legal backing to the ADR mechanisms in India.
- **Arbitration**
- It is a process in which the disputes are submitted to an independent body called the arbitrator.
- Both parties pre-decide to approach a specific arbitrator and not the courts in case a dispute arises between them in the future.
- The arbitrator hears arguments from both parties and gives a final award, therefore one may say it is a quasi-judicial process.
- The award is binding on both parties and cannot be challenged in the courts except in exceptional circumstances.
- The proceedings of arbitration are not governed by archaic procedures of procedural laws such as CPC, and the Indian Evidence Act, they are guided by

the principles of natural justice and the provisions of the Arbitration and Conciliation Act, of 1996.

- The personal appearance of parties is not always required.
- Provisions under the Arbitration and Conciliation Act, of 1996 lay down the law for arbitration in India.
- **Mediation**
- Mediation is a process in which a neutral party known as a mediator helps the disputing parties resolve their disputes by giving suggestions, facilitating the free flow of ideas, and establishing a channel of communication between the parties.
- The mediator helps both parties to reach a mutually agreeable settlement but plays a passive role, and the solution to the dispute has to be decided by both parties themselves.
- It is usually considered by the parties in divorce and family matters.
- The concern with mediation is that it is not a binding process unless both parties agree to sign a mediation settlement agreement.
- In India, there is no standalone legislation at present to regulate mediation, rather some of the ordinary laws contain provisions related to mediation. For example, the Consumer Protection Act, the Companies Act, the Commercial Courts Act, etc.
- Lack of standardization and varying approaches followed by different mediators tend to have a significant impact on the outcome of the mediation process.
- Steps taken by the government to promote mediation-
- NALSA has allotted grants to the Mediation and Conciliation Project Committee.
- Supreme Court of India, to support mediation activities including training.
- Further, in order to promote and encourage mediation, awareness campaigns are conducted to make the citizenry aware of mediation as an effective mode of dispute resolution.
- The Legal Service Authorities and court-annexed mediation centres are actively involved in getting the disputes settled through mediation and the Government encourages and supports the endeavours.
- The Parliament has also enacted the Mediation Act, of 2023, to enact a standalone law on mediation.
- The Bill aims to promote, encourage and facilitate mediation for the resolution of disputes, commercial or otherwise enforce mediated settlement agreements and establish the Mediation Council of India.
- **Conciliation**
- In this process, the resolution of the dispute is achieved by a compromise or a voluntary agreement between the disputing parties.

- The conciliator not only helps the parties reach a solution but also makes his own recommendations so that the parties to the dispute can come to a common ground.
- It is less formal than arbitration and the parties are free to accept or reject the recommendation made by the conciliator, but if they accept the recommendations, the agreement is binding on both parties and can be challenged in court only in exceptional circumstances.
- Provisions under the Arbitration and Conciliation Act, of 1996 lay down the law for conciliation in India.
- **Limitations of the ADR**
- It may not always result in the resolution of disputes, therefore leading to a waste of time and resources.
- At times ADR can be more expensive than approaching the courts.
- For example, the arbitrators charge a hefty fee for providing their services.
- The decisions agreed to by both parties in the ADR process cannot be challenged in the courts except in certain specific circumstances.
- In the ADR process, there is a possibility of delivering injustice as well, as the process is highly informal in nature.
- For example, the conciliator is not a legally qualified person in all the circumstances, similarly, an arbitrator may also act in a biased manner in order to seek more business from a particular party in the future as well.
- The precedence set by the ADR mechanism cannot be used in the future making it a highly inefficient process.
- Lack of Awareness among the general public about the benefits of such amicable conflict resolutions.

TRIBUNAL (12:07 PM)

- **Tribunals-**
- Tribunals are quasi-judicial bodies created to relieve the burden on the regular courts and to provide speedy justice to the citizens.
- They perform functions similar to that of the courts but do not replace the courts.
- In India, they are set up under the provisions of Articles 323 A and 323B.
- According to 323A, Parliament can enact a law to set up tribunals for service-related matters, recruitment disputes etc. According to the Administrative Tribunals Act, 1985 Central Administrative Tribunal has been set up to entertain disputes related to officers of the Union and States can request the Union to set up similar tribunals for the officers of the states.
- Under Article 323 B can be established both by Parliament and state legislatures with respect to matters falling within their legislative competence read along with the provisions of Article 323B

- **Objectives behind setting up of tribunals-**
- To provide speedy justice as they do not follow strict procedural laws such as the Indian Evidence Act, CPC, or CrPC, but rather follow principles of natural justice.
- They improve access to justice for the citizens at an affordable price.
- The members of tribunals possess technical expertise or know-how and therefore provide quality dispute resolution.
- The courts in India are overburdened with work and can be relieved of the same by setting up such tribunals.
- **Judgements of courts related to Tribunals-**
- In *Sampath Kumar vs Union of India*, the Court held that it is constitutionally valid for parliament to create an alternative to the High Courts with jurisdiction over certain matters but they should have the same efficacy as the High Courts.
- Such institutions can be considered alternatives to the High Courts. The Court also stated that appointments should be made either by the Central govt. after consultation by the CJI or a high-powered committee headed by the CJI.
- In *L Chandra Kumar vs Union of India*, the court held that such tribunals will act as the court of the first instance in respect of areas of law for which they have been formed but the decisions of these tribunals would be subject to scrutiny by a division bench of the High Court. The court also stated that a majority of members of tribunals should have a judicial background.
- To ensure uniformity in their administration a separate mechanism should be created to manage the appointment and administration of tribunals and till the time such a mechanism exists, the Ministry of Law and Justice and not the parent ministry on that subject should exercise such powers.
- The court stated that the provisions excluding the judicial review and giving control to a parent ministry violate the basic structure of the Constitution and the principles of separation of powers, independence of the judiciary, and judicial review.
- Certain guidelines of the court have not been ignored by the government Including independent appointments and administration of tribunals.
- In *Madras Bar Association vs Union of India*, the Supreme Court struck down some of the provisions related to the National Tax Tribunal and recommended setting up an independent national tribunal commission for the above functions.
- **Issues associated with the functioning of tribunals-**
- A major challenge that has arisen in recent times is the Tribunalisation of justice in the country.

- The setting up of the tribunals has taken matters away from the regular courts and placed them with the tribunals, therefore reducing the importance of the courts.
- The members of the tribunals are appointed by the government which is the largest litigant, therefore, compromising the principles of natural justice.
- Despite the setting up of tribunals, the caseload on the judiciary has been unresolved.
- Even the tribunals are also facing a high pendency of cases as the present pendency is more than 3 lakhs. As of 2018, the income tax appellate tribunal had more than 91000 cases pending, As of 2021, the central government industrial tribunal cum-labour courts had 7,312 pending cases.
- Shortage of staff and delays in the appointments of members have severely hampered their functioning.
- The governments have ignored the judgments of the court and continue to man these tribunals with the majority of non-judicial members.
- Not only that, often interference has been noted from the parent ministries in their functioning. In 2010, the Supreme Court noted that the tribunals in India have not achieved complete independence.
- In 2019, the Supreme Court stated that a short tenure of members (such as three years) along with provisions of re-appointment increases the influence and control of the Executive over the judiciary.
- **Way Ahead-**
- Tribunals must not only be seen to be independent but should be independent in reality.
- Therefore, they should be provided with the requisite autonomy and made independent of the respective ministry.
- The government should take immediate steps to set up an independent national Tribunals commission to take over the administration and appointments of tribunals
- Tribunals must have benches in different parts of the country to improve accessibility for the citizens.
- A judicial impact assessment would be helpful to determine the extra resources required to handle fresh cases resulting from the enactment of a new law.
- **Questions -**
- How far do you agree with the view that tribunals curtail the jurisdiction of ordinary courts? In view of the above, discuss the constitutional validity and competency of the tribunals in India. 2018.
- The Central Administration Tribunal which was established for redressal of grievances and complaints by or against central government employees

nowadays is exercising its powers as an independent judicial authority." Explain 2019.

THE TOPIC OF THE NEXT CLASS IS GRAM NYAYALAYA AND LOCAL SELF-GOVERNMENT (PANCHAYAT)

Class 40

GRAM NYAYALAYAS: (9:11 AM)

- These are **mobile courts**, set up to provide inexpensive justice to the people in rural areas.
- They were set up under the **Gram Nyayalayas Act, of 2008**, which was brought into force on the 2nd of October 2009
- They are **headed by a judicial officer called the Nyaya Adhikari**, appointed by the state government in consultation with the concerned High Court.
- Gram Nyayalayas are to be **established for every Panchayat at an intermediate level** or a group of contiguous Panchayats at an intermediate level or for a group of contiguous Gram Panchayats.
- Disputes are **settled by bringing about conciliation between the parties**.
- The Gram Nyayalaya shall **not be bound by the rules of evidence provided in the Indian Evidence Act, of 1872** but shall be guided by the principles of natural justice.
- They can entertain **both civil and criminal cases** of a petty nature.
- The decisions of the Gram Nyayalaya **can be challenged in the District or the Sessions Court**.
- **Refer to the handouts.**

LOK ADALAT: (9:37 AM)

- It is **an Indian innovation**, that aims to resolve disputes on the basis of Gandhian principles.
- It has been given **statutory status** under the Legal Services Authorities Act, of 1987.
- They are competent to **entertain only compoundable cases**.
- They are supposed to **consist of a judicial officer and other members who may include a social worker and a lawyer**.

- In case, the parties approach the Lok Adalat for the resolution of the dispute, they forgo their right to approach the regular courts.
- Lok Adalats **have the same powers as civil courts**, but the proceedings are governed as per the principles of natural justice.
- There is no court fee payable when a matter is filed in a Lok Adalat.
- Lok Adalats are **set up on a periodic basis at the national, state, and district levels, to dispose of a large number of petty cases** in a matter of a few hours.
- **Refer to the handouts.**

PERMANENT LOK ADALAT: (9:48 AM)

- The other type of Lok Adalat is the Permanent Lok Adalat, **organized under Section 22B of The Legal Services Authorities Act, 1987.**
- **Legal Services Authority Act was amended in 2002** to allow the setting up of permanent Lok Adalats in the country.
- Permanent Lok Adalats have been **set up as permanent bodies with a Chairman and two members** for providing a compulsory pre-litigation mechanism for conciliation and settlement of cases relating to Public Utility Services like transport, postal, telegraph, etc.
- The Award of the Permanent Lok Adalat is **final and binding on all the parties.**
- **Refer to handouts.**

HISTORY OF PANCHAYATI RAJ IN INDIA: (9:59 AM)

- As per Article 40, the State shall take steps to organize village panchayats and endow them with such power and authority as may be necessary to enable them to function as units of self-government.
- The Community Development Program (CDP) was **launched in 1952 but failed to reach its full potential due to the lack of effective institutions for people's participation.**
- It included almost all rural development activities that were to be implemented with the help of village panchayats and the participation of the people.
- In 1953, the National Extension Service was also introduced. However, the program did not yield much results.
- **Committees associated with these are:**
 - Balwantrai Mehta Committee.
 - Ashok Mehta Committee.
- **Refer to handouts.**

STRUCTURE OF PANCHAYATI RAJ: (10:16 AM)

- Every State will have a **Village Panchayat at the Village level, Panchayat Samitis at the intermediate level, and Zila Parishad at the district level.**
- It is set up by all the State which has a population of more than 20 lakh and is optional for those State having a population of less than 20 lakh.
- All the representatives will be elected directly.
- The **size of the village or block will decide the panchayat members.** Similarly for the intermediate and district level.
- So, the composition shall be decided by the law of the State legislature.
- But the ratio of population to seats shall be the same across the state.
- In the case of **Village Panchayats, the chairperson can be elected directly by the people or by the members of the panchayat.**
- It depends on the laws of the State legislature
- In the case of **Intermediate Panchayat and district-level Panchayat, the election of the chairperson is done indirectly by the members from amongst themselves.**
- **Elected members of Panchayat at the intermediate level would also include the chairperson of Panchayats if the law provides.**
- In case of State does not have an intermediate level, it will be applicable to District Panchayats.
- Similarly, the Chairperson of panchayats at the intermediate level will be provided representation in Zila Parishad as an ex-officio member.
- **MLAs and MPs may be provided representation at intermediate and Zila parishad level as ex officio members.** This also will be decided by the State legislature.
- All of these people have the right to vote in the meetings of the Panchayat.
- **Below the Village Panchayat, there will be a Gram Sabha.**
- Gram Sabha has been mentioned in **Article 243A and Article 243(b)- All the adults on the electoral roll of the Village.**
- The **functions of Gram Sabha will be decided by the State Legislature,** which varies from State to State.
- **Reservations:**
- It has been mentioned in **243D.**
- Reservation is provided for **SCs and STs in proportion to the population.**
- **Women will have at least 1/3rd at all levels.** The reservation for women is not only vertical but also horizontal.
- Reservation has been provided for the Chairperson as well for SCs, STs, and Women.
- Reservation for OBCs can be done but it needs to be substantiated with political backwardness and inadequacy of representation proven by data.
- **Duortion of Panchayat:**

- Elections are to be conducted regularly.
- The **normal tenure of a Panchayat can be 5 years.**
- State law decides under what circumstances the Panchayat can be dissolved.
- Elections should be conducted before the end of tenure and **in case of dissolution, within 6 months.**
- In case of dissolution, the tenure of the newly elected Panchayat constituted in case of such dissolution would be the remainder of the period if the remainder is more than 6 months and would be 5 years in case the remainder is less than 6 months.
- **Disqualification of members:**
- Disqualification from the membership shall be decided **as per the State laws.**

POWERS, AUTHORITY AND RESPONSIBILITIES OF PANCHAYATS U/A 243G: (11:16 AM)

- The State legislature by making a law will decide which of the functions mentioned in Schedule VII, shall be devolved to the Panchayat.
- **Primarily there are 2 duties:**
- a) **Preparation of plans** for economic development and Social justice.
- b) **Implementation of schemes** for Economic Development and Social Justice.

POWERS TO IMPOSE TAXES BY AND FUNDS OF PANCHAYATS U/A 243H: (11:20 AM)

- Even the funds of the Panchayats are to be decided by the legislation of the State.
- **Funds:**
- a) Taxes, fees, duties, etc. - Levy, Collection and Appropriation.
- b) Taxes collected by the State government, assigned to the Panchayats.
- c) Grant in aid from Central Funds.

STATE FINANCE COMMISSION 243I: (11:30 AM)

- The **Constitution of the SFC is compulsory.**
- Recommendations of State Finance Commissions are **not binding on the state governments.**

ELECTIONS OF PANCHAYATS U/A 243K: (11:32 AM)

- The State Election Commission is responsible for the **preparation of electoral rolls, overall control, and conduct of elections.**
- The Commission **enjoys the position of judge of the HCs.**

PART NOT TO APPLY TO CERTAIN AREAS U/A 243M: (11:34 AM)

- **Excluded areas:**
- States under Schedule V.
- States under Schedule VI.
- Nagaland.
- Mizoram.
- Meghalaya.
- Hilly areas of Manipur.
- An Act has been constituted that is PESA 1996, **to recognize, empower, and promote the social, economic, cultural, and political way of life of the Scheduled Tribes.**

IMPORTANCE OF 73rd CONSTITUTIONAL AMENDMENT ACT (CAA): (11:39 AM)

- Made Indian **democracy participative** in nature.
- Helped in the **institutionalization** of grassroots democracy.
- PRIs can act as a **school of democracy** and train future leaders.
- Has **brought democracy to the doorstep** of the people.

POSITIVE OUTCOMES OF 73RD CAA: (11:40 AM)

- Created another layer of government and political representation **at the grass-roots level.**
- Elections to these institutions **every five years** have become a norm.
- Women have entered public life in a big way.
- **Inclusion of excluded sections.**

ISSUE WITH THE OF 73RD CAA: (11:47 AM)

- **No automatic transfer of powers** to the PRIs rather the states have to transfer the power.
- Gram Sabha's **powers have not been defined** properly anywhere.
- The independence of the State Election Commission has not been ensured.
- The Act doesn't lay down the role of bureaucracy.
- **Recommendations** of State Finance Commissions are **not binding** on the state governments.
- **Structural variations** in the implementation of the act.

PROBLEMS AREAS IN THE FUNCTIONING OF THE PRIs IN INDIA: (11:53 AM)

- The **domination of PRIs by the bureaucracy** has been the biggest hurdle.
- **Lack of participation.**

- Lack of training.
- **Lack of adequate resources.**
- Corruption and misuse of money.
- Hostility from high-level leaders.
- Traditional structures in the society.

PROBLEMS OF FINANCING THE LOCAL BODIES IN INDIA: (12: 03 P.M.)

- Taxes devolved to the PRIs are inelastic in nature.
- There is also a **reluctance on the part of the PRIs to impose taxes.**
- **PRIs generate only 5% of their finances through their own sources** and are highly dependent on the state government for their functioning.
- They **possess limited borrowing powers.**
- States have been reluctant to implement the recommendations of the SFCs.

ISSUES WITH THE SFCs: (12:04 PM)

- As per the Constitutional provisions, the setting up of the **fifth SFC became due in 2014-15 in all the states.** Only thirteen states have constituted their fifth SFC to date.
- SFCs have **taken a lot of time to submit their reports.**
- State governments have taken considerable time in tabling the action taken report (ATR) in the state legislatures.
- States have **not constituted the SFCs in a timely manner.**
- Not a permanent body and hence **no permanent office space.**
- **Refer to handouts.**

ARC II RECOMMENDATION ON THE PRIs: (12:05 PM)

- Replace the word may in **243G** with the word shall to make the devolution of functions mandatory.
- Local legislators should not be made members of the PRIs.
- Set up Legislative Councils in all states to provide representation to the members of the PRIs.
- **Abolish the MPLADS and MLALADS schemes.**
- Parastatal bodies should be shut down.
- PRIs should have the right to recruit their own personnel and regulate their conditions of service so that these people are accountable to PRIs.
- States **should adopt the concept of 'activity mapping'.**

IMPACT OF 73rd CAA ON WOMEN: (12:10 PM)

- A very large number of women have been **politically and socially empowered because of Panchayati Raj.**
- They have gained a sense of empowerment by asserting control over resources, and officials and most of all, by challenging men.
- 30 lac women contest elections to the GPs thus taking democracy to the women.
- **Participation of the women in Gram Sabhas has increased.**
- They have become articulate and conscious of their power.
- **Despite their low- literacy level, they have been able to tackle the political and bureaucratic system** successfully.
- The concept of **Panchayat patis is showing a declining trend.**

ISSUES FACED BY WOMEN: (12:14 PM)

- Women are **overburdened with family responsibilities** and thus are not able to perform official duties efficiently.
- They **feel inhibited to speak** especially when they are in large **male-dominated assemblies.**
- Further, the officials also pay heed to the needs of upper-class women in preference to the needs of poor ones.
- **Lack of literacy in women has limited their participation due to restrictive qualifications.**
- Problems created due to the **rotation policy every 5 years.**
- Women are **threatened by an increasing number of criminals in politics.**
- Women are **rarely nominated to the unreserved seats.**
- Male family members and leaders from the caste groups/community come in the way of the affairs of the Panchayats led by women.
- **Refer to the handouts.**

TOPIC OF THE NEXT CLASS: MUNICIPALITIES.

Class 41

BRIEF REVISION OF PREVIOUS CLASS (9:08 AM)

MUNICIPALTIES (9:10 AM)

- **COMPOSITION AND STRUCTURE OF MUNICIPALITIES -**
- According to the constitution, every municipal area shall be divided into territorial constituencies to be termed as wards.

- The electorate in a ward would choose their representative through direct elections who would be termed as a ward member.
- **Every municipal body shall consist of the following:**
- Directly elected ward members.
- Other members are to be determined as per the law of the state legislature, which may include:
 - (a) Persons having special knowledge and experience in municipal administration.
 - (b) MPs and state legislators
 - (c) Chairperson of Ward Committees
- The mode of choosing the **chairperson of a municipal body** should be **determined by the state legislature.**
- **Ward Committees:**
- As per article 243S, a ward committee shall be constituted for one or more wards for any municipality having a **population of more than 3 lakhs.**
- The **composition, the manner of election, and the functions of the ward committee** shall be determined **by the state legislature.**
- The **chairperson of the ward committee would be the ward member** if the committee represents one ward.
- If the committee represents two or more wards the chairperson should be one of the ward members to be **chosen by the members of the committee.**
- These committees shall perform the **function** as may be given to them **by the state legislature.**
- **Every municipal area shall have a municipal body to be designated as a municipal corporation, council, or a nagar panchayat depending on the notification issued by the state government.**
- **Factors to be taken into consideration would include:**
 - population of the area,
 - density of the population,
 - revenue generated for local administration,
 - percentage of employment in non-agricultural activities,
 - economic importance,
 - Any other factor is to be decided by the state government.
- **In some of the Municipal areas, some other municipal bodies may be created-**
- **1. CANTONMENT BOARD-**
- A cantonment board would be constituted to provide municipal governance in cantonment areas according to the provisions of the Cantonment Boards Act 2006.

- It shall consist of elected and nominated members to be provided a term of five years.
- The executive head of this board is the CEO who is usually an IDS officer.
- The commander of the military station is the ex officio president of the board.
- **2. TOWNSHIP AREA COMMITTEE-**
- The state governments may form township area committees to provide municipal services in the fast-growing industrial towns.
- **3. NOTIFIED AREA COMMITTEES-**
- The state government may notify a setting up of a notified area committee to provide urban governance in fast-developing town areas.
- **POWERS AND AUTHORITIES IN MUNICIPAL BODIES-**
- **District planning committee-**
- **Article 243ZD of the 74th Amendment of the Constitution** requires the formation of **District Planning Committees (DPCs)**
- There shall be constituted in every State at the district level a District Planning Committee to consolidate the plans prepared by the Panchayats and the Municipalities in the district and to prepare a draft development plan for the district as a whole.
- The Legislature of a State may, by law, make provisions concerning -
- (a) the composition of the District Planning Committees;
- (b) how the seats in such Committees shall be filled:
- Provided that not less than four-fifths of the total number of members of such Committee shall be elected by, and from amongst, the elected members of the Panchayat at the district level and of the Municipalities in the district in proportion to the ratio between the population of the rural areas and of the urban areas in the district;
- (c) the functions relating to district planning which may be assigned to such Committees;
- (d) how the Chairpersons of such Committees shall be chosen.
- The remaining one-fifth of the members of the Committee are nominated members. (decided by the state legislature)
- **Municipal Corporation of Delhi-**
- Municipal commissioner-CEO of the municipal corporation (IAS officer) (executive power).
- Standing committee of the municipal corporation of Delhi.
- Nominated members -special knowledge and experience.
- **Some context and figures related to Urban Governance-**
- By 2025 more than 40% population is in urban areas and by 2050 India is expected to become an urbanized nation.

- Cities are the engines of growth of any economy and contribute to 65% of the GDP.
- Urban Governance refers to the management of the cities and administration to ensure that people get access to civic services.
- According to several reports, India's urban centres are facing challenges on the front of planning, deterioration of environmental conditions and management of municipal waste.
- As per NITI Aayog urban centers need over 40 trillion investment to improve the urban infrastructure.
- **CHALLENGES -**
- Financial paucity: Their chief sources of income are the varied types of taxes, most of which are levied by the union and state governments and, the taxes collected by the urban bodies are not sufficient to cover the expenses of the services provided.
- Currently, the own revenues generated by municipal entities in India are barely 0.15% of the GDP compared to 0.6% in developing countries and 2.1% in developed nations.
- Corruption: The administrative machinery at the disposal of these local bodies is insufficient and ineffective. The staff which is often underpaid indulges in corrupt practices which lead to loss of income.
- Excessive State Control: The state governments have the power to supersede and dissolve municipal bodies under certain circumstances.
- Further, state governments have powers like approval of municipal budgets (except corporations).
- Even the modified local tax structure needs the government's prior approval and later ratification.
- States exercise control through accounting and audit systems, etc.
- Limited Devolution of Functions: Many states have been slow in transferring functions listed in the Twelfth Schedule to ULBs, impeding their ability to effectively govern urban areas.
- Unplanned urbanization: The municipal services have failed to cope with the increasing needs of the population, both qualitatively and quantitatively.
- The situation is worsening because the rural influx in towns and cities has increasingly converted them into ghettos.
- Multiplicity of Agencies: Usually works are not well allocated among different agencies which causes overlap of authority and responsibility. This further leads to diffused accountability.
- The existence of parastatal agencies is another problem.
- Dilution of Efforts: Due to multiple layers of planning, administration and resource allocation to tackle deprivations, the efforts are often dispersed in time and

space,
leading to suboptimal results.

- Headed by bureaucrats: The single-purpose agencies are all dominated by bureaucrats, which goes against the basic philosophy of local government. The people's representatives have a secondary role to play.
- Substandard Personnel and Shortage: Urban government increasingly needs the professional services of experts.
- Land titling in urban areas: A study has reported that most, over 90% by one estimate, of the land titles in India are 'unclear' and land market distortions and unclear land titles cost India around 1.3% of gross domestic product.
- Limited Capital Expenditure: Municipalities committed expenditure in the form of establishment expenses, administrative costs and interest and finance charges is rising, but capital expenditure is minimal.
- Low level of People's Participation: People's apathy towards participating in the governance system pushes such institutions into a state of complacency and irresponsibility.
- Ecological challenges: The growth of population and industries presents an unprecedented challenge of ecological degradation and pollution of water, air and land.
- Recommendations to improve the functioning of ULBs in India-
- Set up a second national commission on urbanization.
- Urban local bodies should be made more accountable to their citizens through transparency measures such as open data initiatives and citizen engagement platforms.
- Direct election of the mayors on the lines of developed countries.
- Municipal Commissioners should be appointed by the state governments in consultation with the mayor.
- Involvement of citizens through RWAs and other similar bodies.
- Local governments in urban areas should cooperate with other government levels, as well as with civil society and the private sector, to effectively address the challenges facing their communities.
- **2nd ARC recommendations on finances of the ULBs-**
- Fast Tracking of Property Tax Reforms.
- Enhancement of civic fines eg. Spitting
- Incentivize the revenue collection of the ULBs by linking with the state govt grants.
- Provide access to capital markets through the municipal bonds.
- **Issues with the property taxes-**

- Few states have not delegated and where it has been done it is not clearly defined through the rules
- Inadequacy of database with municipalities.
- No frequent revision of Property Taxes.
- Several exemptions under the law.
- Lack of political will due to populist reasons.
- Rampant corruption in municipal bodies.
- **Case Studies-**
- Ahmedabad Municipal Corporation has implemented AJL, a public-private partnership for bus rapid transit corridors.
- Pune Municipal Corporation has been recognized for waste management practices, including door-to-door waste collection and waste segregation.
- Surat Municipal Corporation has implemented technology for infrastructure projects, a centralized control room, pedestrian-friendly streets, and public parks.

SCHEDULES AND TRIBAL AREAS (11:03 AM)

- **Scheduled areas under Schedule VI are called autonomous regions/districts.**
- These are restricted to the states of Assam, Meghalaya, Mizoram and Tripura. Inclusion or exclusion of any area from Schedule VI shall be done as per the law of
- parliament amending Schedule VI.
- **Administration of areas dominated by the tribals in other parts of the country is carried out as per the provisions of Schedule V.**
- **The decision to declare an area as a Schedule V area rests with the president of India.**
- Amending Schedule VI shall not be deemed as an amendment under article 368 in the constitution.
- The same is the case with Schedule V.
- **Criteria for declaration as a Scheduled Area-**
- **The Dhebar Commission(1960)**, laid down the following criteria for declaring any area as a 'Scheduled Area' under the Fifth Schedule:
 - The preponderance of the tribal population, which should not be less than 50 per cent.
 - Compactness and reasonable size of the area.
 - Underdeveloped nature of the area.
 - The marked disparity in the economic standard of the people as compared to the neighbouring Areas.
 - Later, a viable administrative entity, such as a district, block, or taluk, has been also identified as an important additional criterion.

- **Powers of the governor towards the administration of fifth scheduled areas-**
- The functioning, tenure, and conditions for service related to the TAC are supposed to be determined by the governors under their regulation powers.
- In general, the **governor has the power to make regulations for the peace and good government of these areas.**
- Apart from this, the governor has the power to make regulations **for specific purposes as well-**
- 1. To prohibit the transfer of land by or among the members of scheduled tribes (ST) in such areas.
- 2. To regulate the allotment of land to the members of ST in such areas.
- 3. To regulate the business of money lending in such areas.
- The **governor may notify that the law of parliament or state legislature may not apply or may apply with such modifications as mentioned in the notification.**
- **Any such regulation made by the governor must be approved by the president to come into force.**
- The governor is supposed to submit a report to the president either annually or otherwise concerning the administration of these areas.
- The governor is supposed to take TAC's advice on such matters.
- **Provisions under the fifth schedule-**
- In the states having scheduled five areas or otherwise, **the governor by notification may set up a tribal advisory council.**
- **Tribal Advisory Council-**
- These bodies have been created to provide inputs to the governor in the exercise of his powers regarding such areas.
- Additionally, they are supposed to advise the governor on welfare measures to be taken for scheduled due to tribes in the state.
- It consists of a maximum of 20 members.
- Three-fourths of the members should be representatives of Scheduled tribes in the State legislative assembly.
- **Issues and challenges associated with the administration of fifth schedule areas-**
- In most states, TAC has not been constituted or the rules have not been made for their functioning.
- The governors have failed to utilize their powers to make regulations resulting in the continued exploitation of the tribals thereby defeating the entire purpose of the fifth schedule.
- The Office of the Governor has been reduced to a mere annual report-writing institution to the president rather than a guardian of tribal interests.

- There exists an ambiguity about the discretionary powers of the governor.
- The governors have failed to submit performance reports to the president regularly, thereby diminishing the accountability of governors.
- The enactment of parallel legislation like the PESA Act 1996 and the Forest Rights Act resulted in chaos and confusion.
- Sometimes, the regulations governing functions of TAC are framed by State governments rather than the Governor, which has allowed the political parties in power to take over these bodies.

- **Way Ahead**

- Allocate sufficient resources to local bodies for the development of infrastructure, education, health, and other basic amenities in Scheduled Areas.
- Implement provisions of training and education for the ST community members at the earliest to enable them to participate effectively in the decision-making process.
- Promote tribal self-governance by devolving powers to local tribal councils and empowering them to make decisions on matters that affect their communities.
- Change in the attitude of Union and State Governments and their perception towards the welfare of the Scheduled Areas.

- **Sixth Schedule Areas-**

- Administration of Schedule VI has been made the responsibility of the autonomous district(ADC) and autonomous regional councils(ARC).
- These bodies shall not consist of more than 30 members out of which a maximum of 4 may be nominated by the governor and the rest to be elected based on adult suffrage.

- **Powers of Autonomous District Councils -**

- They have been provided to make laws on a variety of matters including the management of forests, allotment and use of land, regulation of Jhum cultivation, and matters such as marriage, divorce, inheritance, social customs, etc.
- Any such laws made by ADCs or ARCs should receive the assent of the governor.
- They have also been provided administrative powers including setting up of schools etc with the prior approval of the governor.
- They have the power to collect revenues as well as to levy and collect taxes for various purposes such as animals, vehicles, etc.
- The Councils are given the power to grant licenses or leases for the extraction of minerals within their jurisdiction.
- They can also set up village councils to decide the disputes between the tribals.

- However, the Council Courts are not given the power to decide cases involving offences punishable by death or imprisonment for five or more years.
- Under this schedule, a district or regional fund has to be set up and all the money received from royalty or licensing of mining must be added to it.
- One can therefore say, they are like a mini-state and have been given powers to manage tribal areas.
- The law of parliament or the state legislature may not apply or apply with such modification as mentioned in the notification issued by the governor or president as the case may be.
- **Concerns and challenges associated with the functioning of ADC/ARC-**
- ADCs suffer on account of irregular conduct of elections to these bodies.
- The ADCs witness a shortage of funds which has resulted in their ineffective functioning.
- The funds should be distributed to local councils based on their level of backwardness rather than their population
- Even though they have been provided revenue powers they are not enough to meet their responsibilities and expenses.
- Since the size of the council is limited, at times the smaller tribal groups do not get adequate representation in these bodies.
- A large number of non-tribals also reside in these areas and they feel left out of the functioning of these bodies.
- Often the laws made by councils have failed to get timely approval from the governor reducing the effectiveness of these bodies.
- The ADCs have been accused of corruption and misuse of funds, resulting in a lack of transparency and accountability in their operations.
- **Way Ahead**
- Strengthen the Autonomous District Councils by providing them with adequate resources, administrative and financial powers, and personnel.
- Expand the scope of the Sixth Schedule to include more areas with a substantial tribal population.
- Encourage community participation in the decision-making process along with awareness creation measures.
- Conduct regular monitoring and evaluation of the implementation of the Sixth Schedule.

CAG -COMPTROLLER AND AUDITOR GENERAL OF INDIA (11:52 AM)

- CAG is an independent authority under the Constitution of India. He is the head of the Indian audit & account department and chief Guardian of Public purse.

- It is the institution through which the accountability of the government and other public authorities to Parliament and State Legislatures and through them to the people is ensured.
- "I am of the opinion that this dignitary or officer is probably the most important officer in the Constitution of India. He is the one man who is going to see that the expenses voted by Parliament are not exceeded or varied from what has been laid down by Parliament in the Appropriation Act." —Dr. B.R Ambedkar
- **Difference between India and the UK-**
- In India, unlike the UK, the CAG doesn't perform the comptroller functions but rather only does the auditing function. In the UK, any money withdrawn out of the consolidated fund should be approved by CAG.
- In India, the CAG audits the accounts after the expenditure is committed i.e., ex post facto. In India, CAG is not a member of the parliament while in Britain; CAG is a member of house of the Commons.
- **Appointment and Removal of CAG-**
- The CAG is appointed by the President of India by a warrant under his hand and seal.
- The CAG holds office for six years or up to the age of 65 years, whichever is earlier.
- He can resign at any time from his office by addressing the resignation letter to the president.
- He can also be removed by the president on the same grounds and in the same manner as a judge of the Supreme Court.
- In other words, he can be removed by the president based on a resolution passed to that effect by both Houses of Parliament with a special majority, either on the grounds of proven misbehaviour or incapacity.
- **Independence of CAG-**
- CAG is appointed by the President by warrant under his hand and seal and provided with tenure of 6 years or 65 years of age, whichever is earlier.
- CAG can be removed by the President only following the procedure mentioned in the Constitution which is the manner same as the removal of a Supreme Court Judge.
- He is ineligible to hold any office, either under the Government of India or of any state, once he retires/ resigns as a CAG.
- His salary and other service conditions cannot be varied to his disadvantage after the appointment.
- His administrative powers and the conditions of service of persons serving in the Indian Audit and Accounts Department are prescribed by the President only after consulting him.

- The administrative expenses of the office of CAG, including all salaries, allowances, and pensions are charged to the Consolidated Fund of India that is not subject to vote.
- **Duties and Powers of CAG:**
- It will be taught in the next class (it is expected to read handouts before coming to the next class)

THE TOPIC OF THE NEXT CLASS IS THE CAG, CITIZENSHIP PROVISIONS AND OTHERS.

Class 42

OFFICE OF THE CAG (09:10 AM)

- Originally the CAG was involved in Accounting and Auditing functions for the Union and the States.
- CAG (Duties, Powers, and Conditions of Services) Act of 1971-
- The CAG currently performs only auditing functions for the Union.
- It continues to perform accounting and auditing functions for the states.
- The accounting functions of the Union are now being performed by the Controller General of Accounts (CGA).
- **Duties and Powers of CAG-**
- He audits the receipts and expenditures from the consolidated fund of India.
- He audits the transactions related to contingency funds and public accounts.
- He audits all the government companies and the central PSUs.
- He audits all the autonomous bodies and authorities receiving government funds.
- Audit of accounts of any other authority at the request of the President.
- CAG is empowered to conduct a Compliance Audit.
- Compliance Audit-
 - (i). Whether the money spent by the executive was allocated by the legislature or not.
 - (ii). Was the money spent by the authority to whom it was allocated?
 - (iii). Was the money spent on the purpose for which it was allocated?
- Apart from this, the CAG has to look through the lens of 3Es- Economy, Efficiency, and Effective.
- In a traditional sense, the CAG is not supposed to perform the performance audit.

- But in recent times, it has tapped into constitutional and legal powers to perform such audits as well.
- Performance audit is an independent function to the extent to which an organization or a scheme operates economically, efficiently, and effectively.
- Such an audit by the CAG has helped in keeping a check on wasteful expenditures made by government agencies.
- **Relation between Public Accounts Committee and CAG- (09:43 AM)**
- The CAG is supposed to prepare detailed reports and submit them to the President or the Governor who in turn shall cause them to be laid in front of the legislature.
- The reports of the CAG are subsequently handed over to the PAC which examines these reports with the help of the CAG.
- The PAC is supposed to specifically examine the reports of the CAG on appropriation accounts of the government as well as CAG reports on revenue receipts & expenditure reports of various departments and ministries.
- The PAC in its examination process may even question the government officers and the ministers with respect to the expenditure made by the government.
- The CAG assists the committee in questioning the witnesses and understanding the technicalities of the report.
- Not only that, the CAG also examines whether the recommendations made by him have been accepted or not and reports the same to the PAC.
- Therefore the PAC gets empowered to question the executive in an effective manner on the above-mentioned issues.
- The CAG and PAC work in tandem to ensure financial accountability in government.
- **Significance of the office of CAG- (09:55 AM)**
- He is the friend, philosopher, and guide of PAC and provides them with the necessary technical inputs to hold the executive accountable.
- In the recent past, the CAG has played an important role in unearthing some of the major scams in the country.
- Eg: Bofors scam
- **Shortcomings in the office of CAG- (10:03 AM)**
- Lack of independence in the manner of appointment.
- The appointment is made by the President of India on the aid and advice of the Council of Ministers.
- Often, the IAS officers are given preference over IAAS officers who have specific domain expertise and should be given priority for such positions.
- CAG is usually not interested in the audit of private companies involved in the delivery of public services.

- CAG is an overburdened institution especially as it is auditing the PPPs as well these days.
- It is often criticized that the CAG had the benefit of hindsight which is not available to the policymakers, therefore, overtly critical reports of CAG may have a detrimental effect on the functioning of the civil services.
- **Suggestions to reform-**
- It seems desirable that the findings of the Audit should be reported to the media and the public in order to gain further trust.
- It seems self-evident that the process of selection of such an important constitutional functionary should be open, objective, and credible.
- This is best ensured by a committee procedure of the kind statutorily laid down for the Central Vigilance Commission and the National Human Rights Commission.

ESTIMATES COMMITTEE (10:25 AM)

- The Committee on Estimates is a Parliamentary Committee consisting of 30 members, elected every year by the Lok Sabha from among its Members
- The Chairperson of the Committee is appointed by the Speaker from among its members.
- A Minister cannot be elected as a member of the Committee and if a member after selection to the Committee is appointed a Minister, the member ceases to be a Member of the Committee from the date of such appointment.
- The term of office of the Committee is one year.
- **Functions-**
- to report what economies, improvements in organization, efficiency, or administrative reform, consistent with the policy underlying the estimates may be effected;
- to suggest alternative policies in order to bring about efficiency and economy in administration;
- to examine whether the money is well laid out within the limits of the policy implied in the estimates; and
- to suggest the form in which the estimates shall be presented to Parliament.
- The Committee, from time to time, appoints one or more Sub-Committees/Study Groups for carrying out detailed examinations of various subjects.
- The Observations/Recommendations of the Committee are embodied in its Reports which are presented to Lok Sabha.

CITIZENSHIP (10:58 AM)

- The provisions related to citizenship status in India are primarily outlined in Part II of the Constitution, under Articles 5 to 10 at the time of the commencement of the Constitution.
- Article 11 empowers the Parliament to make a law to determine the citizenship status after the commencement of the Constitution.
- *Article 11- Nothing in the foregoing provisions of this Part shall derogate from the power of Parliament to make any provision with respect to the acquisition and termination of citizenship and all other matters relating to citizenship.*
- In pursuance of these powers, the Parliament enacted the Citizenship Act, of 1955.
- Article 5- It provides us the details about the citizenship status of those individuals who were domiciled in India on 26th January 1950 provided they met the following conditions-
 - they were born in the territory of India; or
 - either of the parents were born in the territory of India; or
 - were ordinarily resident in India on 26th January 1950 for at least 5 years.
- Article 6 determines the citizenship status of those people who migrated from Pakistan.
 - In case an individual migrated before 19th July 1948, he would have been eligible for Indian citizenship if he or his parents or grandparents were born in undivided India.
 - A person who migrated after 19th July 1948 would be a citizen if he registered with an officer appointed by Govt for this purpose and if he or his parents or grandparents were born in undivided India.
- Article 7 declares that a person who migrated to Pakistan after 1st March 1947 and returned to India shall not be a citizen unless he returns to the territory of India under a permit for resettlement or permanent return.
- Article 9 provides that the Constitution of India does not allow dual citizenship on 26th January 1950.
- Therefore if a person acquires citizenship under Art 5, 6, or 8, he shall not continue as a citizen of India upon acquiring the citizenship of a foreign state.
- If a person acquired citizenship under Art 5 to 8, he shall continue to be a citizen of India subject to provisions made by the Parliament under a law.
- **Provisions under the Citizenship Act of 1955- (11:27 AM)**
 - At present a person shall be deemed a citizen of India at birth-
 - if he takes birth in the territory of India; and
 - both the parents are Indian citizens, or if either parent is an Indian citizen; and
 - if either parent is an Indian citizen and the other parent is not an illegal immigrant.

- Before 1987, a person taking birth in the territory of India was entitled to Indian citizenship.
- Between 1987 and 2004 a person taking birth in the territory of India would have been a citizen if either of his parents were an Indian citizen at the time of birth.
- **Citizenship by Descent- (11:33 AM)**
- A person born outside India to either of the Indian parents shall be entitled to Indian citizenship if his/her birth was registered at the Indian embassy or a consular representative within 1 year of birth or during the extension period allowed.
- Before 2003, a person needed to be born to either parent who was an Indian citizen at the time of birth & no requirement for registration existed within a specific time period.
- Before 1992, a person should have been born to an Indian father to be eligible for citizenship.
- **Citizenship by Registration-**
- A person of Indian origin can get Indian citizenship upon meeting certain requirements and going through a process of registration.
- Similarly, a foreigner married to an Indian citizen shall also be eligible for Indian citizenship under the registration process upon satisfying certain conditions.
- **Citizenship by Naturalisation-**
- A person having no ties with India would be eligible for Indian citizenship upon residing in India for a certain number of years and fulfilling a few other conditions.
- **Citizenship by Incorporation of Territory- (11:46 AM)**
- Since India is a sovereign nation it may acquire territories and the person would be eligible for Indian citizenship in such circumstances.
- **Loss of Citizenship- (11:49 AM)**
- By renunciation;
- A person may lose if he/she voluntarily gives up Indian citizenship.
- By termination;
- The government may terminate the citizenship of a person upon acquiring the citizenship of some other country.
- By deprivation;
- The government may deprive a person of citizenship in case the citizenship has been acquired through fraud, concealment, or the person has shown disloyalty or disaffection towards the constitution of India and the country.
- **Citizenship Amendment Act, 2019- (11:55 AM)**
- It provided that any person belonging to Hindu, Sikh, Buddhist, Jain, Parsi, or Christian communities from Pakistan, Afghanistan, or Bangladesh who entered India on or before 31st December 2014 shall not be treated as an illegal immigrant if given an exemption by the Central Government.

- As per the government, the intention of the Act was to provide citizenship to the persecuted minorities in the above 3 countries.
- **Overseas Citizen of India- (11:58 AM)**
- An OCI is a person who was a citizen of India on or after 26th January 1950; or
- was eligible to become a citizen of India after 26th January 1950; or
- is a child or grandchild of such a person.
- A person would not be eligible for OCI status if he or his parents or grandparents have ever been a citizen of Pakistan or Bangladesh.
- **Benefits of OCI-**
- Multipurpose, multi-entry lifelong Visa for entering India.
- Exemptions from registration with local police authority for any length of stay in India.
- Special immigration counter at the Indian airports.
- They can exercise ownership rights over property & apply for an Indian PAN card.
- **Limitations-**
- Do not have voting rights;
- Cannot occupy government offices;
- Cannot contest elections;
- Cannot purchase agricultural land;
- They do not enjoy the protection under Art 15, 16, 19, 29 and 30.

TOPICS TO BE DISCUSSED IN THE NEXT CLASS- UNION TERRITORIES (DELHI), HUMAN RIGHTS BODIES IN INDIA, NATIONAL AND OFFICIAL LANGUAGE, ELECTION COMMISSION

Class 43

INTRODUCTION (09:11 AM)

- A Brief Overview Of The Previous Class.

PUBLIC SERVICE COMMISSIONS (09:14 AM)

Functions:

- To conduct examinations for recruitment to the government services.
- **UPSC frame the schemes for joint recruitment upon request by 2 or more states.**

- **Provide inputs to the president/governor on personnel management aspects such as promotions, transfers, appointments, compensation, claims, disciplinary proceedings etc.**
- To publish annual reports regarding their functioning to the president or the governor as the case may be.

FORMATION, STRUCTURE AND COMPOSITION OF PSCs (09:36 AM)

- **Article 315:** Constitution of Public Service Commissions (PSC) for the Union and the States of India and also 2 or more states can pass the resolution and request to set up joint public service commission.
- UPSC, Upon request of the state government, may perform the functions of that state as well.

Composition and structure:

- The constitution does not specify the strength of the commission and it has been left to the president or the governor.
- In usual circumstances UPSC has 9 to 10 members but this number may vary significantly.
- The PSCs are supposed to consist of the Chairperson and the other members.
- **Article 316:** Discusses the appointment and term of office of members of Public Service Commissions.
- **The constitution does not provide any specific requirements of qualifications of members and chairpersons except 1.**
- **Nearly one-half of the members of every PSC shall be individuals who have served for at least 10 years in government service.**

Tenure:

- **A member of UPSC shall hold the office for 6 years and or the age of 65 years or whichever is earlier.**
- In the case of the State Public Service Commission the age limit is 62 years.

Reasons for vacancy:

- Due to end of tenure or reaching the age of superannuation.
- Resignation to the President or governor as the case may be.
- **Removal:**
- **Article 317:** Removal and suspension of a member of both the UPSC or SPSC.

- If the inquiry report of SC finds the chairperson or any member of PSCs guilty of misbehaviour, then the president shall make an order for the removal of that person from office.
- Article 317(4): If involved in a contract or agreement with GOI, or involved in getting profit from a company.
- **Other grounds:**
- Can be removed also if the person is adjudged bankrupt or insolvent.
- Mentally or physically unfit.
- Engaged in employment outside the office. (The president shall be making the order for removal).

PROVISIONS RELATED TO SECURING THE INDEPENDENCE OF PSCs (10:08 AM)

- The salaries, the terms of services, and allowances can not be reduced to their disadvantage after appointment.
- **The removal can happen only on grounds mentioned in the constitution.**
- **The expenses related to the office are a charged expenditure on the CFI (Consolidated Fund Of India).**
- **The members and the chairpersons of the PSCs are prohibited from reappointment under the government subject to certain conditions.**
- Article 323 of the Indian Constitution stipulates that the reports concerning the performance of duties by the Union Public Service Commission (UPSC)
- the State Public Service Commissions (SPSCs) shall be presented annually to the President of India in the case of the UPSC and to the Governors of the respective states in the case of SPSCs.

Challenges associated with the functioning of PSCs in India: (10:59 AM)

- The present recruitment system is archaic and doesn't suit the requirements of 21st-century democracy.
- Emphasis should be provided on judging the candidate from multiple perspectives including the ability to handle stress, to make quick decisions and above all to show empathy and compassion for the weaker sections of society.
- **The PSCs may learn from the recruitment process followed by international organisations such as the World Bank and the Indian Armed Forces.**
- **The training provided is often out of touch with new developments in technology and society.**
- **The PSCs must provide inputs to the training institutes for upgrading their capacity and to make the training more relevant to the requirements of present-day service.**

- **The PSCs are overburdened with the work, compromising their effective functioning.**
- **Therefore there is a need to recruit more staff to aid their functioning.**
- The image of the State Public Service Commission has been tarnished due to the allegations of corruption and nepotism.
- An urgent action is required to reform their functioning and to restore their lost glory.
- The discussions on the reports of the Public Service Commission have either been limited or delayed in the legislature due to the lack of seriousness shown by the govt. and the legislature.
- **The emergence of institutions such as CVC has created overlapping functions with the UPSC.**
- Therefore, there is a need to delineate the functions of these bodies to establish an effective accountability mechanism and to ensure their efficient functioning.

Administration of UTs in India:

- **Article: 239:**
- Save as otherwise provided by Parliament by law, **every Union territory shall be administered by the President acting, to such extent as he thinks fit, through an administrator to be appointed by him with such designation as he may specify.**
- Administered by the president through an administrator appointed by him.
- Article 240: The **President has the power to make regulations for the peace, progress and good governance of Andaman and Nicobar Islands, Lakshwadeep, Dadra and Nagar Haveli, Daman and Diu and Puducherry**
- Art 239 A: Parliament can make a law for the composition structure and formation of the legislative assembly of Puducherry.
- There can be a council of ministers representing the people of Puducherry.
- **Art 239 AA: Introduced by 69th CAA.**
- UT of Delhi shall be renamed as National Capital Territory of Delhi.
- There should be a legislative assembly in the NCT of Delhi.
- Composition, manner of election, tenure, and reservation provisions will be determined by the parliamentary laws.
- Must have CoM representing the people of Delhi. This CoM shall consist of not more than 10% of the total size of the legislative assembly.
- CoM should include the Chief minister also.(maximum size 7 in delhi)
- **Art 239 AA (3): NCT of Delhi have powers to make laws on all the subjects that have been mentioned in the state list and concurrent list of the constitution.**
- Does not have Powers to make laws entries 1, 2 and 18.

- **Entries 1, 2, and 18 in the State List cover matters such as Public Order, Police, and Land, respectively.**
- **Parliament shall have exclusive powers to make laws on entry 1, 2 and 18.**
- Parliament has other powers with Lists 2 and 3.
- In case of conflict, parliamentary law will prevail over law made by the legislative assembly of Delhi.
- When the law of the legislative assembly has received the assent of the president of India.
- The Govt of NCT of Delhi (239 AA) shall exercise its executive powers on all those matters where LA of NCTD is competent to make laws.
- **Article 239AA(5) of the Constitution of India** deals with the appointment of the Chief Minister and other Ministers of the Government of the National Capital Territory of Delhi. It states that:
 - **The Chief Minister shall be appointed by the President and other Ministers shall be appointed by the President on the advice of the Chief Minister.**
 - **The Ministers shall hold office at the pleasure of the President.**
- **Conflict between CoMs and governor**
- **Article 239 AA (4):**
- **LG of Delhi has powers to refer the decision in case of a difference of opinion with the CoM to the President.**
- **and pending such a decision if the matter is of urgent importance to the LG of Delhi in his opinion then he may take a decision himself on that matter.**
- There shall be a Council of Ministers consisting of not more than ten per cent. of the total number of members in the Legislative Assembly,
- with the Chief Minister at the head to aid and advise the Lieutenant Governor in the exercise of his functions about matters concerning which the Legislative Assembly has power to make laws, except in so far as he is, by or under any law, required to act in his discretion:
- Provided that in the case of a difference of opinion between the Lieutenant Governor and his Ministers on any matter, the Lieutenant Governor shall refer it to the President for decision.
- And act according to the decision given thereon by the President and pending such decision
- it shall be competent for the Lieutenant Governor in any case where the matter, in his opinion, is so urgent that it is necessary for him to take immediate action, to take such action or to give such direction in the matter as he deems necessary.

2018 SC judgement

- The Supreme Court in *Government of NCT of Delhi vs. Union of India* (2018) decided on the conflicts between the government of NCT and the Union Government and its representative, the Lieutenant Governor.
- It reminded the Lt. Governor what his real functions are
- It told the State government that it should remember that Delhi is a special category Union Territory.
- The Supreme Court affirmed that the Lt. Governor is bound to act on the aid and advice of the council of ministers except in respect of 'Land', 'Public Order' and the 'Police'.
- The Court has also made it clear that there is no requirement of the concurrence of the Lt. Governor and that he has no power to overrule the decisions of the State government.

HUMAN RIGHTS COMMISSION (12:01 PM)

Human Rights Bodies with Constitutional Backing:

1. **National Commission for Scheduled Castes (NCSC):** Article 338
2. **National Commission for Scheduled Tribes (NCST):** Article 338A
3. **National Commission for Backward Classes (NCBC):** Article 338B

Human Rights Bodies with Legal Backing:

- **National Human Rights Commission (NHRC):** The Protection of Human Rights Act, 1993
- **National Commission for Protection of Child Rights (NCPCR):** The Commissions for Protection of Child Rights Act, 2005
- **National Commission for Women (NCW):** The National Commission for Women Act, 1990
- **National Commission for Minority Education (NCME):** The National Commission for Minority Educational Institutions Act, 2004.

Benefits of the body getting a constitutional status:

- Elevates their status and reputation.
- **Gets powers to give directions to many ministries' department offices.**
- **Independence and autonomy with functioning.**
- **Their reports have to be tabled in the parliament of India along with the action taken reports.**
- Independence is secured as expenses allowances etc are charged upon CFI.

FUNCTIONS OF NHRC (12:10 PM)

- To observe and monitor the safeguards provided in the constitution for the protection of marginalized sections of society
- To enquire into complaints relating to the deprivation of rights and the Safeguards for the marginalized sections of society.
- **To advise the Centre or State govt on planning schemes for the socioeconomic development of the marginalized sections.**
- **Regularly reporting to the President on the working of the Safeguards provided by the Constitution and the law.**
- **Promoting research and encouraging NGOs in the field of human rights.**
- **While making inquiries into the complaints, the commissions enjoy the powers of a civil court.**
- **They also study treaties and other international instruments on human rights and make recommendations for their effective implementation.**
- Any other functions, given to them concerning the welfare, protection, and advancement of the marginalized sections.
- Involved in spreading human rights literacy among various sections of society and promoting awareness of the safeguards available for the protection of these rights through publications, the media, seminars and other available means.

Challenges or limitations of Human rights bodies or commission

- i) They do not have any investigation machinery of their own and have to depend on the state or central agencies for their investigations.
- In such a scenario their ability to act independently is compromised.
- **ii) They are only recommendatory bodies and their recommendations are not binding on the govt. Coupled with the poor discussion of their reports in the legislature their powers are reduced.**
- iii) They can not entertain or enquire into complaints that are older than a certain period.
- **iv) The appointments are made based on political considerations which compromise the independent functioning of these bodies.**
- **v) They have limited power to suggest actions against the Armed forces.**
- **Relating to violations of human rights by the armed forces, the commission must simply seek a report from the Government, and then issue recommendations.**
- **vi) People lack awareness concerning the functioning of these bodies and as a result often fail to bring issues to the notice of these bodies.**
- **vii) Most of these bodies suffer on account of the shortage of staff and vacancies due to delayed appointments which have hampered the effective functioning of these bodies.**

- viii) A number of these bodies have overlapping functions with each other, thus leading to chaos and confusion in turn diminishing their accountability
- ix) many of these bodies lack accessibility to the common man e.g. NCST has only 6 regional offices in the entire country

(TOPIC FOR THE NEXT CLASS: ELECTION, ELECTION COMMISSION AND COMPARISON OF CONSTITUTIONS)

Class 44

ELECTION COMMISSION OF INDIA (01:15 PM)

- **Refer to the uploaded handout for details.**
- **Article 324-** Superintendence, direction and control of elections to be vested in an Election Commission.
- **Functions of ECI**
- They are responsible for the **preparation of electoral rolls.**
- **Conduct of elections** for the Legislative Assembly, Legislative Councils, Parliament, President and Vice President.
- **Provides advice** to the Governor and the President on the disqualification of legislatures under Articles 102 and 191.
- Fixes the limit for **election expenditures** and examines the account of expenses.
- Determines the **criteria for recognising a Political Party** as a state party or national political party.
- Responsible for the **allocation of symbols to the Political Party** and candidates as well as deciding the disputes in this regard.
- Responsible for the preparation and enforcement of the **Model Code of Conduct.**
- The Supreme Court in 1997 in a case stated that ECI has plenary powers that it can exercise on matters related to elections in the country. Powers that may not be mentioned in ROPA or the Constitution but it must tap into such reservoir of powers to conduct free and fair elections in the country.
- **Structure and Composition of ECI**
- Until 1989, ECI was only a single-member body. In 1989 it was expanded and two more members were added.
- In 1990, the previous notification was revoked.

- This decision was challenged in the Supreme Court which upheld the decision of the govt.
- In 1993, it was made a multi-membered body again.
- In 1991 as per the law of Parliament, the tenure and the condition of services of Election Commissioners was decided.
- According to the act, the powers of the CEC and other ECs were equated. Ideally, the decision should be made with a consensus but if there is no consensus, the majority rule shall prevail.
- The CEC shall act as the chairperson of the Commission. Also, the President may appoint regional commissioners to assist the Election Commission in its functions.
- **Provision related to service conditions of ECs**
- The appointment of CEC and other ECs is supposed to be made by the President on the aid and advice of the Union Council of Ministers.
- According to the 1991 act, they shall hold the office for a period of 6 years or 65 years whichever is earlier.
- **Removal**
- The CEC can be removed from office in a manner like that of a judge of the Supreme Court.
- The ECs can be removed by the President on the recommendations of the CEC.

ISSUES ASSOCIATED WITH ECI (01:58 PM)

- The **appointment procedure** is dominated by the executive, therefore creating questions about the independence of the body. Even the recent act to exclude the CJI from the selection committee has been criticized by several experts.
- The **other Election Commissioners** do not enjoy the same kind of security enjoyed by the CEC.
- The **ECI is dependent on the government** for its machinery which compromises its functioning.
- There is no limitation on the members to seek **further appointments under the government.**
- The ECI does not have the power to take disciplinary actions against the political parties by deregistering or derecognising them.
- It has been unsuccessful in keeping a check on the **criminalization of politics and misuse of money power in elections.**

MODEL CODE OF CONDUCT (02:12 PM)

- **Refer to the uploaded handout for details.**

- MCC is a **set of guidelines evolved by the ECI to regulate the behaviour of the political parties and candidates prior to the elections.**
- It helps in ensuring the conduct of free and fair elections in the country.
- It is operational from the date of announcement of the election schedule till the announcement of the final results.
- **Broad guidelines under MCC**
- Political parties and candidates are prohibited from invoking caste and communal identity to seek votes in elections.
- Political parties are prohibited from effigies of representatives of other political parties.
- Candidates must not cast aspersions on the personal life of the other candidates.
- On the polling day, political parties should observe certain restrictions.
- Certain restrictions are imposed on govt, such as:
- Ministers can not combine official visits with election work or use the official machinery for the same.
- Similarly, Govt can not announce new schemes or programmes or initiate work on an earlier announced scheme once the MCC comes into force.
- **Legal enforceability of MCC**
- **It does not have any legal backing** but has become a powerful tool because of its strict enforcement by the ECI.
- Some of the provisions of MCC are enforced through statutes or certain provisions of laws such as IPC, ROPA etc but there is no standalone law for the same.
- **Shortcomings of MCC**
- MCC has failed to prevent certain electoral malpractices such as the distribution of money and liquor to secure votes.
- Use of caste and communal identity and misinformation and propaganda spread through social media.
- According to some people, it imposes restrictions on govt initiatives as developmental works are stalled when the MCC comes into force.
- The ECI has been criticised for not taking adequate actions for the violation of MCC.
- Since it is not legally binding, its enforcement is largely based on moral persuasion which reduces its effectiveness.
- Some of the **initiatives taken by the ECI for its strict enforcement are as follows:**
- Introduction of the **C-Vigil app** to report instances of its violation to the ECI.
- Candidates are supposed to maintain a **separate account of social media expenditures** made during the elections.

- ECI has held multiple all-party meetings to evolve a common consensus on the MCC.
- As per the directions provided by the Supreme Court court in 2018, Part VIII was added to the MCC with respect to the election manifestos and promises made by political parties in elections.
- **District media cells** have been activated to observe and bring to notice any instances of misuse of media by political parties and candidates.
- The ECI has made efforts to spread awareness among the citizens on MCC norms and has been regularly conducting training of civil servants for its strict enforcement.

COMPARISON OF THE INDIAN CONSTITUTION WITH THE CONSTITUTION OF THE USA (02:12 PM)

- **Basic Features of the American Constitution**
- It is a **written** constitution yet a brief one.
- It is a **rigid** constitution as it has been amended only 27 times in the last 230 odd years.
- The method of the amendment is significantly different from India.
- **In the first method**, the proposal to amend is initiated in the Parliament and it has to be adopted by both houses with 2/3rd of the majority and should be ratified by 3/4th of the total states.
- According to the **second procedure**, 2/3rd of the states can propose an amendment after which the President has to call a convention of states where the procedure in the first method is followed.
- America follows the principle of supremacy of the Constitution which has the President as head.
- The President is free to choose his own nominees for the ministerial positions.
- The USA follows a **strict separation of powers** and the first 3 articles of the constitution define the exact powers of each organ of the state.
- **Senate**
- The **Senate** is the most powerful upper chamber in the world. It has equal powers of legislation vis-s-vis House of Representatives.
- **Revenue bills** can only be introduced in HOR but the Senate has the same powers thereafter.
- Important constitutional appointments and international treaties have to be confirmed by the Senate.
- The **impeachment** trial of the President is decided by the Senate.
- All the states have been provided equal representation in the Senate.
- **Tenure**- 6 years
- **House of Representatives (HOR)**

- **Tenure-** 2 years
- The majority party gets the position of speaker and he does not resign from his political party and is not expected to remain neutral.
- He is the final authority to interpret the rules but his rulings can be overridden by the house.
- **Judiciary**
- American Supreme Court is the final interpreter of the Constitution.
- It consists of a Chief Justice and 8 associate judges.
- The appointments are made by the President and confirmed by the Senate.
- There is no retirement age for the judges.
- All the judges sit collectively in all the benches for hearing all the cases.
- It does not have an integrated judicial system and federal courts can entertain cases to federal laws only and state courts can consider cases under their jurisdictions.
- All constitutional matters are entertained by the Supreme Court alone.
- It does not have powers to entertain appeals against the judgement of state courts unless the state has federal implications.
- The removal of the judges is carried out in a manner similar to the removal of the President.
- **Comparison of Indian Federalism with USA**
- They do not follow a list system as is followed in India. Certain subjects have been assigned to the federal govt and the rest of the powers are with the state govt.
- There is a federal bias in the Constitution as important appointments and removals are decided by the Parliament alone.
- The states have been given an important role in the amendment of the Constitution.
- The provisions related to emergency have not been included in the constitution but owe their existence to an ordinary law made in 1976.
- States have their own constitutions along with the idea of dual citizenship.
- **Civil Liberties in America and India**
- Fundamental rights guaranteeing civil liberties were incorporated via amendment to the constitution.
- Some of the fundamental rights are unrestricted in nature and the Constitution does not provide any grounds for limiting them rather they are determined by the courts.
- The US Constitution has adopted the **due process of law** where extensive powers have been given to the courts to determine the legitimacy of the laws made by the legislature and executive actions.

- **The right to property** continues to be a fundamental right along with the principles of eminent domain.

COMPARISON OF CONSTITUTION OF INDIA AND BRITAIN (04:02 PM)

- **Important features of British Constitution**
- An unwritten and flexible constitution is an evolved constitution and not an enacted one.
- Some of the **sources** include the Magna Carta (1215 AD), Bill of Rights (1689), Conventions of the British system, laws passed by the Parliament and laws derived from judicial pronouncements.
- It has a **unitary set-up** with separate legislature for Scotland, Wales and North Ireland created as a result of the law made by the Parliament.
- Britain follows Parliamentary supremacy and the Supreme Court does not have the power to strike down a law made by the legislature.
- The House of Lords is an unelected chamber of the Parliament with more than 750 members, all of whom are unelected.
- **Fundamental Rights in the UK**
- Britain does not have the concept of constitutionally guaranteed fundamental rights but the British Parliament enacted the Human Rights Act of 1998 which has given recognition to the rights of the citizens and placed limitations on the public bodies to not act in contravention of this law.
- **Judiciary in the UK**
- **Appointments** are made by the crown upon the recommendations of the Judicial Appointment Commission.
- The Supreme Court was established in 2009 from the earlier system of members of the House of Lords acting as the highest court in the UK.
- The UK has a judicial appointment and conducts Ombudsman that is responsible for investigating and making recommendations related to complaints related to judicial appointments and judicial conduct.
- The UK set up a **Ministry of Justice in 2007** that has tried to evolve alternate mechanisms to provide justice to the people.
- UK follows the **procedure established by the law** and the third principle of Dicey's rule of law is also followed.
- The third principle highlights the primacy of individual rights where the constitution is the result of the rights of people.
- The Courts do not have the right to judicially review legislation due to the concept of Parliamentary Supremacy, nor do they have an equivalent of basic structure doctrine to strike down a law made by the Parliament on the same grounds.

The Syllabus of Polity is complete.

